AUTHENTICATED
U.S. GOVERNMENT
INFORMATION
GPO

# FEDERAL REGISTER

VOLUME 31 • NUMBER 102

Thursday, May 26, 1966 • Washington, D.C.

Pages 7547–7603

Agencies in this issue—

The President
Agricultural Stabilization and Conservation Service
Civil Aeronautics Board
Commodity Credit Corporation
Consumer and Marketing Service
Education Office
Engineers Corps
Federal Aviation Agency
Federal Communications Commission
Federal Crop Insurance Corporation
Federal Housing Administration
Federal Maritime Commission
Federal Power Commission
Federal Reserve System
Fish and Wildlife Service
Food and Drug Administration
Housing and Urban Development Department
Internal Revenue Service
Interstate Commerce Commission
Land Management Bureau
Maritime Administration
National Park Service
Panama Canal
Securities and Exchange Commission

Detailed list of Contents appears inside.



THE NATIONAL ARCHIVES OF THE UNITED STATES
LITTERA SCRIPTA MANET
1934

# Subscriptions Now Being Accepted

# SLIP LAWS

**89th Congress, 2d Session**
**1966**

Separate prints of Public Laws, published immediately after enactment, with marginal annotations and legislative history references.

**Subscription Price:**

**$12.00 per Session**

Published by Office of the Federal Register, National Archives and Records Service, General Services Administration

**Order from Superintendent of Documents, U.S. Government Printing Office**
**Washington, D.C., 20402**



FEDERAL REGISTER

Area Code 202 Phone 963-3261

Published daily, Tuesday through Saturday (no publication on Sundays, Mondays, or on the day after an official Federal holiday), by the Office of the Federal Register, National Archives and Records Service, General Services Administration (mail address National Archives Building, Washington, D.C. 20408), pursuant to the authority contained in the Federal Register Act, approved July 26, 1935 (49 Stat. 500, as amended; 44 U.S.C., ch. 8B), under regulations prescribed by the Administrative Committee of the Federal Register, approved by the President (1 CFR Ch. I). Distribution is made only by the Superintendent of Documents, Government Printing Office, Washington, D.C. 20402.

The FEDERAL REGISTER will be furnished by mail to subscribers, free of postage, for $1.50 per month or $15.00 per year, payable in advance. The charge for individual copies varies in proportion to the size of the issue (15 cents for the first 80 pages and 5 cents for each additional group of 40 pages, as actually bound). Remit check or money order, made payable to the Superintendent of Documents, Government Printing Office, Washington, D.C. 20402.

The regulatory material appearing herein is keyed to the CODE OF FEDERAL REGULATIONS, which is published, under 50 titles, pursuant to section 11 of the Federal Register Act, as amended. The CODE OF FEDERAL REGULATIONS is sold by the Superintendent of Documents. Prices of books and pocket supplements are listed in the first FEDERAL REGISTER issue of each month.



There are no restrictions on the republication of material appearing in the FEDERAL REGISTER or the CODE OF FEDERAL REGULATIONS.

# Contents


## THE PRESIDENT

**PROCLAMATION**

Small Business Week ..... 7551

## EXECUTIVE AGENCIES

### AGRICULTURAL STABILIZATION AND CONSERVATION SERVICE

**Rules and Regulations**

Cotton; transfer of acreage affected by natural disaster ..... 7554

### AGRICULTURE DEPARTMENT

*See* Agricultural Stabilization and Conservation Service; Commodity Credit Corporation; Consumer and Marketing Service; Federal Corp Insurance Corporation.

### ARMY DEPARTMENT

*See* Engineers Corps.

### CIVIL AERONAUTICS BOARD

**Notices**

*Hearings, etc.:*

Drake Motor Lines, Inc., and Shulman, Inc ..... 7594
Hawiian Airlines, Inc., and Skyway Air Cargo, Inc ..... 7595

### COMMERCE DEPARTMENT

*See* Maritime Administration.

### COMMODITY CREDIT CORPORATION

**Rules and Regulations**

Tobacco export program; miscellaneous amendments ..... 7556

### CONSUMER AND MARKETING SERVICE

**Rules and Regulations**

Fresh peaches grown in Georgia; expenses and rate of assessment ..... 7555
Nectarines grown in California; shipment limitations (2 documents) ..... 7554, 7555
Poultry soups, inspection; further postponement of effective date ..... 7553

### DEFENSE DEPARTMENT

*See* Engineers Corps.

### EDUCATION OFFICE

**Notices**

National technical institute for deaf; nationally recognized accrediting agencies ..... 7594

### ENGINEERS CORPS

**Rules and Regulations**

Kissimmee River, Fla.; navigation regulations ..... 7566

### FEDERAL AVIATION AGENCY

**Rules and Regulations**

Alterations:
Federal airway and jet route ..... 7561
Federal airways ..... 7556
Jet routes ..... 7561
Transition areas ..... 7559
Transition areas and control zone ..... 7559
Designations:
Control zone and transition area ..... 7560
Federal airway ..... 7560
Transition area (2 documents) ..... 7561
Transition areas; alteration and revocation ..... 7559

**Proposed Rule Making**

Alteration:
Control zone and transition area ..... 7575
Federal airways ..... 7573

**Notices**

Regional Office, Central Region, Kansas City, Mo.; notice of change of address ..... 7595

### FEDERAL COMMUNICATIONS COMMISSION

**Proposed Rule Making**

Certain FM broadcast stations; table of assignments ..... 7576
UHF television channels; expanded use ..... 7576

**Notices**

*Hearings, etc.:*

Jupiter Associates, Inc., et al ..... 7595
Naugatuck Valley Service, Inc. (WOWW) ..... 7596
Overmeyer, D. H., Communications Co., and Maxwell Electronics Corp ..... 7596

### FEDERAL CROP INSURANCE CORPORATION

**Rules and Regulations**

Crop insurance:
Barley ..... 7553
Citrus crop:
Arizona-Desert Valley ..... 7554
Florida ..... 7554
Oranges; California ..... 7553
Soybeans ..... 7553
Wheat ..... 7553

### FEDERAL HOUSING ADMINISTRATION

**Rules and Regulations**

Miscellaneous amendments to chapter ..... 7565

### FEDERAL MARITIME COMMISSION

**Notices**

Continental North Atlantic Westbound Freight Conference; admission, etc ..... 7596
Independent ocean freight forwarders, ocean freight brokers, and oceangoing common carriers; practices ..... 7596
Vessel operating common carriers in domestic offshore trade; reports of rate base and income account ..... 7596

### FEDERAL POWER COMMISSION

**Notices**

*Hearings, etc.:*

Milstar Manufacturing Corp ..... 7596
Pacific Gas and Electric Co ..... 7597
Panhandle Eastern Pipe Line Co. (2 documents) ..... 7596, 7597
Rochester Gas and Electric Corp. (2 documents) ..... 7598

### FEDERAL RESERVE SYSTEM

**Notices**

Baystate Corp.; order approving application ..... 7598
Citizens Bank and Trust Co.; order approving consolidation of banks ..... 7599
Denver U.S. Bancorporation, Inc.; order approving application ..... 7599

### FISH AND WILDLIFE SERVICE

**Rules and Regulations**

Alaska; hunting ..... 7569
Sport fishing:
New York ..... 7569
Tennessee ..... 7570

### FOOD AND DRUG ADMINISTRATION

**Rules and Regulations**

Bread; identity standard and confirmation of effective date ..... 7562
Eggs and egg products; identity standards and confirmation of effective date ..... 7562
Food additives:
Citral propylene glycoy acetal ..... 7563
DDT and TDE (DDD) ..... 7562
Modified polyacrylamide resin ..... 7563
Polyamide-epichlorohydrin resin ..... 7563
Macaroni and noodle products; identity standards, effective date ..... 7562

**Proposed Rule Making**

Creamed cottage cheese; proposed amendment to identity standards ..... 7572
Meprobamate; scheduling of additional prehearing conference ..... 7573

**Notices**

Petitions filed:
Continental Chemical Co ..... 7593
FMC Corp ..... 7593

### HEALTH, EDUCATION, AND WELFARE DEPARTMENT

*See* Education Office; Food and Drug Administration.


*(Continued on next page)*

## HOUSING AND URBAN DEVELOPMENT DEPARTMENT

*See also* Federal Housing Administration.

**Rules and Regulations**

Rent supplement payments ..... 7563

**Notices**

Acting Regional Administrator, Region I (New York); designation ..... 7594

## INTERIOR DEPARTMENT

*See* Fish and Wildlife Service; Land Management Bureau; National Park Service.

## INTERNAL REVENUE SERVICE

**Proposed Rule Making**

Income tax; treatment of interest or dividends paid by certain savings institutions on certain deposits or withdrawable accounts ..... 7571

## INTERSTATE COMMERCE COMMISSION

**Notices**

Applications under sections 5 and 210a(b) ..... 7593

Fourth section applications for relief ..... 7591

Motor carrier:

Broker, water carrier and freight forwarder applications ..... 7577

Temporary authority applications ..... 7591

Soo Line Railroad Co.; diverting or rerouting of traffic; expiration date ..... 7591

## LAND MANAGEMENT BUREAU

**Rules and Regulations**

Public land orders:

Alaska (2 documents) ..... 7567, 7568

California ..... 7567

Idaho ..... 7568

North Dakota ..... 7567

Oregon ..... 7566

Utah ..... 7568

Washington ..... 7567

## MARITIME ADMINISTRATION

**Notices**

American Export Isbrandtsen Lines, Inc.; application for approval of certain cruises ..... 7593

## NATIONAL PARK SERVICE

**Rules and Regulations**

National Capital Region regulations; correction ..... 7566

## PANAMA CANAL

**Rules and Regulations**

Marine licenses; term, suspension or revocation ..... 7566

## SECURITIES AND EXCHANGE COMMISSION

**Notices**

*Hearings, etc.:*

Atlantic Richfield Co ..... 7600

Continental Vending Machine Corp ..... 7600

McCord Corp ..... 7601

Pennzoil Co., et al ..... 7600

United Security Life Insurance Co ..... 7601

## TREASURY DEPARTMENT

*See* Internal Revenue Service.


# List of CFR Parts Affected

(Codification Guide)

**The following numerical guide is a list of the parts of each title of the Code of Federal Regulations affected by documents published in today's issue. A cumulative list of parts affected, covering the current month to date appears at the end of each issue beginning with the second issue of the month.**

**A cumulative guide is published separately at the end of each month. The guide lists the parts and sections affected by documents published since January 1, 1966, and specifies how they are affected.**

### 3 CFR

PROCLAMATION:

3726 ..... 7551

EXECUTIVE ORDER:

8111 (revoked by PLO 4017) ..... 7567

### 7 CFR

81 ..... 7553

401 (3 documents) ..... 7553

406 ..... 7553

409 ..... 7554

410 ..... 7554

722 ..... 7554

916 (2 documents) ..... 7554, 7555

918 ..... 7555

1490 ..... 7556

### 14 CFR

71 (9 documents) ..... 7556, 7559–7561

75 (2 documents) ..... 7561

PROPOSED RULES:

71 (2 documents) ..... 7573, 7575

### 21 CFR

16 ..... 7562

17 ..... 7562

42 ..... 7562

121 (4 documents) ..... 7562, 7563

PROPOSED RULES:

19 ..... 7572

166 ..... 7573

### 24 CFR

5 ..... 7563

200 ..... 7565

221 ..... 7565

### 26 CFR

PROPOSED RULES:

1 ..... 7571

### 33 CFR

207 ..... 7566

### 35 CFR

4 ..... 7566

### 36 CFR

3 ..... 7566

### 43 CFR

PUBLIC LAND ORDERS:

1177 (revoked in part by PLO 4016) ..... 7567

4014 ..... 7566

4015 ..... 7567

4016 ..... 7567

4017 ..... 7567

4018 ..... 7567

4019 ..... 7568

4020 ..... 7568

4021 ..... 7568

### 47 CFR

PROPOSED RULES:

73 (2 documents) ..... 7576

### 50 CFR

32 ..... 7569

33 (2 documents) ..... 7569, 7570

# Presidential Documents

## Title 3—THE PRESIDENT

### Proclamation 3726

### SMALL BUSINESS WEEK

**By the President of the United States of America**

**A Proclamation**

The small businesses of America are the foundation of our cherished system of free, competitive enterprise. Our nearly five million small businesses supply more than a third of the Nation's goods and services, and are a fertile source of new ideas and new products to enrich the lives of our citizens and stimulate the growth of our economy.

Small business concerns, which have increased by more than 300,000 during the past few years, are helping to provide the additional jobs needed by a rapidly growing Nation.

The small, privately owned concern has played a fundamental role in the development of the American way of life, and it continues to represent the door of opportunity for millions of enterprising citizens.

NOW, THEREFORE, I, LYNDON B. JOHNSON, President of the United States of America, do hereby designate the week beginning May 22, 1966, as Small Business Week; and I call upon chambers of commerce, boards of trade, and other public and private organizations to participate in ceremonies recognizing the contribution of small business to our prosperous society, to our welfare and happiness, and to our goal of a better and more productive life for all our people.

IN WITNESS WHEREOF, I have hereunto set my hand and caused the Seal of the United States of America to be affixed.

DONE at the City of Washington this 23rd day of May in the year of our Lord nineteen hundred and sixty-six, and of [SEAL] the Independence of the United States of America the one hundred and ninetieth.

LYNDON B. JOHNSON

By the President:

DEAN RUSK,
*Secretary of State.*

[F.R. Doc. 66-5854; Filed, May 24, 1966; 2:05 p.m.]

# Rules and Regulations

## Title 7—AGRICULTURE

### Chapter I—Consumer and Marketing Service (Standards, Inspections, Marketing Practices), Department of Agriculture

SUBCHAPTER D—REGULATIONS UNDER THE POULTRY PRODUCTS INSPECTION ACT

### PART 81—INSPECTION OF POULTRY AND POULTRY PRODUCTS

#### Poultry Soups; Further Postponement of Effective Date

The effective date of the provisions of §§ 81.134 and 81.208 of the regulations under the Poultry Products Inspection Act, as amended (21 U.S.C. 451 et seq.), as set forth in the amendments of the regulations published on July 7, 1964 (29 F.R. 8456), insofar as such provisions relate to soups (whether dehydrated, canned or otherwise prepared) containing poultry ingredients, is hereby postponed until July 1, 1966, pursuant to the authority of said Act. During such period of postponement, the provisions of § 81.208 (a) and (b) of the regulations, as published August 15, 1962 (27 F.R. 8098, 7 CFR 81.208 (Supp. 1963)), shall be in effect with respect to such soups.

This action is necessary in order to afford equitable treatment to all poultry soup processors in view of the issuance of a preliminary injunction on behalf of one processor of dehydrated soups in an action which is pending in the U.S. District Court for the District of New Jersey. In order to accomplish its purpose, this action must be made effective on June 1, 1966, when a prior order (31 F.R. 6295) of postponement of effective date expires. Therefore, under section 4 of the Administrative Procedure Act (5 U.S.C. 1003), it is found for good cause that notice of rule making and other public procedure with respect to this action are impracticable and good cause is found for making it effective less than 30 days after publication hereof in the FEDERAL REGISTER.

(Sec. 14, 71 Stat. 447, 21 U.S.C. 463; 29 F.R. 16210, as amended; 30 F.R. 1260, as amended; 30 F.R. 2160)

This action shall become effective on June 1, 1966.

Done at Washington, D.C., this 23d day of May 1966.

G. R. GRANGE,
*Deputy Administrator,*
*Marketing Services.*

[F.R. Doc. 66-5816; Filed, May 25, 1966; 8:52 a.m.]

### Chapter IV—Federal Crop Insurance Corporation, Department of Agriculture

### PART 401—FEDERAL CROP INSURANCE

#### Subpart—Regulations for the 1961 and Succeeding Crop Years

APPENDIX—COUNTIES DESIGNATED FOR BARLEY CROP INSURANCE

Pursuant to authority contained in § 401.1 of the above-identified regulations, as amended, the following counties are hereby added to the list of counties published February 25, 1966 (31 F.R. 3113), which were designated for barley crop insurance for the 1967 crop year.

ARIZONA

| | |
|---|---|
| Maricopa. | Yuma. |
| Pinal. | |

MARYLAND

Caroline.

WYOMING

| | |
|---|---|
| Big Horn. | Washakie. |
| Park. | |

(Secs. 506, 516, 52 Stat. 73, as amended, 77, as amended; 7 U.S.C. 1506, 1516)

[SEAL] JOHN N. LUFT,
*Manager,*
*Federal Crop Insurance Corporation.*

[F.R. Doc. 66-5780; Filed, May 25, 1966; 8:48 a.m.]

### PART 401—FEDERAL CROP INSURANCE

#### Subpart—Regulations for the 1961 and Succeeding Crop Years

APPENDIX—COUNTIES DESIGNATED FOR WHEAT CROP INSURANCE

Pursuant to authority contained in § 401.1 of the above-identified regulations, as amended, the following counties are hereby added to the list of counties published February 25, 1966 (31 F.R. 3113), which were designated for wheat crop insurance for the 1967 crop year.

ILLINOIS

Brown.

INDIANA

| | |
|---|---|
| Bartholomew. | Marion. |
| Elkhart. | Newton. |
| Hamilton. | Parke. |

MARYLAND

Caroline.

MICHIGAN

| | |
|---|---|
| Cass. | Livingston. |

MISSOURI

| | |
|---|---|
| Boone. | Pemiscot. |
| Clinton. | Platte. |
| Dunklin. | Randolph. |
| Mississippi. | Stoddard. |
| New Madrid. | |

MONTANA

| | |
|---|---|
| Custer. | Rosebud. |
| Prairie. | |

NEBRASKA

| | |
|---|---|
| Hall. | Nance. |
| Lincoln. | |

OHIO

| | |
|---|---|
| Fairfield. | Ottawa. |
| Franklin. | |

OKLAHOMA

Beaver.

TEXAS

| | |
|---|---|
| Deaf Smith. | Randall. |
| Parmer. | Swisher. |

(Secs. 506, 516, 52 Stat. 73, as amended, 77, as amended; 7 U.S.C. 1506, 1516)

[SEAL] JOHN N. LUFT,
*Manager,*
*Federal Crop Insurance Corporation.*

[F.R. Doc. 66-5781; Filed, May 25, 1966; 8:49 a.m.]

### PART 401—FEDERAL CROP INSURANCE

#### Subpart—Regulations for the 1961 and Succeeding Crop Years

APPENDIX—PARISHES DESIGNATED FOR SOYBEAN CROP INSURANCE

Pursuant to authority contained in § 401.1 of the above-identified regulations, as amended, the following parishes are hereby added to the list of counties published October 28, 1965 (30 F.R. 13689), December 30, 1965 (30 F.R. 16254), February 3, 1966 (31 F.R. 1297), and March 3, 1966 (31 F.R. 3335), which were designated for soybean crop insurance for the 1966 crop year.

LOUISIANA

| | |
|---|---|
| Natchitoches. | Red River. |

(Secs. 506, 516, 52 Stat. 73, as amended, 77, as amended; 7 U.S.C. 1506, 1516)

[SEAL] JOHN N. LUFT,
*Manager,*
*Federal Crop Insurance Corporation.*

[F.R. Doc. 66-5782; Filed, May 25, 1966; 8:49 a.m.]

### PART 406—CALIFORNIA ORANGE CROP INSURANCE

#### Subpart—Regulations for the 1963 and Succeeding Crop Years

APPENDIX—COUNTIES DESIGNATED FOR ORANGE CROP INSURANCE

Pursuant to authority contained in § 406.1 of the above-identified regulations, the following counties are hereby added to the county published October 28, 1965 (30 F.R. 13692), which was designated for orange crop insurance for the 1966 crop year.

CALIFORNIA

| | |
|---|---|
| Fresno. | Kern. |

(Secs. 506, 516, 52 Stat. 73, as amended, 77, as amended; 7 U.S.C. 1506, 1516)

[SEAL] JOHN N. LUFT,
*Manager,*
*Federal Crop Insurance Corporation.*

[F.R. Doc. 66-5783; Filed, May 25, 1966; 8:49 a.m.]

## PART 409—ARIZONA-DESERT VALLEY CITRUS CROP INSURANCE

### Subpart—Regulations for the 1965 and Succeeding Crop Years

APPENDIX—COUNTY DESIGNATED FOR CITRUS CROP INSURANCE

Pursuant to authority contained in § 409.1 of the above-identified regulations, as amended, the following county is hereby added to the list of counties published October 28, 1965 (30 F.R. 13693), which were designated for citrus crop insurance for the 1966 crop year.

CALIFORNIA

Riverside.

(Secs. 506, 516, 52 Stat. 73, as amended, 77, as amended; 7 U.S.C. 1506, 1516)

[SEAL] JOHN N. LUFT,
*Manager,*
*Federal Crop Insurance Corporation.*

[F.R. Doc. 66-5784; Filed, May 25, 1966; 8:49 a.m.]

## PART 410—FLORIDA CITRUS CROP INSURANCE

### Subpart—Regulations for the 1966 and Succeeding Crop Years

APPENDIX—COUNTIES DESIGNATED FOR CITRUS CROP INSURANCE

Pursuant to authority contained in § 410.1 of the above-identified regulations, the following counties are hereby added to the list of counties published March 3, 1966 (31 F.R. 3335), which were designated for citrus crop insurance for the 1966 crop year.

FLORIDA

Marion. Martin.

(Secs. 506, 516, 52 Stat. 73, as amended, 77, as amended; 7 U.S.C. 1506, 1516)

[SEAL] JOHN N. LUFT,
*Manager,*
*Federal Crop Insurance Corporation.*

[F.R. Doc. 66-5785; Filed, May 25, 1966; 8:49 a.m.]

## Chapter VII—Agricultural Stabilization and Conservation Service (Agricultural Adjustment), Department of Agriculture

SUBCHAPTER B—FARM MARKETING QUOTAS AND ACREAGE ALLOTMENTS

[Amdt. 2]

## PART 722—COTTON

### Subpart—Acreage Allotments for 1966 and Succeeding Crops of Upland Cotton

TRANSFER OF COTTON ACREAGE AFFECTED BY NATURAL DISASTER

*Basis and purpose.* This amendment is issued pursuant to the Agricultural Adjustment Act of 1938, as amended (52 Stat. 31, as amended; 7 U.S.C. 1281 et seq.). The purpose of this amendment is to designate States and counties that have been affected by a natural disaster within the meaning of section 344(n) of the act for the 1966 crop.

In order that determinations with respect to transfers of acreage for the 1966 crop may be made prior to the end of the cotton planting season, it is essential that this amendment be made effective as soon as possible. Accordingly, it is hereby determined and found that compliance with the notice, public procedure, and 30-day effective date requirements of section 4 of the Administrative Procedure Act (60 Stat. 238; 5 U.S.C. 1003) is impracticable and contrary to the public interest and this amendment shall be effective upon filing of this document with the Director, Office of the Federal Register.

Section 722.430 of the regulations for Acreage Allotments for 1966 and Succeeding Crops of Upland Cotton (31 F.R. 5300, as amended) is amended by adding a new paragraph (h) at the end thereof as follows:

**§ 722.430 Transfer of farm cotton acreage affected by a natural disaster.**

* * * * *

(h) *1966 crop—designated States and counties affected by a natural disaster.* It is hereby determined that a natural disaster consisting of flood or excessive rainfall in 1966 has prevented timely planting or replanting of a portion of the 1966 farm allotment on some farms in the following designated States and counties:

ARKANSAS

| | |
|---|---|
| Greene. | Prairie. |
| Lawrence. | Woodruff. |
| Randolph. | Craighead. |
| Clay. | Independence. |
| Jackson. | Cross. |
| Little River. | |

ILLINOIS

| | |
|---|---|
| Alexander. | Pulaski. |

LOUISIANA

| | |
|---|---|
| East Carroll. | Catahoula. |
| Madison. | Avoyelles. |
| Tensas. | Natchitoches. |
| Pointe Coupee. | Red River. |
| Rapides. | Bossier. |
| Grant. | Caddo. |
| Concordia. | |

MISSOURI

| | |
|---|---|
| Butler. | Pemiscot. |
| Dunklin. | Ripley. |
| Mississippi. | Scott. |
| New Madrid. | Stoddard. |

(Secs. 344(n), 375; 78 Stat. 177, 52 Stat. 66, as amended; 7 U.S.C. 1344(n), 1375)

*Effective date.* Date of filing this document with the Director, Office of the Federal Register.

Signed at Washington, D.C., on May 20, 1966.

H. D. GODFREY,
*Administrator, Agricultural Stabilization and Conservation Service.*

[F.R. Doc. 66-5817; Filed, May 25, 1966; 8:52 a.m.]

## Chapter IX—Consumer and Marketing Service (Marketing Agreements and Orders; Fruits, Vegetables, Nuts), Department of Agriculture

[Nectarine Reg. 5]

## PART 916—NECTARINES GROWN IN CALIFORNIA

### Limitation of Shipments

**§ 916.327 Nectarine Regulation 5.**

(a) *Findings.* (1) Pursuant to the marketing agreement and this part (Order No. 916) regulating the handling of nectarines grown in the State of California, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601–674), and upon the basis of the recommendations of the Nectarine Administrative Committee, established under the aforesaid marketing agreement and order, and upon other available information, it is hereby found that the limitation of shipments of nectarines of the varieties hereinafter set forth, and in the manner herein provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable, unnecessary, and contrary to the public interest to give preliminary notice, engage in public rulemaking procedure, and postpone the effective date of this section until 30 days after publication thereof in the FEDERAL REGISTER (5 U.S.C. 1001–1011) in that, as hereinafter set forth, the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient; a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provision hereof effective not later than the date hereinafter specified. A reasonable determination as to the supply of, and the demand for, such nectarines must await the development of the crop thereof; adequate information thereon was not available to the Nectarine Administrative Committee until the date hereinafter set forth on which an open meeting was held, after giving due notice thereof, to consider the need for, and the extent of, regulation of shipments of such nectarines; interested persons were afforded an opportunity to submit information and views at this meeting; the recommendation and supporting information for regulation during the period specified herein were promptly submitted to the Department after such meeting was held; shipments of the current crop of such nectarines are expected to begin on or about the effective date hereof; this section should be applicable to all such shipments in order to effectuate the declared policy of the act; the provisions of this section are identical with the aforesaid recommendation of the committee; information concerning such provisions and effective time has been disseminated among handlers of such nectarines; and compliance with the provisions of this section will not

require of handlers any preparation therefor which cannot be completed by the effective time hereof. Such committee meeting was held on May 18, 1966.

(b) *Order.* (1) During the period beginning at 12:01 a.m., P.s.t., June 1, 1966, and ending at 12:01 a.m., P.s.t., November 1, 1966, no handler shall handle any package or container of Quetta, Rose, Early Sun Grand, Sun Grand, Star Grand I, Star Grand II, Red King, Sun Flame, or Grandandy nectarines unless:

(i) Such nectarines, when packed in a No. 26 standard lug box, or in a No. 27 standard lug box, are of a size that will pack, in accordance with the requirements of a standard pack, not more than 96 nectarines in the respective lug box; or

(ii) Such nectarines, when packed in any container other than in a No. 26 standard lug box, or in a No. 27 standard lug box, measure not less than two and one-eighth (2⅛) inches in diameter: *Provided,* That not to exceed ten (10) percent, by count, of the nectarines in any such container may fail to meet such diameter requirement.

(2) When used herein, "diameter" and "standard pack" shall have the same meaning as set forth in the U.S. Standards for Grades of Nectarines (§§ 51.3145–51.3160 of this title; 31 F.R. 6243); "standard basket" shall mean the standard basket set forth in paragraph 1 of section 828.1 of the Agricultural Code of California; "No. 26 standard lug box" and "No. 27 standard lug box," respectively, shall have the same meaning as set forth in section 828.4 of the Agricultural Code of California; and all other terms shall have the same meaning as when used in the marketing agreement and order.

(Secs. 1–19, 48 Stat. 31, as amended; 7 U.S.C. 601–674)

Dated: May 23, 1966.

PAUL A. NICHOLSON,
*Deputy Director, Fruit and Vegetable Division, Consumer and Marketing Service.*

[F.R. Doc. 66–5789; Filed, May 25, 1966; 8:49 a.m.]

[Nectarine Reg. 6]

## PART 916—NECTARINES GROWN IN CALIFORNIA

### Limitation of Shipments

**§ 916.328 Nectarine Regulation 6.**

(a) *Findings.* (1) Pursuant to the marketing agreement and this part (Order No. 916) regulating the handling of nectarines grown in the State of California, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601–674), and upon the basis of the recommendations of the Nectarine Administrative Committee, established under the aforesaid marketing agreement and order, and upon other available information, it is hereby found that the limitation of shipments of nectarines of the varieties hereinafter set forth, and in the manner herein provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable, unnecessary, and contrary to the public interest to give preliminary notice, engage in public rule-making procedure, and postpone the effective date of this section until 30 days after publication thereof in the FEDERAL REGISTER (5 U.S.C. 1001–1011) in that, as hereinafter set forth, the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient; a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provisions hereof effective not later than the date hereinafter specified. A reasonable determination as to the supply of, and the demand for, such nectarines must await the development of the crop thereof; adequate information thereon was not available to the Nectarine Administrative Committee until the date hereinafter set forth on which an open meeting was held, after giving due notice thereof, to consider the need for, and the extent of, regulation of shipments of such nectarines; interested persons were afforded an opportunity to submit information and views at this meeting; the recommendation and supporting information for regulation during the period specified herein were promptly submitted to the Department after such meeting was held; shipments of the current crop of such nectarines are expected to begin on or about the effective date hereof; this section should be applicable to all such shipments in order to effectuate the declared policy of the act; the provisions of this section are identical with the aforesaid recommendation of the committee; information concerning such provisions and effective time has been disseminated among handlers of such nectarines; and compliance with the provisions of this section will not require of handlers any preparation therefor which cannot be completed by the effective time hereof. Such committee meeting was held on May 18, 1966.

(b) *Order.* (1) During the period beginning at 12:01 a.m., P.s.t., June 15, 1966, and ending at 12:01 a.m., P.s.t., November 1, 1966, no handler shall handle any package or container of Early Le Grand, Grand Prize, Granderli, Royal Grand, Grandeur, Le Grand, Late Le Grand, Golden Grand, Gold King, Red Grand, Clinton, Strawberry, Sun Free, Marigold, September Grand, or Regal Grand nectarines unless:

(i) Such nectarines, when packed in a No. 26 standard lug box, or in a No. 27 standard lug box, are of a size that will pack in accordance with the requirements of a standard pack, not more than 88 nectarines in the respective lug box; or

(ii) Such nectarines, when packed in any container other than a No. 26 standard lug box, or in a No. 27 standard lug box, measure not less than two and one-quarter (2¼) inches in diameter: *Provided,* That not to exceed 10 percent, by count, of the nectarines in any such container may fail to meet such diameter requirement.

(2) When used herein, "diameter" and "standard pack" shall have the same meaning as set forth in the U.S. Standards for Grades of Nectarines (§§ 51.3145–51.3160 of this title; 31 F.R. 6243); "No. 26 standard lug box" and "No. 27 standard lug box," respectively, shall have the same meaning as set forth in section 828.4 of the Agricultural Code of California; and all other terms shall have the same meaning as when used in the marketing agreement and order.

(Secs. 1–19, 48 Stat. 31, as amended; 7 U.S.C. 601–674)

Dated: May 23, 1966.

PAUL A. NICHOLSON,
*Deputy Director, Fruit and Vegetable Division, Consumer and Marketing Service.*

[F.R. Doc. 66–5790; Filed, May 25, 1966; 8:49 a.m.]

## PART 918—FRESH PEACHES GROWN IN GEORGIA

### Expenses and Fixing of Rate of Assessment for 1966–67 Fiscal Period

Pursuant to the marketing agreement, as amended, and Order No. 918, as amended (7 CFR Part 918), regulating the handling of fresh peaches grown in Georgia, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601–674), and upon the basis of the proposals submitted by the Industry Committee (established pursuant to said amended marketing agreement and order), it is hereby found and determined that:

**§ 918.205 Expenses and rate of assessment.**

(a) *Expenses.* Expenses that are reasonable and necessary to be incurred by the Industry Committee during the period March 1, 1966, through February 28, 1967, will amount to $15,200.

(b) *Rate of assessment.* The rate of assessment for said period, payable by each handler in accordance with § 918.41, is fixed at eight-tenths of a cent ($0.008) per bushel basket of peaches (net weight 50 pounds), or an equivalent of peaches in other containers or in bulk.

It is hereby further found that it is impracticable, unnecessary, and contrary to the public interest to give preliminary notice, and engage in public rule-making procedure, and good cause exists for not postponing the effective date hereof until 30 days after publication in the FEDERAL REGISTER (5 U.S.C. 1001–1011) in that (1) shipments of fresh peaches have already begun; (2) the relevant provisions of said amended marketing agreement and this part require that rates of assessment fixed for a particular marketing year shall be applicable to all assessable peaches from the beginning of such period; and (3) the current fiscal period began March 1,

1966, and the rate of assessment herein fixed will automatically apply to all assessable peaches beginning with such date.

(Secs. 1–19, 48 Stat. 31, as amended; 7 U.S.C. 601–674)

Dated: May 20, 1966.

PAUL A. NICHOLSON,
*Deputy Director, Fruit and Vegetable Division, Consumer and Marketing Service.*

[F.R. Doc. 66–5818; Filed, May 25, 1966; 8:52 a.m.]

## Chapter XIV—Commodity Credit Corporation, Department of Agriculture

SUBCHAPTER C—EXPORT PROGRAMS

[Amdt. 1]

## PART 1490—PAYMENTS ON EXPORTS OF CERTAIN KINDS OF TOBACCO

### Subpart—Tobacco Export Program

MISCELLANEOUS AMENDMENTS

The regulations issued by CCC, published in 31 F.R. 6862 (May 10, 1966), which contain the terms and conditions of the Payments on Exports of Certain Kinds of Tobacco, are hereby amended as follows:

1. Section 1490.1 is amended to permit export payments on export of additional kinds and crops of tobacco and reads as follows:

§ 1490.1 General.

The regulations in this part state the terms and conditions under which CCC, an agency and instrumentality of the United States within the Department of Agriculture, will make a cash payment to an exporter on exportation of eligible tobacco to an eligible country. Flue-cured tobacco (1960, 1961, and 1962 crops), must have been exported by the exporter pursuant to a contract of sale entered into by him with a foreign buyer on or after the date of issuance of the regulations in this part, or the tobacco must have been purchased by the exporter on or after the date of issuance of the regulations in this part and exported to himself or an affiliate abroad. If additional kinds or crops of tobacco, or both, are made eligible for export payment by an amendment to the regulations in this part, such tobacco must be exported by the exporter pursuant to a sales contract entered into by him with a foreign buyer on or after issuance of such amendment, or must have been purchased by the exporter on or after the date of issuance of the amendment and exported to himself or an affiliate abroad. Export payments will be made on submission of appropriate evidence of compliance with the provisions of this subpart.

2. Section 1490.4 is amended (1) to make the following types, kinds, and crops of tobacco eligible for export payment: (i) Fire-cured tobacco (type 21) of the 1959, 1960, 1961, and 1962 crop years, (ii) fire-cured tobacco (types 22, 23) of the 1960, 1961, and 1962 crop years, and (iii) dark air-cured tobacco (types 35 and 36) of the 1961 and 1962 crop years; and (2) to clarify the term "tobacco." The amended section reads as follows:

§ 1490.4 Eligible tobacco.

Tobacco eligible for export payment under this subpart shall be unmanufactured tobacco of the kinds, types and crop years specified below which, (1) was produced in the United States, (2) was not purchased from CCC loan stocks under terms and conditions providing for or authorizing a refund of part of the purchase price upon proof of exportation, and (3) does not contain siftings, stems (except the stem of the leaf exported), homogenized leaf or scrap:

(a) Flue-cured tobacco (types 11–14), 1960, 1961, and 1962 crop years.

(b) Fire-cured tobacco (type 21), 1959, 1960, 1961, and 1962 crop years.

(c) Fire-cured tobacco (types 22, 23), 1960, 1961, and 1962 crop years.

(d) Dark air-cured tobacco (types 35 and 36), 1961 and 1962 crop years.

3. Section 1490.6 is also amended to permit export payments on certain kinds of tobacco exported after the date of issuance of this amendment. The amended section reads as follows:

§ 1490.6 Sales and purchase contracts.

The eligible flue-cured (1960, 1961, and 1962 crops) tobacco must have been exported by the exporter pursuant to a contract of sale entered into by him with a foreign buyer on or after the date of issuance of the regulations in this part or the eligible tobacco must have been purchased by the exporter after the date of issuance of the regulations in this part and exported to himself or an affiliate in an eligible country. If additional kinds or crops of tobacco, or both, are made eligible for export payment by an amendment to the regulations in this part, such tobacco must have been exported by the exporter pursuant to a sales contract entered into by him with a foreign buyer on or after the issuance of such amendment, or must have been purchased by the exporter on or after the date of issuance of the amendment and exported to himself or an affiliate abroad.

(Secs. 4, 5, 62 Stat. 1070, as amended, 15 U.S.C. 714(b))

*Effective date.* Date of filing with the Office of the Federal Register.

Signed at Washington, D.C., on May 24, 1966.

H. D. GODFREY,
*Executive Vice President, Commodity Credit Corporation.*

[F.R. Doc. 66–5849; Filed, May 24, 1966; 11:23 a.m.]

# Title 14—AERONAUTICS AND SPACE

## Chapter I—Federal Aviation Agency

[Airspace Docket No. 65–CE–135]

## PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

### Alteration of Federal Airways

On January 14, 1966, a notice of proposed rule making was published in the FEDERAL REGISTER (31 F.R. 478) stating that the Federal Aviation Agency was considering amendments to Part 71 of the Federal Aviation Regulations that would raise the floors of Federal airway segments in the Chicago, Ill., Air Route Traffic Control Center area.

Interested persons were afforded an opportunity to participate in the rule making through submission of comments. Due consideration was given to all comments received.

The Air Transport Association of America stated that implementation of the actions proposed in the notice would result in the loss of cardinal altitudes on several airway segments. They are opposed to such loss, especially on airway segments adjacent to terminal areas and on short haul airways. The regulation that raised the floor of control area and which instigated the actions proposed in the Notice, was the subject of rule-making procedures and adopted by the Agency on January 16, 1961 (26 F.R. 570). This regulation was implemented to provide additional uncontrolled airspace for VFR operations. Interested persons were cognizant of the fact that in some instances, minimum en route altitudes would be raised and cardinal altitudes lost. The minimum en route altitudes for the airway segments considered in this docket are now in effect and will not be altered further by adoption of the proposals contained herein. No other comments were received.

In the description of V–55 in the Notice, the Fort Wayne 178° True radial was referred to. This radial should be 128°. Corrective action is taken herein.

In consideration of the foregoing, Part 71 of the Federal Aviation Regulations is amended, effective 0001 e.s.t., July 21, 1966, as hereinafter set forth.

Section 71.123 (31 F.R. 2009, 4839, 5055, 5056, 5057, 5287) is amended as follows:

1. In V–2 all between "Nodine, Minn.," and "INT of Aylmer 087°" is deleted and "including an N alternate; 12 AGL Lone Rock, Wis.; 12 AGL INT Lone Rock 104° and Milwaukee, Wis., 272° radials; 12 AGL Milwaukee; 12 AGL Muskegon, Mich., including a 12 AGL S alternate via INT Milwaukee 102° and Muskegon 252° radials; 12 AGL Lansing, Mich., including a 12 AGL S alternate from Muskegon to Lansing via INT Muskegon 154° and

Grand Rapids, Mich., 284° radials and Grand Rapids; 12 AGL Salem, Mich., including a 12 AGL N alternate via INT Lansing 091° and Salem 308° radials; 12 AGL INT Salem 083° and Aylmer, Ont., Canada, 260° radials; Aylmer;" is substituted therefor.

2. In V–6 all between "Sidney;" and "INT of South Bend 092°" is deleted and "12 AGL North Platte, Nebr.; 12 AGL Grand Island, Nebr.; 12 AGL Omaha, Nebr.; 12 AGL Des Moines, Iowa, including a 12 AGL S alternate; 12 AGL Iowa City, Iowa, including a 12 AGL S alternate via INT Des Moines 112° and Iowa City 252° radials; 12 AGL Cordova, Ill.; 12 AGL Naperville, Ill.; 12 AGL South Bend, Ind.;" is substituted therefor.

3. In V–7 all between "Evansville, Ind.;" and "The airspace below 2000 feet MSL" is deleted and "12 AGL Lewis, Ind.; 12 AGL Terre Haute, Ind., including a 12 AGL W alternate from Evansville to Terre Haute via INT Evansville 001° and Terre Haute 215° radials; 12 AGL Westpoint, Ind.; 12 AGL Lafayette, Ind.; 12 AGL Chicago Heights, Ill.; 12 AGL INT Chicago Heights 358° and Milwaukee, Wis., 137° radials; 12 AGL Milwaukee, including a 12 AGL E alternate via INT Chicago Heights 013° and Milwaukee 137° radials; 12 AGL Green Bay, Wis.; 12 AGL Menomonie, Mich.; 12 AGL Escanaba, Mich." is substituted therefor.

4. In V–8 all between "direct radial to Thurman, Colo." and "Findlay, Ohio;" is deleted and "12 AGL Grand Isle, Nebr., including a 12 AGL N alternate via INT Hayes Center 059° and Grand Isle 273° radials, and also a 12 AGL S alternate; 12 AGL Omaha, Nebr.; 12 AGL Des Moines, Iowa, including a 12 AGL S alternate; 12 AGL Iowa City, Iowa, including a 12 AGL S alternate via INT Des Moines 112° and Iowa City 252° radials; 12 AGL Cordova, Ill.; 12 AGL INT Cordova 088° and Joliet, Ill., 316° radials; 12 AGL Joliet; 12 AGL Chicago Heights, Ill.; 12 AGL Goshen, Ind.;" is substituted therefor.

5. In V–9 all after "Capital, Ill., including a W alternate;" is deleted and "12 AGL Pontiac, Ill.; 12 AGL Joliet, Ill.; 12 AGL Naperville, Ill.; 12 AGL INT Naperville 317° and Milwaukee, Wis., 198° radials; 12 AGL Milwaukee; 12 AGL Oshkosh, Wis.; 12 AGL Green Bay, Wis." is substituted therefor.

6. In V–10 all between "Burlington Iowa;" and "12 AGL Carleton, Mich.;" is deleted and "12 AGL Bradford, Ill.; 12 AGL INT Bradford 050° and Naperville, Ill., 254° radials; 12 AGL Naperville; 12 AGL South Bend, Ind., including a 12 AGL N alternate via INT Naperville 075° and South Bend 290° radials; 12 AGL Litchfield, Mich.;" is substituted therefor.

7. In V–13 all between "Lamoni, Iowa;" and "Farmington, Minn.;" is deleted and "12 AGL Des Moines, Iowa, including a 12 AGL W alternate; 12 AGL Mason City, Iowa, including a 12 AGL E alternate and also a 12 AGL W alternate from Des Moines to Mason City via Fort Dodge, Iowa, excluding the airspace between the main and this W alternate;" is substituted therefor.

8. In V–15 all between "St. Joseph, Mo.;" and "INT Sioux City 340°" is deleted and "12 AGL INT St. Joseph 343° and Neola, Iowa, 157° radials; 12 AGL Neola; 12 AGL INT Neola 322° and Sioux City, Iowa, 159° radials; 12 AGL Sioux City;" is substituted therefor.

9. In V–26 all between "Eau Claire, Wis.;" and "12 AGL INT Salem 138°" is deleted and "12 AGL Wausau, Wis.; 12 AGL Green Bay, Wis.; 12 AGL INT Green Bay 116° and White Cloud, Mich., 302° radials; 12 AGL White Cloud; 12 AGL Lansing, Mich.; 12 AGL Salem, Mich.;" is substituted therefor.

10. In V–30 all before "Waterville, Ohio;" is deleted and "From Milwaukee, Wis., 12 AGL INT Milwaukee 102° and Pullman, Mich., 303° radials; 12 AGL Pullman, including a 12 AGL S alternate via INT Milwaukee 121° and Pullman 282° radials; 12 AGL Litchfield, Mich.;" is substituted therefor.

11. In V–38 all before "Findlay, Ohio;" is deleted and "From Iowa City, Iowa, 12 AGL Moline, Ill.; 12 AGL Joliet, Ill.; 12 AGL Peotone, Ill.; 6 mi. wide 12 AGL Monterey, Ind.; 12 AGL Fort Wayne, Ind.;" is substituted therefor.

12. In V–42 all before "Cleveland, Ohio;" is deleted and "From Flint, Mich.; 12 AGL via INT Flint 133° and Windsor, Ont., 320° radials; 12 AGL Windsor, including an E alternate 12 AGL INT Flint 118° and Windsor 335° radials, 7 mi. wide (3 mi. E and 4 mi. W of centerline), 12 AGL;" is substituted therefor.

13. In V–45 all after "Charleston, W. Va.;" is deleted and "From Waterville, Ohio, 12 AGL Jackson, Mich.;" 12 AGL Lansing, Mich.; 12 AGL Saginaw, Mich.; 12 AGL Alpena, Mich., including a 12 AGL W alternate; 12 AGL Pellston, Mich.;" is substituted therefor.

14. V–48 is amended to read as follows:

V–48 From Burlington, Iowa, 12 AGL Peoria, Ill.; 12 AGL Pontiac, Ill.

15. In V–51 all after "Shelbyville, Ind.;" is deleted and "12 AGL INT Shelbyville 313° and Lafayette, Ind., 136° radials; 12 AGL Lafayette; 12 AGL Chicago Heights, Ill." is substituted therefor.

16. In V–52 all before "Quincy, Ill.;" is deleted and "From Des Moines, Iowa; 12 AGL Ottumwa, Iowa;" is substituted therefor.

17. In V–53 all after "Indianapolis;" is deleted and "12 AGL Westpoint, Ind.; 12 AGL INT Westpoint 326° and Peotone, Ill., 153° radials; 12 AGL Peotone; 12 AGL INT Peotone 003° and Chicago-O'Hare, Ill., 153° radials; 12 AGL Chicago-O'Hare." is substituted therefor.

18. In V–55 all before "Grantsburg, Wis.;" is deleted and "From Dayton, Ohio, 12 AGL Fort Wayne, Ind., including a 12 AGL E alternate via INT Dayton 347° and Fort Wayne 128° radials; 12 AGL Goshen, Ind.; 12 AGL South Bend, Ind.; 12 AGL Keeler, Mich.; 12 AGL Pullman, Mich.; 12 AGL Muskegon, Mich.; 12 AGL INT Muskegon 327° and Green Bay, Wis., 116° radials; 12 AGL Green Bay; 12 AGL Stevens Point, Wis.; 12 AGL INT Stevens Point 281° and Eau Claire, Wis., 107° radials; 12 AGL Eau Claire." is substituted therefor.

19. In V–63 all after "Burlington, Iowa." is deleted and "From INT Polo, Ill., 268° and Janesville, Wis., 239° radials; 12 AGL Janesville; 12 AGL Milwaukee, Wis." is substituted therefor.

20. V–67 is amended to read as follows:

V–67 From Cedar Rapids, Iowa; 12 AGL Waterloo, Iowa; 12 AGL Mason City, Iowa; 12 AGL Rochester, Minn., including a 12 AGL W alternate via INT Mason City 023° and Rochester 243° radials.

21. In V–69 all after "Capital, Ill.;" is deleted and "12 AGL Pontiac, Ill.; 12 AGL Joliet, Ill.; 12 AGL Kedzie, Ill., RBN." is substituted therefor.

22. In V–82 all after "Nodine, Minn.;" is deleted and "12 AGL Dells, Wis.; 12 AGL INT Dells 097° and Timmerman, Wis., 322° radials; 6 mi. wide, 12 AGL Timmerman." is substituted therefor.

23. In V–84 all before "12 AGL Buffalo, N.Y.;" is deleted and "From Bradford, Ill.; 12 AGL INT Bradford 033° and Chicago-O'Hare, Ill., 269° radials; 12 AGL Chicago-O'Hare. From Northbrook, Ill., 12 AGL Pullman, Mich.; 12 AGL Lansing, Mich.; 12 AGL Flint, Mich.; 12 AGL Peck, Mich.; 12 AGL London, Ont., Canada;" is substituted therefor.

24. In V–92 all before "Waterville, Ohio;" is deleted and "From Joliet, Ill., 12 AGL Chicago Heights, Ill.; 12 AGL Goshen, Ind.;" is substituted therefor.

25. V–96 is amended to read as follows:

V–96 From Indianapolis, Ind., 12 AGL Kokomo, Ind.; 12 AGL Fort Wayne, Ind.; to Waterville, Ohio.

26. In V–97 all between "Shelbyville, Ind.," and "INT of Nodine direct radial" is deleted and "12 AGL INT Shelbyville 313° and Lafayette, Ind., 136° radials; 12 AGL Lafayette, including a 12 AGL W alternate from Shelbyville to Lafayette via Indianapolis, Ind., and INT Indianapolis 344° and Shelbyville 313° radials and INT Shelbyville 313° and Lafayette 136° radials; 12 AGL Chicago Heights, Ill. From INT Northbrook, Ill., 273° and Naperville, Ill., 340° radials; 12 AGL INT Naperville 340° and Janesville, Wis., 111° radials; 12 AGL Janesville; 12 AGL INT Janesville 294° and Lone Rock, Wis., 147° radials; 12 AGL Lone Rock; 12 AGL Nodine, Wis.;" is substituted therefor.

27. In V–100 all after "Sioux City, Iowa;" is deleted and "12 AGL Fort Dodge, Iowa; 12 AGL Waterloo, Iowa; 12 AGL Dubuque, Iowa; 12 AGL Rockford, Ill.; 12 AGL Northbrook, Ill.; 12 AGL INT Northbrook 093° and Keeler, Mich., 271° radials; 12 AGL Keeler; 12 AGL Jackson, Mich.; 12 AGL INT Jackson 084° and Salem, Mich., 254° radials; 12 AGL Salem." is substituted therefor.

28. In V–116 all between "Quincy, Ill.;" and "Windsor, Ontario;" is deleted and "12 AGL Peoria, Ill.; 12 AGL Joliet, Ill.; 12 AGL Naperville, Ill.; 12 AGL Keeler, Mich.; 12 AGL Jackson, Mich.; 12 AGL INT Jackson 084° and Salem, Mich., 254° radials; 12 AGL Salem; 12 AGL" is substituted therefor.

29. In V–126 all before "Waterville, Ohio;" is deleted and "From Chicago Heights, Ill., 12 AGL Goshen, Ind.;" is substituted therefor.

30. V–127 is amended to read as follows:

V–127 From Bradford, Ill., 12 AGL Polo, Ill.; 12 AGL Rockford, Ill.

31. In V–128 all before "INT Indianapolis 137°" is deleted and "From Chicago-O'Hare, Ill., 12 AGL INT Chicago-O'Hare 153° and Peotone, Ill., 003° radials; 12 AGL Peotone; 12 AGL INT Peotone 153° and Westpoint, Ind., 326° radials; 12 AGL Westpoint; 12 AGL Indianapolis, Ind.;" is substituted therefor.

32. In V–129 all between "Waukon, Iowa;" and "From Duluth, Minn.," is deleted and "12 AGL Nodine, Minn.; 12 AGL Eau Claire, Wis." is substituted therefor.

33. In V–133 all between "12 AGL Salem;" and "to Marquette, Mich." is deleted and "12 AGL Flint, Mich.; 12 AGL Saginaw, Mich.; 12 AGL Traverse City, Mich., 12 AGL Escanaba, Mich.;" is substituted therefor.

34. In V–138 all after "Sidney, Nebr." is deleted and "From Grand Island, Nebr., 12 AGL INT Grand Island 099° and Raymond, Nebr., 267° radials; 12 AGL Raymond; 12 AGL INT Raymond 040° and Neola, Iowa, 251° radials; 12 AGL Neola; 12 AGL Fort Dodge, Iowa." is substituted therefor.

35. In V–144 all before "Findlay, Ohio;" is deleted and "From Chicago-O'Hare, Ill., 12 AGL INT Chicago-O'Hare 153° and Peotone, Ill., 003° radials; 12 AGL Peotone; 6 mi. wide, 12 AGL Monterey, Ind.; 12 AGL Fort Wayne, Ind.;" is substituted therefor.

36. V–158 is amended to read as follows:

V–158 From Waterloo, Iowa, 12 AGL Dubuque, Iowa; 12 AGL Polo, Ill. The airspace within R–3302 is excluded.

37. In V–161 all between "Lamoni;" and "Rochester, Minn.;" is deleted and "12 AGL Des Moines, Iowa; 12 AGL Newton, Iowa; 12 AGL Waterloo, Iowa, including a 12 AGL W alternate from Des Moines to Waterloo via INT Des Moines 023° and Waterloo 241° radials;" is substituted therefor.

38. In V–170 all between "to Farmington, Minn." to "From Erie, Pa.," is deleted and "From Nodine, Minn., 12 AGL Dells, Wis.; 12 AGL INT Dells 097° and Milwaukee, Wis., 307° radials; 12 AGL Milwaukee; 12 AGL INT Milwaukee 102° and Pullman, Mich., 303° radials; 12 AGL Pullman; 12 AGL Salem, Mich." is substituted therefor.

39. In V–171 all before "INT Nodine 298°" is deleted and "From Louisville, Ky., via Scotland, Ind.; 12 AGL Lewis, Ind.; 12 AGL Danville, Ill.; 12 AGL Peotone, Ill.; 12 AGL Joliet, Ill.; 12 AGL Rockford, Ill.; 12 AGL Lone Rock, Wis.; 12 AGL Nodine, Minn.;" is substituted therefor.

40. In V–172 all after "North Platte;" is deleted and "12 AGL INT North Platte 073° and Wolbach, Nebr., 266° radials; 12 AGL Wolbach; 12 AGL Neola, Iowa; 12 AGL Newton, Iowa; 12 AGL Cedar Rapids, Iowa; 12 AGL Polo, Ill.; 12 AGL Chicago-O'Hare, Ill.; 12 AGL INT Chicago-O'Hare 077° and South Bend, Ind., 310° radials; 12 AGL South Bend." is substituted therefor.

41. V–173 is amended to read as follows:

V–173 From Capital, Ill., 12 AGL Roberts, Ill.; 12 AGL INT Roberts 008° and Joliet, Ill., 067° radials; 12 AGL Kedzie, Ill., RBN.

42. V–177 is amended to read as follows:

V–177 From Fort Wayne, Ind., 12 AGL via Monterey, Ind.; 6 mi. wide, 12 AGL INT Monterey 277° and Chicago Heights, Ill., 140° radials; 12 AGL Chicago Heights. From Naperville, Ill., 12 AGL Janesville, Wis.

43. In V–181 all before "Sioux Falls, S. Dak.;" is deleted and "From Omaha, Nebr., 12 AGL Norfolk, Nebr.; 12 AGL Yankton, S. Dak.;" is substituted therefor.

44. V–193 is amended to read as follows:

V–193 From INT Pullman, Mich., 243° and South Bend, Ind., 310° radials; 12 AGL Pullman; 12 AGL INT Pullman 029° and White Cloud, Mich., 168° radials; 12 AGL White Cloud; 12 AGL Traverse City, Mich., including a 12 AGL W alternate via INT White Cloud 329° and Traverse City 235° radials; 12 AGL Pellston, Mich.; 12 AGL INT Pellston 003° and Sault Ste. Marie, Mich., 214° radials; 12 AGL Sault Ste. Marie.

45. In V–205 all after "St. Joseph, Mo.;" is deleted and "12 AGL INT St. Joseph 343° and Omaha, Nebr., 124° radials; 12 AGL Omaha; 12 AGL Sioux City, Iowa, including a 12 AGL W alternate via INT Omaha 320° and Sioux City 174° radials." is substituted therefor.

46. V–215 is amended to read as follows:

V–215 From INT Muskegon, Mich., 208° and Pullman, Mich., 259° radials; 12 AGL Muskegon; 12 AGL White Cloud, Mich.

47. V–216 is amended to read as follows:

V–216 From Lamar, Colo., 12 AGL Hill City, Kans.; 12 AGL Mankato, Kans.; 12 AGL Pawnee City, Nebr.; 12 AGL Lamoni, Iowa; 12 AGL Ottumwa, Iowa; 12 AGL Iowa City, Iowa. From Janesville, Wis., 12 AGL via INT Janesville 076° and Muskegon, Mich., 252° radials; 12 AGL Muskegon; 12 AGL Saginaw, Mich.; 12 AGL Peck, Mich.; 12 AGL Kleinburg, Ont., Canada. The airspace within Canada is excluded.

48. V–217 is amended to read as follows:

V–217 From Chicago-O'Hare, Ill., 12 AGL INT Chicago-O'Hare 019° and Milwaukee, Wis., 137° radials; 12 AGL INT Milwaukee 137° radial and Milwaukee (General Mitchell Field) ILS front course; 12 AGL Milwaukee (General Mitchell Field) ILS localizer; 12 AGL INT Milwaukee (General Mitchell Field) ILS localizer back course and Green Bay, Wis., 165° radial; 12 AGL Green Bay; Rhinelander, Wis.; to Duluth, Minn.

49. In V–219 all before "Maukato, Minn.;" is deleted and "From Hayes Center, Nebr., 12 AGL INT Hayes Center 059° and Wolbach, Nebr., 251° 12 AGL Wolbach; 12 AGL Norfolk, Nebr.; 12 AGL Sioux City, Iowa;" is substituted therefor.

50. In V–220 all after "McCook;" is deleted and "12 AGL INT McCook 072° and Grand Island, Nebr., 241° radials; 12 AGL Grand Island." is substituted therefor.

51. V–221 is amended to read as follows:

V–221 From Fort Wayne, Ind., 12 AGL via Litchfield, Mich.; 12 AGL Jackson, Mich.; 12 AGL INT Jackson 084° and Salem, Mich., 254° radials; 12 AGL Salem; 12 AGL INT Salem 083° and Erie, Pa., 290° radials; 12 AGL Erie. The airspace within Canada is excluded.

52. V–227 is amended to read as follows:

V–227 From Indianapolis, Ind., 12 AGL INT Indianapolis 312° and Lafayette, Ind., 159° radials; 12 AGL Lafayette.

53. V–228 is amended to read as follows:

V–228 From Northbrook, Ill., 12 AGL South Bend, Ind.

54. V–233 is amended to read as follows:

V–233 From Capital, Ill., 12 AGL via Peoria, Ill.; 12 AGL Cordova, Ill.; 12 AGL Cedar Rapids, Iowa.

55. V–255 is amended to read as follows:

V–255 From Burlington, Iowa, 12 AGL Moline, Ill.; 12 AGL Cordova, Ill.; 12 AGL Rockford, Ill.; 12 AGL Janesville, Wis.; 12 AGL INT Janesville 344° and Dells, Wis., 143° radials; 12 AGL Dells; 12 AGL Stevens Point, Wis.

56. V–262 is amended to read as follows:

V–262 From Peoria, Ill., 12 AGL Bradford, Ill.; 12 AGL Joliet, Ill.; 12 AGL Kedzie, Ill., RBN.

57. V–274 is amended to read as follows:

V–274 From Pullman, Mich., 12 AGL Grand Rapids, Mich.; 12 AGL Saginaw, Mich.

58. V–277 is amended to read as follows:

V–277 From Rosewood, Ohio, 12 AGL Fort Wayne, Ind.; 12 AGL Keeler, Mich.

59. V–285 is amended to read as follows:

V–285 From Indianapolis, Ind., 12 AGL Kokomo, Ind.; 12 AGL Goshen, Ind. From South Bend, Ind., 12 AGL Kalamazoo, Mich.; 12 AGL INT Kalamazoo 014° and Grand Rapids, Mich., 167° radials; 12 AGL Grand Rapids; 12 AGL White Cloud, Mich.

60. V–294 is amended to read as follows:

V–294 From Des Moines, Iowa, 12 AGL INT Des Moines 086° and Cedar Rapids, Iowa, 238° radials; 12 AGL Cedar Rapids.

61. V–320 is amended to read as follows:

V–320 From Peck, Mich., 12 AGL Toronto, Ont., Canada. The airspace within Canada is excluded.

62. In V–422 all before "INT of Fort Wayne" is deleted and "From Chicago Heights, Ill., 12 AGL INT Chicago Heights 117° and Knox, Ind., 276° radials; 12 AGL Knox; 12 AGL Wolflake, Ind.;" is substituted therefor.

63. V–429 is amended to read as follows:

V–429 From Decatur, Ill., 12 AGL Champaign, Ill.; 12 AGL Roberts, Ill.; 12 AGL Joliet, Ill.; 12 AGL INT Joliet 008° and Naperville, Ill., 340° radials; 12 AGL INT Naperville 340° and Milwaukee, Wis., 198° radials; 12 AGL Milwaukee.

64. V–434 is amended to read as follows:

V–434 From Ottumwa, Iowa, 12 AGL Moline, Ill.; 12 AGL Peoria, Ill.

65. V–450 is amended to read as follows:

V–450 From Muskegon, Mich., 12 AGL Green Bay, Wis.

66. V–479 is amended to read as follows:

V–479 From Northbrook, Ill., 12 AGL INT Northbrook 348° and Milwaukee, Wis., 161° radials; 12 AGL Milwaukee.

67. V–491 is amended to read as follows:

V–491 From Lafayette, Ind., 12 AGL INT Lafayette 313° and Peotone, Ill., 153° radials; 12 AGL Peotone.

(Sec. 307(a), Federal Aviation Act of 1958 (49 U.S.C. 1348))

Issued in Washington, D.C., on May 20, 1966.

H. B. HELSTROM,
*Acting Chief, Airspace and Air Traffic Rules Division.*

[F.R. Doc. 66–5742; Filed, May 25, 1966; 8:45 a.m.]

---

[Airspace Docket No. 65–SO–82]

## PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

### Alteration and Revocation of Transition Areas

The purpose of these amendments to Part 71 of the Federal Aviation Regulations is to alter the Macon, Ga., and the Greenville, S.C., transition areas and to revoke the Junction City, Ga., transition area.

Because of the airway reconfiguration and renumbering (Airspace Docket No. 65–SO–59) it is necessary to editorially alter the Macon, Ga., and Greenville, S.C., transition areas and to revoke the Junction City, Ga., transition area.

Since these amendments are less restrictive or editorial in nature and impose no additional burden on any person, notice and public procedure hereon are unnecessary.

In consideration of the foregoing, Part 71 of the Federal Aviation Regulations is amended, effective 0001 e.s.t., July 21, 1966, as hereinafter set forth.

1. In § 71.181 (31 F.R. 2149) the Macon, Ga., transition area (31 F.R. 2888 and 31 F.R. 6827) is amended by substituting "V–18S" for "V–18" wherever it appears.

2. In § 71.181 (31 F.R. 2149) the Greenville, S.C., transition area is amended by deleting "V–194" wherever it appears.

3. In § 71.181 (31 F.R. 2149) the Junction City, Ga., transition area is revoked.

(Sec. 307(a), Federal Aviation Act of 1958; 49 U.S.C. 1348(a))

Issued in East Point, Ga., on May 18, 1966.

WILLIAM M. FLENER,
*Acting Director, Southern Region.*

[F.R. Doc. 66–5744; Filed, May 25, 1966; 8:45 a.m.]

---

[Airspace Docket No. 66–SO–18]

## PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

### Alteration of Transition Areas

The purpose of these amendments to Part 71 of the Federal Aviation Regulations is to alter the Montgomery, Ala., and the Birmingham, Ala., transition areas.

The Montgomery and Birmingham transition areas are described in § 71.181 (31 F.R. 2149).

Because of the airway reconfiguration proposed in Airspace Docket No. 65–SO–59, it is necessary to alter the Montgomery and Birmingham, Ala., transition areas.

Since these changes are editorial in nature and impose no additional burden on any person, notice and public procedure hereon are unnecessary.

In consideration of the foregoing, Part 71 of the Federal Aviation Regulations is amended, effective 0001 e.s.t., July 21, 1966, as hereinafter set forth.

In § 71.181 (31 F.R. 2149) the Montgomery, Ala. (31 F.R. 4889) and the Birmingham, Ala., transition areas are amended to read:

MONTGOMERY, ALA.

That airspace extending upward from 700 feet above the surface within an 8-mile radius of Dannelly Field (latitude 32°18'00" N., longitude 86°23'36" W.); within an 8-mile radius of Maxwell AFB (latitude 32°22'48" N., longitude 86°21'55" W.); within 8 miles S and 5 miles N of the Dannelly Field ILS localizer W course extending from the airport to 12 miles W of the LOM; within 2 miles each side of the Maxwell AFB VOR 148° radial extending from the Maxwell AFB 8-mile radius area to the VOR; within 2 miles each side of the 269° bearing from the Dannelly Field LOM extending from the LOM to 17 miles W, excluding the portion which coincides with the Selma, Ala., transition area; and that airspace extending upward from 1,200 feet above the surface bounded by a line beginning at the intersection of the W boundary of V–7 and the S boundary of V–66 extending eastward along the S boundary of V–66 to longitude 86°00'00" W., thence S along longitude 86°00'00" W., to the E boundary of V–159, thence SE along the E boundary of V–159 to the N boundary of V–20N, thence SE to latitude 32°30'00" N., longitude 85°29'00" W., thence S along longitude 85°29'00" W. to the N boundary of V–70, thence W along the N boundary of V–70 to longitude 87°00'00" W., thence N along longitude 87°00'00" W. to a 35-mile radius arc centered on the Selma, Ala., VOR, thence clockwise along that 35-mile radius arc and a 35-mile radius arc centered at latitude 32°27'25" N., longitude 87°05'14" W. to the W boundary of V–7, thence N along the W boundary of V–7 to point of beginning; and that airspace extending upward from 6,000 feet MSL bounded on the N by the S boundary of V–154, on the NE by a 35-mile radius arc centered on the Selma, Ala., VOR, on the E by longitude 87°28'00" W., on the S by latitude 31°54'00" N., and on the W by the E boundary of V–209 and a line extending from the intersection of the E boundary of V–209 and a 30-mile radius arc centered on the Meridian, Miss., VORTAC to latitude 32°18'00" N., longitude 88°20'00" W.

BIRMINGHAM, ALA.

That airspace extending upward from 700 feet above the surface within a 9-mile radius of the Birmingham Municipal Airport (latitude 33°33'50" N., longitude 86°45'30" W.); within 8 miles NW and 5 miles SE of the Birmingham ILS localizer SW course extending from the OM to 17 miles SW; and that airspace extending upward from 1,200 feet above the surface bounded by a line beginning at latitude 34°00'00" N., longitude 87°-30'00" W., extending E along latitude 34°00'-00" N. to a line 11 miles NW of and parallel to V–115; thence NE along this line to latitude 34°15'00" N.; thence E along latitude 34°15'00" N. to longitude 86°15'00" W.; thence S along longitude 86°15'00" W. to latitude 34°00'00" N.; thence SE to the intersection of a line 7 miles N of and parallel to V–18 and longitude 86°01'00" W.; thence E along a line 7 miles N of and parallel to V–18 to longitude 85°33'00" W.; thence S along longitude 85°33'00" W. to the S boundary of V–18; thence W along the S boundary of V–18 to longitude 86°00'00" W.; thence S along longitude 86°00'00" W. to the S boundary of V–66; thence W along the S boundary of V–66 to a line extending from latitude 33°-01'00" N., longitude 87°18'15" W. through latitude 33°11'00" N., longitude 87°06'40" W.; thence SW to latitude 33°01'00" N., longitude 87°18'15" W.; thence W along latitude 33°01'00" N. to the SE boundary of V–209; thence SW along the SE boundary of V–209 to a 19-mile radius arc centered on the Tuscaloosa, Ala., VOR; thence clockwise along this arc to longitude 87°30'00" W.; thence N along longitude 87°30'00" W. to point of beginning, excluding that portion that coincides with R–2101 and the Gadsden, Ala., transition area.

(Sec. 307(a), the Federal Aviation Act of 1958 (49 U.S.C. 1348(a))

Issued in East Point, Ga., on May 18, 1966.

WILLIAM M. FLENER,
*Acting Director, Southern Region.*

[F.R. Doc. 66–5745; Filed, May 25, 1966; 8:45 a.m.]

---

[Airspace Docket No. 65–SO–83]

## PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

### Alteration of Transition Areas and Control Zone

On March 23, 1966, a notice of proposed rule making was published in the FEDERAL REGISTER (31 F.R. 4843) stating that the Federal Aviation Agency was considering an amendment to Part 71 of the Federal Aviation Regulations that would alter the Atlanta, Ga., and Chattanooga, Tenn., transition areas and the Atlanta, Ga., control zone.

Interested persons were afforded an opportunity to participate in the rule making through the submission of comments. All comments received were favorable.

In consideration of the foregoing, Part 71 of the Federal Aviation Regulations is amended, effective 0001 e.s.t., July 21, 1966, as hereinafter set forth.

1. In § 71.181 (31 F.R. 2149) the Atlanta, Ga., transition area is amended to read:

ATLANTA, GA.

That airspace extending upward from 700 feet above the surface within a 15-mile radius of the Atlanta Airport (latitude 33°38'42" N., longitude 84°25'37" W.), excluding the airspace within a 1.5-mile radius of the South Fulton Skyport, Atlanta, Ga. (latitude 33°32'47" N., longitude 84°38'31" W.), and the Gunn Airport, Atlanta, Ga. (latitude 33°43'14" N., longitude 84°09'56" W.); within a 5-mile radius of the DeKalb-Peachtree Airport, Chamblee, Ga. (latitude 33°52'30" N., longitude 84°18'10" W.); within 5 miles SW and 8 miles NE of the Atlanta ILS localizer SE course, extending from the LOM to 12 miles SE of the LOM; within 2 miles each side of the 114° bearing from the Runway 33 LOM, extending from the 15-mile radius area to 17 miles SE of the LOM; that airspace extending upward from 1200 feet above the surface within a 50-mile radius of the Atlanta Airport; within a 30-mile radius of Lost Mountain, Ga., RBN; that airspace NW of Lost Mountain, Ga., extending from the 30-mile radius area bounded on the W by longitude 85°00'00" W., on the N by latitude 34°30'00" N., and on the E by the W boundary of V-5W, excluding the portion that coincides with the Chattanooga, Tenn., transition area; that airspace N of Atlanta extending from the 50-mile radius area bounded on the W by V-51, on the N by V-54, on the E by V-267; that airspace NE of Atlanta bounded on the N by V-54, on the E by a line 5 miles E of and parallel to the Knoxville VORTAC 166° radial and the Norcross VORTAC 025° radial, on the S by V-222 and on the W by V-267; that airspace NE and E of Atlanta extending from the 50-mile radius area bounded on the NW by V-222, on the E by a line extending from the SE boundary of V-222 west of Greenville, S.C., counterclockwise along the arc of a 30-mile radius circle centered at latitude 34°48'45" N., longitude 82°20'30" W., to its INT with the arc of a 15-mile radius circle centered at the Greenwood VOR, thence counterclockwise along this arc to its INT with the N boundary of V-454, thence via the N boundary of V-454 to longitude 83°00'00" W., thence via longitude 83°00'00" W. to the N boundary of V-18S, and on the S by the N boundary of V-18S; that airspace SW of Atlanta extending from the 50-mile radius area bounded on the N by V-18, on the S by V-20N, on the SW by V-159 and on the W by longitude 86°00'-00" W., and that airspace W of Atlanta extending from the 50-mile radius area bounded on the N by a line 12 miles N of and parallel to the Runway 9L ILS localizer W course, on the S by V-18, and on the W by longitude 85°33'00" W., excluding the portion within R-3001.

2. In § 71.181 (31 F.R. 2149) the Chattanooga, Tenn., transition area is amended to read:

CHATTANOOGA, TENN.

That airspace extending upward from 700 feet above the surface within a 14-mile radius of Lovell Field, Chattanooga, Tenn. (latitude 35°02'05" N., longitude 85°12'10" W.), extending clockwise from the 020° to the 250° bearings from the airport; within a 20-mile radius of Lovell Field, extending clockwise from the 250° to the 020° bearings from the airport; within 4 miles each side of the Chattanooga VORTAC 263° radial, extending between the arcs of a 14-mile and a 25-mile radius circle each centered at Lovell Field; within 8 miles E and 5 miles W of the North Chattanooga, Tenn., RBN 016° bearing, extending from the RBN to 12 miles N; that airspace extending upward from 1,200 feet above the surface within a 25-mile radius of Lovell Field; within the area SE of Chattanooga, extending from the 25-mile radius area bounded on the E by the W boundary of V-5W, on the S by a line through latitude 34°-26'58" N., longitude 84°55'58" W., and latitude 34°25'30" N., longitude 84°59'30" W., and on the W by a line 9 miles W of and parallel to the Chattanooga VORTAC 152° radial; within the area S, extending from the 25-mile radius area bounded on the E by a line 9 miles W of and parallel to the Chattanooga VORTAC 152° radial, on the S by latitude 34°37'00" N., on the W by the E boundary of V-115E; within the area N, NE, and NW of Chattanooga extending from the 25-mile radius area bounded by a line beginning at the INT of the arc of a 25-mile radius circle centered at Lovell Field and a line 6 miles W of and parallel to the Chattanooga VORTAC 313° radial; thence NW along a line 6 miles W of and parallel to the Chattanooga VORTAC 313° radial, to and clockwise along the arc of a 50-mile radius circle centered on the Chattanooga VORTAC, to the W boundary of V-51W; thence S along the W boundary of V-51W to latitude 35°24'30" N., thence to latitude 35°22'45" N., longitude 84°45'00" W.; to latitude 35°17'30" N., longitude 84°-45'10" W.; to latitude 35°08'20" N., longitude 84°45'35" W.; thence via latitude 35°08'20" N., to the arc of a 25-mile radius circle centered at Lovell Field; and that airspace extending upward from 3,000 feet MSL bounded on the N by V-54, on the NE by the arc of a 25-mile radius circle centered at Lovell Field, on the SE by V-115, and on the W by a line extending through latitude 34°32'00" N., longitude 85°52'15" W., and latitude 34°-48'00" N., longitude 85°57'10" W., excluding the portion that coincides with the Rome, Ga., transition area.

3. In § 71.171 (31 F.R. 2065) the Atlanta, Ga., control zone is amended to read:

ATLANTA, GA.

Within a 5-mile radius of Atlanta Airport (latitude 33°38'42" N., longitude 84°25'37" W.); within 2 miles each side of the Atlanta ILS Runway 9L localizer W course, extending from the 5-mile radius zone to the OM; within 2 miles each side of the Atlanta ILS localizer SE course, extending from the 5-mile radius zone to the OM; within 2 miles each side of the Atlanta ILS Runway 9L localizer E course, extending from the 5-mile radius zone to 8.5 miles E of the airport reference point; within 2 miles each side of the ILS Runway 9R localizer W course, extending from the 5-mile radius zone to the LOM; within 2 miles each side of the Rex, Ga., VOR 271° radial, extending from the 5-mile radius zone to 8.5 miles E of the Atlanta Airport and within a 3-mile radius of Morris AAF (latitude 33°37'20" N., longitude 84°-20'30" W.).

(Sec. 307(a), the Federal Aviation Act of 1958 (49 U.S.C. 1348(a))

Issued in East Point, Ga., on May 18, 1966.

WILLIAM M. FLENER,
*Acting Director, Southern Region.*

[F.R. Doc. 66-5746; Filed, May 25, 1966; 8:45 a.m.]

[Airspace Docket No. 65-WE-102]

## PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

### Designation of Control Zone and Transition Area

On March 30, 1966, a notice of proposed rule making was published in the FEDERAL REGISTER (31 F.R. 5133) stating that the Federal Aviation Agency was considering amendments to Part 71 of the Federal Aviation Regulations which would designate controlled airspace in the Flagstaff, Ariz., terminal area.

Interested persons were afforded an opportunity to participate in the rule making through submission of comments. The one comment received was favorable.

In consideration of the foregoing, Part 71 of the Federal Aviation Regulations is amended, effective 0001 e.s.t., August 18, 1966, as hereinafter set forth:

In § 71.171 (31 F.R. 2065) the following control zone is added:

FLAGSTAFF, ARIZ. (PULLIAM AIRPORT)

That airspace within a 5-mile radius of Pulliam Airport (latitude 35°08'16" N., longitude 111°40'17" W.), within 2 miles each side of the Flagstaff VOR 084° radial, extending from the 5-mile radius zone to 11.5 miles E of the VOR, within 2 miles each side of the Flagstaff VOR 096° radial extending from the 5-mile radius zone to 7.5 miles E of the VOR, and within 2 miles each side of the Flagstaff VOR 189° radial extending from the 5-mile radius zone to 7.5 miles S of the VOR.

In § 71.181 (31 F.R. 2149) the following transition area is added:

FLAGSTAFF, ARIZ. (PULLIAM AIRPORT)

That airspace extending upward from 700 feet above the surface within a 10-mile radius of Pulliam Airport (latitude 35°08'16" N., longitude 111°40'17" W.); that airspace extending upward from 1,200 feet above the surface within an arc of a 26-mile radius circle centered on the Flagstaff VOR (latitude 35°-08'50" W., longitude 111°40'24" W.), extending from a line 5 miles NW of and parallel to the Flagstaff VOR 054° radial clockwise to a line 5 miles N of and parallel to the Flagstaff VOR 297° radial, and within 9 miles N and 6 miles S of the Flagstaff VOR 096° radial extending from the 26-mile radius area to 35 miles E of the VOR, excluding that portion within R-2302.

(Sec. 307(a), Federal Aviation Act of 1958, as amended (72 Stat. 749; 49 U.S.C. 1348))

Issued in Los Angeles, Calif., on May 18, 1966.

LEE E. WARREN,
*Acting Director, Western Region.*

[F.R. Doc. 66-5747; Filed, May 25, 1966; 8:45 a.m.]

---

[Airspace Docket No. 65-CE-150]

## PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

### Designation of Federal Airway

On February 9, 1966, a notice of proposed rule making was published in the

FEDERAL REGISTER (31 F.R. 2553) stating that the Federal Aviation Agency was considering an amendment to Part 71 of the Federal Aviation Regulations that would designate a VOR Federal airway with a floor of 1,200 feet AGL from Bradford, Ill., via Peotone, Ill.; Knox, Ind.; to South Bend, Ind.

Interested persons were afforded an opportunity to participate in the proposed rule making through the submission of comments. All comments received were favorable.

In consideration of the foregoing, Part 71 of the Federal Aviation Regulations is amended, effective 0001 e.s.t., July 21, 1966, as hereinafter set forth.

Section 71.123 (31 F.R. 2009) is amended by adding the following:

V-332 From Bradford, Ill., 12 AGL Peotone, Ill.; 12 AGL Knox, Ind.; 12 AGL South Bend, Ind.

(Sec. 307(a), Federal Aviation Act of 1958 (49 U.S.C. 1348))

Issued in Washington, D.C., on May 19, 1966.

T. MCCORMACK,
*Acting Chief, Airspace and Air Traffic Rules Division.*

[F.R. Doc. 66-5748; Filed, May 25, 1966; 8:45 a.m.]

---

[Airspace Docket No. 66-CE-18]

## PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

### Designation of Transition Area

On March 18, 1966, a notice of proposed rule making was published in the FEDERAL REGISTER (31 F.R. 4600) stating that the Federal Aviation Agency proposed to designate controlled airspace in the vicinity of Connersville, Ind.

Interested persons were afforded an opportunity to participate in the rule making through submission of comments. All comments received were favorable.

In consideration of the foregoing, Part 71 of the Federal Aviation Regulations is amended effective 0001 e.s.t., July 21, 1966, as hereinafter set forth:

In § 71.181 (31 F.R. 2149) the following transition area is added:

CONNERSVILLE, IND.

That airspace extending upward from 700 feet above the surface within a 6-mile radius of the Mettel Airport (latitude 39°41'50" N., longitude 85°07'55" W.), and within 2 miles each side of the 015° bearing from the Mettel Airport extending from the 6-mile radius area to 8 miles north of the airport.

(Sec. 307(a), Federal Aviation Act of 1958 (49 U.S.C. 1348))

Issued in Kansas City, Mo., on May 17, 1966.

FRANCIS E. UNTI,
*Acting Director, Central Region.*

[F.R. Doc. 66-5749; Filed, May 25, 1966; 8:45 a.m.]

---

[Airspace Docket No. 66-CE-17]

## PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

### Designation of Transition Area

On March 18, 1966, a notice of proposed rule making was published in the FEDERAL REGISTER (31 F.R. 4600) stating that the Federal Aviation Agency proposed to designate controlled airspace in the vicinity of Gaylord, Mich.

Interested persons were afforded an opportunity to participate in the rule making through submission of comments. All comments received were favorable.

In consideration of the foregoing, Part 71 of the Federal Aviation Regulations is amended effective 0001 e.s.t., July 21, 1966, as hereinafter set forth:

In § 71.181 (31 F.R. 2149) the following transition area is added:

GAYLORD, MICH.

That airspace extending upward from 700 feet above the surface within a 6-mile radius of the Otsego County Airport (latitude 45°00'50" N., longitude 84°41'45" W.), and within 2 miles each side of the 087° bearing from Otsego County Airport extending from the 6-mile radius area to 8 miles E of the airport; and that airspace extending upward from 1,200 feet above the surface within 8 miles N and 5 miles S of the 087° bearing from Otsego County Airport extending from the airport to 12 miles E of the airport and within 5 miles each side of the 304° bearing from Otsego County Airport extending from the airport to V-193.

(Sec. 307(a), Federal Aviation Act of 1958 (49 U.S.C. 1348))

Issued in Kansas City, Mo., on May 17, 1966.

FRANCIS E. UNTI,
*Acting Director, Central Region.*

[F.R. Doc. 66-5750; Filed, May 25, 1966; 8:45 a.m.]

---

[Airspace Docket No. 65-WE-16]

## PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

## PART 75—ESTABLISHMENT OF JET ROUTES

### Alteration of Federal Airway and Jet Route

On January 5, 1966, a notice of proposed rule making was published in the FEDERAL REGISTER (31 F.R. 99), stating that the Federal Aviation Agency was considering the realignment of V-507 from Lovelock, Nev., to Sod House, Nev., and the realignment of J-7 from Reno, Nev., to Rome, Oreg. In addition, it was proposed to raise the floors of V-507 in accordance with the provisions of CAR Amendment 60-21.

Interested persons were afforded an opportunity to participate in the rule making through the submission of comments. Due consideration was given to all comments received. The Air Transport Association of America and Scandinavian Airlines System, Inc., supported the proposals. The Soaring Society of America offered no objection. No other comments were received.

Subsequent to publication of the notice, it was determined that the extension of J-7 from Rome via Sacramento, Calif., to Oakland, Calif., via the alignment of J-32 and J-94 would be advantageous as it would provide a continuous route from Oakland via Rome to points east. Since this would facilitate flight planning and air traffic control, and would not assign or reassign controlled airspace or constitute a burden upon any person, such action is taken herein.

In consideration of the foregoing, Part 71 and Part 75 of the Federal Aviation Regulations are amended effective 0001 e.s.t., July 21, 1966, as hereinafter set forth.

1. Section 71.123 (31 F.R. 2009) is amended as follows:

In V-507 all before "Rome, Oreg.;" is deleted and "From Reno, Nev., 42 miles 12 AGL, 24 miles 115 MSL, 95 MSL Sod House, Nev.; 67 miles 95 MSL, 85 MSL," is substituted therefor.

2. Section 75.100 (31 F.R. 2346) is amended as follows:

In the text of Jet Route No. 7, all before "Rome, Oreg.;" is deleted and "From Oakland, Calif., via Sacramento, Calif.; Reno, Nev.;" is substituted therefor.

(Sec. 307(a), Federal Aviation Act of 1958 (49 U.S.C. 1348))

Issued in Washington, D.C., on May 19, 1966.

T. MCCORMACK,
*Acting Chief, Airspace and Air Traffic Rules Division.*

[F.R. Doc. 66-5743; Filed, May 25, 1966; 8:45 a.m.]

---

[Airspace Docket No. 66-SW-16]

## PART 75—ESTABLISHMENT OF JET ROUTES

### Alteration of Jet Routes

The purpose of these amendments to Part 75 of the Federal Aviation Regulations is to realign segments of Jet Routes Nos. 2, 15, and 86.

The segments of J-2 from San Antonio, Tex., to Fort Stockton, Tex.; J-15 from Austin, Tex., to Wink, Tex.; and J-86 from Austin to Fort Stockton have minimum en route altitudes of 20,000 feet MSL or above assigned to these segments which preclude the utilization of altitudes of 18,000 and 19,000 feet MSL for en route traffic. Accordingly, action is being taken herein to realign these jet routes segments via the Junction, Tex., VORTAC. This action will permit the lowering of the minimum en route altitudes and will result in the reduction by approximately 5 nautical miles in the en route mileage from San Antonio and Austin to Wink.

Since these alterations are minor and are less restrictive in nature than the present jet route alignments, notice and public procedure hereon are unnecessary. However, since it is necessary that sufficient time be allowed to permit appropriate changes to be made on aeronautical charts, these amendments will become effective more than 30 days after publication.

In consideration of the foregoing, Part 75 of the Federal Aviation Regulations is amended, effective 0001 e.s.t., July 21, 1966, as hereinafter set forth.

Section 75.100 (31 F.R. 2346, 4839) is amended as follows:

a. In Jet Route No. 2 "INT of the Fort Stockton 096°, Austin, Tex., 278° and San Antonio, Tex., 309° radials; San Antonio;" is deleted and "Junction, Tex.; San Antonio, Tex.;" is substituted therefor.

b. In Jet Route No. 15 "INT of the Austin 278°, Fort Stockton, Tex., 096° and Wink, Tex., 117° radials; Wink;" is deleted and "Junction, Tex.; Wink, Tex.;" is substituted therefor.

c. In Jet Route No. 86 "Austin, Tex."; is deleted and "Junction, Tex.; Austin, Tex.;" is substituted therefor.

(Sec. 307(a), Federal Aviation Act of 1958 (49 U.S.C. 1348))

Issued in Washington, D.C., on May 19, 1966.

T. McCormack,
*Acting Chief, Airspace and Air Traffic Rules Division.*

[F.R. Doc. 66-5751; Filed, May 25, 1966; 8:46 a.m.]

# Title 21—FOOD AND DRUGS

## Chapter I—Food and Drug Administration, Department of Health, Education, and Welfare

SUBCHAPTER B—FOOD AND FOOD PRODUCTS

### PART 16—MACARONI AND NOODLE PRODUCTS

### Macaroni Products and Enriched Macaroni Products Made With Nonfat Milk; Confirmation of Effective Date of Order Establishing Identity Standards

In the matter of establishing definitions and standards of identity for macaroni products made with nonfat milk and enriched macaroni products made with nonfat milk:

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (secs. 401, 701, 52 Stat. 1046, 1055 as amended, 70 Stat. 919, 72 Stat. 948; 21 U.S.C. 341, 371), and in accordance with the authority delegated to the Commissioner of Food and Drugs by the Secretary of Health, Education, and Welfare (21 CFR 2.120; 31 F.R. 3008), notice is given that no objections were filed to the order in the above-identified matter published in the Federal Register of April 9, 1966 (31 F.R. 5618). Accordingly, the regulations promulgated by that order will become effective June 8, 1966.

(Secs. 401, 701, 52 Stat. 1046, 1055 as amended, 70 Stat. 919, 72 Stat. 948; 21 U.S.C. 341, 371)

Dated: May 19, 1966.

J. K. Kirk,
*Assistant Commissioner for Operations.*

[F.R. Doc. 66-5805; Filed, May 25, 1966; 8:51 a.m.]

### PART 17—BAKERY PRODUCTS

### Bread, Identity Standard; Confirmation of Effective Date of Order Listing Succinylated Monoglycerides as Optional Ingredient

In the matter of amending the standard of identity for bread (21 CFR 17.1) by listing succinylated monoglycerides as an optional ingredient:

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (secs. 401, 701, 52 Stat. 1046, 1055 as amended, 70 Stat. 919, 72 Stat. 948; 21 U.S.C. 341, 371), and in accordance with the authority delegated to the Commissioner of Food and Drugs by the Secretary of Health, Education, and Welfare (21 CFR 2.120; 31 F.R. 3008), notice is given that that no objections were filed to the order in the above-identified matter published in the Federal Register of April 6, 1966 (31 F.R. 5432). Accordingly, the amendment promulgated by that order will become effective June 5, 1966.

(Secs. 401, 701, 52 Stat. 1046, 1055 as amended, 70 Stat. 919, 72 Stat. 948; 21 U.S.C. 341, 371)

Dated: May 18, 1966.

J. K. Kirk,
*Assistant Commissioner for Operations.*

[F.R. Doc. 66-5806; Filed, May 25, 1966; 8:51 a.m.]

### PART 42—EGGS AND EGG PRODUCTS

### Amendments of Standards for Whole Egg and Yolk Products and Establishment of Standards for Egg White Products; Confirmation of Effective Date

In the matter of amending the standards of identity for whole egg products and yolk products and establishing standards for egg white products:

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (secs. 401, 701, 52 Stat. 1046, 1055 as amended 70 Stat. 919, 72 Stat. 948; 21 U.S.C. 341, 371), and in accordance with the authority delegated to the Commissioner of Food and Drugs by the Secretary of Health, Education, and Welfare (21 CFR 2.120; 31 F.R. 3008), notice is given that while some comments were received no objections requesting a hearing were filed to the order in the above-identified matter published in the Federal Register of March 19, 1966 (31 F.R. 4677). Accordingly, the amendment promulgated by that order became effective May 18, 1966.

(Secs. 401, 701, 52 Stat. 1046, 1055 as amended 70 Stat. 919, 72 Stat. 948; 21 U.S.C. 341, 371)

Dated: May 19, 1966.

J. K. Kirk,
*Assistant Commissioner for Operations.*

[F.R. Doc. 66-5807; Filed, May 25, 1966; 8:51 a.m.]

### PART 121—FOOD ADDITIVES

### Subpart C—Food Additives Permitted in Feed and Drinking Water of Animals or for the Treatment of Food-Producing Animals

DDT, TDE (DDD); Editorial Clarification

The Commissioner of Food and Drugs, having considered certain questions regarding possible misinterpretations of §§ 121.226 *DDT* and 121.227 *TDE (DDD)* of the food additive regulations, and other relevant material, has concluded that these regulations should be amended to clearly establish that the residues of chlorinated pesticides referred to therein relate only to the residues of DDT and TDE (DDD). Therefore, pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (secs. 409, 701(a); 52 Stat. 1055, 72 Stat. 1785; 21 U.S.C. 348, 371(a)) and under the authority delegated to the Commissioner by the Secretary of Health, Education, and Welfare (21 CFR 2.120; 31 F.R. 3008), §§ 121.226 and 121.227 are revised to read as follows:

§ 121.226 DDT.

The following tolerance is established for residues of DDT resulting from use of DDT as a pesticide on the growing agricultural crop: 100 parts per million in or on dried tomato pomace to be used in dog and cat food at levels up to 5 percent by weight of the prepared food. If residues of TDE (DDD) on tomatoes are also present, the total of both such chlorinated compounds shall not exceed 100 parts per million.

§ 121.227 TDE (DDD).

The following tolerances are established for residues of TDE (DDD) resulting from use of TDE (DDD) as a pesticide on the growing agricultural crop: 100 parts per million in or on dried tomato pomace to be used in dog and cat food at levels up to 5 percent by weight of the prepared food. If residues of DDT are also present, the total of both such chlorinated compounds shall not exceed 100 parts per million.

Notice and public procedure and delayed effective date are unnecessary prerequisites to the promulgation of this order, and I so find, since the amendments are editorial in nature.

*Effective date.* This order shall become effective upon publication in the FEDERAL REGISTER.

(Secs. 409, 701(a); 52 Stat. 1055, 72 Stat. 1785; 21 U.S.C. 348, 371(a))

Dated: May 19, 1966.

J. K. KIRK,
*Assistant Commissioner for Operations.*

[F.R. Doc. 66-5809; Filed, May 25, 1966; 8:51 a.m.]

## PART 121—FOOD ADDITIVES

### Subpart D—Food Additives Permitted in Food for Human Consumption

CITRAL PROPYLENE GLYCOL ACETAL

The Commissioner of Food and Drugs, having evaluated the data in a petition (FAP 6A1889), filed by Felton Chemical Co., Inc., 599 Johnson Avenue, Brooklyn, N.Y., 11237, and other relevant material, has concluded that the food additive regulations should be amended to provide for the safe use of citral propylene glycol acetal as a food flavoring substance. Therefore, pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348(c)(1)), and under the authority delegated to the Commissioner by the Secretary of Health, Education, and Welfare (21 CFR 2.120; 31 F.R. 3008), § 121.1164(b) is amended by inserting alphabetically in the list of substances the following new item:

§ 121.1164 **Synthetic flavoring substances and adjuvants.**

* * * * *

(b) * * *

Citral propylene glycol acetal.

* * * * *

Any person who will be adversely affected by the foregoing order may at any time within 30 days from the date of its publication in the FEDERAL REGISTER file with the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington, D.C., 20201, written objections thereto, preferably in quintuplicate. Objections shall show wherein the person filing will be adversely affected by the order and specify with particularity the provisions of the order deemed objectionable and the grounds for the objections. If a hearing is requested, the objections must state the issues for the hearing. A hearing will be granted if the objections are supported by grounds legally sufficient to justify the relief sought. Objections may be accompanied by a memorandum or brief in support thereof.

*Effective date.* This order shall become effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348(c)(1))

Dated: May 18, 1966.

J. K. KIRK,
*Assistant Commissioner for Operations.*

[F.R. Doc. 66-5808; Filed, May 25, 1966; 8:51 a.m.]

## PART 121—FOOD ADDITIVES

### Subpart D—Food Additives Permitted in Food for Human Consumption

MODIFIED POLYACRYLAMIDE RESIN; CORRECTION

In F.R. Doc. 66-4225 published in the FEDERAL REGISTER of April 19, 1966 (31 F.R. 5959), the portion of § 121.1192 (b) that reads "0.2 percent" is corrected to "0.05 percent".

Dated: May 16, 1966.

J. K. KIRK,
*Assistant Commissioner for Operations.*

[F.R. Doc. 66-5810; Filed, May 25, 1966; 8:51 a.m.]

## PART 121—FOOD ADDITIVES

### Subpart F—Food Additives Resulting From Contact With Containers or Equipment and Food Additives Otherwise Affecting Food

POLYAMIDE-EPICHLOROHYDRIN RESIN

The Commissioner of Food and Drugs, having evaluated the data in a petition (FAP 6B1849) filed by Pacific Resins & Chemicals, Inc., 3400 13th Avenue SW., Seattle, Wash., 98134, and other relevant material, has concluded that the food additive regulations should be amended to provide for the optional use of ammonia in the production of polyamide-epichlorohydrin resins used in the manufacture of paper and paperboard intended for use in contact with food. Therefore, pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348(c)(1)), and under the authority delegated to the Commissioner by the Secretary of Health, Education, and Welfare (21 CFR 2.120; 31 F.R. 3008), § 121.2542(a) is amended to read as follows:

§ 121.2542 **Polyamide-epichlorohydrin resin.**

* * * * *

(a) Polyamide-epichlorohydrin resin is prepared by reacting adipic acid with diethylenetriamine to form a basic polyamide and further reacting the polyamide with epichlorohydrin, or with a mixture of epichlorohydrin and ammonia, to form a water-soluble thermosetting resin.

* * * * *

Any person who will be adversely affected by the foregoing order may at any time within 30 days from the date of its publication in the FEDERAL REGISTER file with the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington, D.C., 20201, written objections thereto, preferably in quintuplicate. Objections shall show wherein the person filing will be adversely affected by the order and specify with particularity the provisions of the order deemed objectionable and the grounds for the objections. If a hearing is requested, the objections must state the issues for the hearing. A hearing will be granted if the objections are supported by grounds legally sufficient to justify the relief sought. Objections may be accompanied by a memorandum or brief in support thereof.

*Effective date.* This order shall become effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348(c)(1))

Dated: May 18, 1966.

J. K. KIRK,
*Assistant Commissioner for Operations.*

[F.R. Doc. 66-5811; Filed, May 25, 1966; 8:51 a.m.]

# Title 24—HOUSING AND HOUSING CREDIT

## Subtitle A—Office of the Secretary, Department of Housing and Urban Development

## PART 5—RENT SUPPLEMENT PAYMENTS

In Subtitle A a new Part 5 is added as follows:

Sec.
5.1 Definitions.
5.5 Scope of rent supplement assistance.
5.10 Projects eligible for benefits.
5.15 Eligible housing owner.
5.20 Qualified tenant.
5.25 Certificate of eligibility.
5.30 Provisions applicable to cooperative members.
5.35 Term of contract.
5.40 Maximum annual project payments under contract.
5.45 Maximum payments under contract for each tenant.
5.50 Time of payment under contract.
5.55 Recertification of income under contract.
5.60 Hardship cases.
5.65 Tenant occupancy limitations.
5.70 Form of lease.
5.75 Housing owner's obligation under contract to report tenant income increase.
5.80 Change in tenant income status.

AUTHORITY: The provisions of this Part 5 issued under sec. 101(g), P.L. 89-117, 79 Stat. 453.

### § 5.1 Definitions.

(a) "Act" means the Housing and Urban Development Act of 1965.

(b) "Secretary" means the Secretary of Housing and Urban Development or an officer of the Department of Housing and Urban Development empowered to exercise any of the functions of the Secretary under section 101 of the Act.

(c) "Commissioner" means the Federal Housing Commissioner or his authorized representative.

(d) "Dilapidated housing" means a housing unit that does not provide safe and adequate shelter, and in its present condition endangers the health, safety or well-being of the occupants. Such a housing unit shall have one or more critical defects, or a combination of intermediate defects in sufficient number or extent to require considerable repair or rebuilding. Such defects may in-

volve original construction, or they may result from continued neglect or lack of repair or from serious damage to the structure.

(e) "Displaced by governmental action" means an individual or family, moved or to be moved from real property occupied as a dwelling unit as a result of activities in connection with a public improvement or development program carried on by an agency of the United States or any State or local governmental body or agency.

(f) "Family" means two or more persons related by blood, marriage, or operation of law, who occupy the same dwelling unit.

(g) "Physically handicapped" means an individual who has a physical impairment which:

(1) Is expected to be of long continued and indefinite duration;

(2) Substantially impedes his ability to live independently; and

(3) Is of such nature that his ability to live independently could be improved by more suitable housing conditions.

(h) "Substandard housing" means a unit which is either dilapidated as defined in paragraph (d) of this section, or does not have one of the following plumbing facilities:

(1) Hot and cold piped water inside the unit.

(2) Usable flush toilet inside the structure for the exclusive use of the occupants of the unit.

(3) Usable bathtub or shower inside the structure for the exclusive use of the occupants of the unit.

### § 5.5 Scope of rent supplement assistance.

The Commissioner may enter into a rent supplement contract with the owner of specific types of multifamily housing projects for payment of a portion of the rent on behalf of qualified tenants. The conditions of eligibility for such a contract and its terms are specified in this part.

### § 5.10 Projects eligible for benefits.

Rent supplement payments shall be available in connection with multifamily projects involving new construction. They shall also be available in connection with projects involving the major rehabilitation of existing structures, the creation of standard units in structures previously containing substandard units, and (on an experimental basis) in connection with certain existing elderly housing projects.

### § 5.15 Eligible housing owner.

(a) To be eligible to receive rent supplement payments, the owner of the multifamily housing project shall be a nonprofit, limited distribution, or cooperative mortgagor under a mortgage bearing interest at the market rate prescribed in § 221.518(a) of this title. The project must be insured pursuant to a commitment issued after August 10, 1965, for the insurance of a mortgage under section 221(d)(3) of the National Housing Act.

(b) The Commissioner may, on an experimental basis, enter into a limited number of rent supplement contracts with the following types of housing owners:

(1) A nonprofit, limited distribution, or cooperative mortgagor under a mortgage bearing interest at the below-market rate prescribed in § 221.518(b) of this title. Such project must be insured pursuant to a commitment issued after August 10, 1965, for the insurance of a mortgage under section 221(d)(3) of the National Housing Act.

(2) A private nonprofit mortgagor under a mortgage insured pursuant to section 231(c)(3) of the National Housing Act which is approved for receiving the benefits provided in this part and finally endorsed for insurance after August 10, 1965.

(3) A private nonprofit corporation, a public body or agency, or a cooperative housing corporation which is a borrower under section 202 of the Housing Act of 1959 and has been approved for receiving the benefits provided in this part.

(c) A housing owner qualifying under the provisions of paragraph (a) or (b) of this section shall only be eligible for rent supplement payments if:

(1) The dwelling unit or project is part of a workable program for community improvements meeting the requirements of section 101(c) of the Housing Act of 1949; or

(2) The dwelling unit or project receives local official approval for participation in the Federal rent supplement program.

(d) Where the project is to be located in a community in which a workable program was required and was in effect at an earlier date (at which time a loan or grant was made under title I of the Housing Act of 1949 or under the United States Housing Act of 1937), the workable program requirement of paragraph (c)(1) of this section must be met and the requirements of paragraph (c)(2) of this section shall not be applicable.

### § 5.20 Qualified tenant.

(a) The benefits of the rent supplement payments are available only to an individual or a family renting a dwelling unit in a project owned by an eligible housing owner or occupying such a dwelling unit as a cooperative member. To qualify for such benefits, the individual or family shall meet the following requirements:

(1) Have an annual income below the maximum amount established by the Secretary, which amount shall not be higher than can be established in the area where the property is located for occupancy in a low-rent public housing project assisted under the United States Housing Act of 1937.

(2) In a case involving an elderly individual or a family whose head or spouse is elderly, have assets not exceeding $5,000.

(3) In a case involving other than the elderly, have assets not exceeding $2,000.

(4) Be one of the following:

(i) An individual or family displaced by governmental action.

(ii) An individual who is 62 years of age or over, or physically handicapped.

(iii) A head of a family who is or whose spouse is, 62 years of age or over, or who is physically handicapped.

(iv) An occupant of substandard housing.

(v) An occupant or former occupant of a dwelling which is (or was) situated in an area determined by the Small Business Administration subsequent to April 1, 1965, to have been affected by a natural disaster and which has been extensively damaged or destroyed as the result of such disaster.

(b) For the purposes of this section, income shall mean the total gross income, before taxes and other deductions, received by all members of the tenant's household. In determining gross income, there shall be included all wages, social security payments, retirement benefits, military and veteran's disability payments, unemployment benefits, welfare benefits, interest and dividend payments, and such other income items as the Secretary considers appropriate.

### § 5.25 Certificate of eligibility.

(a) Upon request of a housing owner, the Commissioner will review for eligibility the application by a prospective tenant for rent supplement payments. If the application meets the requirements of § 5.20, the Commissioner shall issue a certificate of eligibility. The certificate shall state the amount of rent supplement to be paid monthly by the Commissioner to the housing owner on behalf of the qualified tenant. The payment shown in the certificate shall not, regardless of the tenant's income, exceed 70 percent of the approved rent for the unit. No certificate of eligibility shall be issued where the amount of rent supplement payment would be less than 10 percent of such approved rent.

(b) The Commissioner may approve a qualified tenant as a lessee under an option to purchase a dwelling at a stipulated price, if he determines that the tenant will be able to finance such purchase on the basis of the probability of future increases in the tenant's income.

### § 5.30 Provisions applicable to cooperative members.

(a) A member of a cooperative who obtains a certificate of eligibility shall be required, as a condition of receiving the certificate, to agree that upon a sale of his membership, any equity increment accumulated through rent supplement payments will not be made available to the member, but will be turned over to the cooperative housing owner. Funds received by a cooperative representing an equity increment accumulated through rent supplement payments shall be deposited by the cooperative in a special account to be disbursed as directed by the Commissioner.

(b) The term "tenant" as used in this section shall mean a member of a cooperative, and the term "rent" shall mean the charges under the occupancy

agreement between the members of the cooperative.

§ 5.35 Term of contract.

The rent supplement contract shall be limited to the term of the mortgage or 40 years from the date of the first payment made under the contract, whichever is the lesser.

§ 5.40 Maximum annual project payments under contract.

The rent supplement contract shall state the maximum dollar amount of the rent supplement payments for any 1 year based upon the Commissioner's estimate of probable effective demand and distribution of tenant income, including a 10-percent contingency allowance. At the end of such period of time as the Commissioner may prescribe for the rental of the dwelling units, appropriate adjustment shall be made in the maximum rental payments, including a 10-percent contingency allowance, to reflect the actual requirements of the tenants. Payments shall not be made with respect to more than 20 percent of the number of dwelling units in any project which is assisted under:

(a) Section 202 of the Housing Act of 1959, if the loan agreement under that section was entered into on or before August 10, 1965; or

(b) Section 231(c)(3) of the National Housing Act, if the mortgage was finally endorsed for insurance under that section after August 10, 1965, pursuant to a commitment issued on or before such date.

§ 5.45 Maximum payments under contract for each tenant.

(a) The rent supplement contract shall provide that the payment on behalf of a qualified tenant shall be that amount by which the rent approved by the Commissioner for the unit exceeds one-fourth of the tenant's income, or exceeds any welfare allowance for housing if such allowance is larger than one-fourth of the tenant's income.

(b) In computing tenant's income for the purposes of this section, the Commissioner may allow certain specified deductions to take into account income earned by members of the family under 18 years of age, expenses incurred as a result of a physical disability or continuing illness, the cost of necessary child care while a wage earner of the household is at work, and such other deductions as the Secretary considers appropriate.

§ 5.50 Time of payment under contract.

The rent supplement contract shall provide for payments to be made monthly to the housing owner on behalf of qualified tenants in the amounts set forth in the certificates of eligibility.

§ 5.55 Recertification of income under contract.

The rent supplement contract shall provide, except with respect to tenants who are 62 years of age or older, that a recertification of income shall be obtained by the housing owner each year from the date the original certificate of eligibility was issued. Provision shall be included for adjusting payments to reflect income changes shown by the recertification.

§ 5.60 Hardship cases.

Where a tenant's income has decreased due to illness, loss of job, or other hardship beyond his control, the Commissioner may grant a temporary increase in rent supplement payments.

§ 5.65 Tenant occupancy limitations.

Qualified tenants shall not be permitted to occupy units larger than the Commissioner determines necessary for their needs.

§ 5.70 Form of lease.

(a) *Lease form.* Qualified tenants shall be required to execute a lease in a form approved by the Commissioner.

(b) *Special lease provisions.* The lease shall contain the following special provisions:

(1) A provision obligating the tenant to report immediately to the housing owner any increase in income which results in a monthly income of four or more times the full monthly rental for the housing unit.

(2) A provision obligating the tenant to reimburse the Commissioner for any rent supplement payments made by the Commissioner during a period when the tenant's income had increased to a point where rent supplement payments should have been terminated but were not terminated because of the tenant's failure to report the increase to the housing owner.

§ 5.75 Housing owner's obligation under contract to report tenant income increase.

The rent supplement contract shall contain a provision obligating the housing owner to immediately notify the Commissioner upon receiving a report from a tenant of an increase in the tenant's income resulting in a monthly income of four or more times the full monthly rental for the housing unit. The contract shall also obligate the housing owner, upon failing to notify the Commissioner when a report of such increase in income is received from a tenant, to reimburse the Commissioner for any rent supplement payments made during the period the tenant is receiving the increased income.

§ 5.80 Change in tenant income status.

Appropriate adjustments will be made in rent supplement payments to reflect income changes shown by the annual tenant income recertification. Rent supplement payments will be discontinued when it is determined by the Commissioner that 25 percent of the tenant's income is sufficient to pay the full amount of the rent for the unit occupied by the tenant. Where a tenant is no longer entitled to rent supplement payments, he may continue to occupy the unit. The rent charged for the unit shall not exceed the fair market rental as determined by the Commissioner.

Effective as of the 20th day of May 1966.

PHILIP N. BROWNSTEIN,
*Federal Housing Commissioner.*
ROBERT C. WEAVER,
*Secretary of Housing and Urban Development.*

[F.R. Doc. 66-5794; Filed, May 25, 1966; 8:50 a.m.]

## Chapter II—Federal Housing Administration, Department of Housing and Urban Development

SUBCHAPTER A—GENERAL

## PART 200—INTRODUCTION

### Subpart D—Delegations of Basic Authority and Functions

SUBCHAPTER G—HOUSING FOR MODERATE INCOME AND DISPLACED FAMILIES

## PART 221—LOW COST AND MODERATE INCOME MORTGAGE INSURANCE

### Subpart C—Eligibility Requirements—Moderate Income Projects

MISCELLANEOUS AMENDMENTS

The following miscellaneous amendments have been made to this chapter:

In § 200.95 a new paragraph (aa) is added as follows:

§ 200.95 Field Office Chiefs of Operations.

* * * * *

(aa) To certify the eligibility of individual tenants for rent supplement payments, to execute contracts for rent supplement payments, to approve a change in amount, a change in terms, or any other modification in the contracts for rent supplement payments.

(Sec. 2, 48 Stat. 1246, as amended; sec. 211, 52 Stat. 23, as amended; sec. 607, 55 Stat. 61, as amended; sec. 712, 62 Stat. 1281, as amended; sec. 907, 65 Stat. 301, as amended; sec. 807, 69 Stat. 651, as amended; 12 U.S.C. 1703, 1715b, 1742, 1747k, 1748f, 1750f)

Section 221.501 is amended to read as follows:

§ 221.501 Certificate by Secretary to Commissioner.

(a) Before a mortgage executed by a mortgagor other than a general mortgagor shall be eligible for insurance under this subpart, the Secretary of Housing and Urban Development shall certify to the Commissioner that the community in which the project is to be located has submitted to the Secretary a workable program which has been approved by the Secretary and which is in effect at the time the commitment to insure is issued.

(b) The provisions of paragraph (a) of this section shall not be applicable where the mortgagor is approved by the Commissioner to receive rent supplement payments pursuant to the provisions of §§ 5.1 et seq. of this title, in which case the provisions of § 5.15(c) of this title shall govern.

In § 221.524 paragraph (a) is amended to read as follows:

§ 221.524 Prepayment privileges.

(a) *Prepayment in full.* A mortgage indebtedness may be prepaid in full and the Commissioner's controls terminated only with the prior consent of and upon such terms and conditions as the Commissioner may prescribe. In the case of a limited distribution mortgagor not receiving payments by the Commissioner under a rent supplement contract executed pursuant to the provisions of §§ 5.1 et seq. of this title, the mortgage indebtedness may be prepaid in full at any time after the expiration of 20 years from the date of final endorsement of the mortgage, without the prior consent of the Commissioner.

* * * * *

(Sec. 211, 52 Stat. 23; 12 U.S.C. 1715b. Interpret or apply sec. 221, 68 Stat. 599, as amended; 12 U.S.C. 1715*l*)

Issued at Washington, D.C., May 20, 1966.

PHILIP N. BROWNSTEIN,
*Federal Housing Commissioner.*

[F.R. Doc. 66-5793; Filed, May 25, 1966; 8:50 a.m.]

# Title 33—NAVIGATION AND NAVIGABLE WATERS

## Chapter II—Corps of Engineers, Department of the Army

## PART 207—NAVIGATION REGULATIONS

### Kissimmee River, Fla.

Pursuant to the provisions of section 7 of the River and Harbor Act of August 8, 1917 (40 Stat. 266; 33 U.S.C. 1), § 207.170c governing the use, administration, and navigation of locks on Kissimmee River, Fla., is hereby amended with respect to paragraph (a) to include Locks S-65B and S-65C, effective 30 days after publication in the FEDERAL REGISTER, as follows.

§ 207.170c **Kissimmee River, navigation locks between Lake Tohopekaliga and Lake Okeechobee, Fla.; use, administration and navigation.**

(a) The owner of or agency controlling the locks shall be required to open the navigation locks upon demand for passage of vessels during the following hours and periods:

Locks S-61, S-65, and S-65E

| | | |
|---|---|---|
| Monday through Friday. | All year | 7:00 a.m. to 6:00 p.m. |
| Saturday and Sunday. | Mar. 1 through Oct. 31. | 5:30 a.m. to 7:30 p.m. |
| Do | Nov. 1 through Feb. 28. | 5:30 a.m. to 6:30 p.m. |

Locks S-65B, S-65C, and S-65D

| | | |
|---|---|---|
| Monday through Friday. | All year | 8:00 a.m. to 5:00 p.m. |
| Saturday and Sunday. | Mar. 1 through Oct. 31. | 5:30 a.m. to 7:30 p.m. |
| Do | Nov. 1 through Feb. 28. | 5:30 a.m. to 6:30 p.m. |

* * * * *

[Regs., May 9, 1966. 1507-32(Kissimmee River, Fla.)-ENGCW-ON] (Sec. 7, 40 Stat. 266; 33 U.S.C. 1)

L. H. WALKER, Jr.
*Brigadier General, U.S. Army,*
*Acting The Adjutant General.*

[F.R. Doc. 66-5741; Filed, May 25, 1966; 8:45 a.m.]

# Title 36—PARKS, FORESTS, AND MEMORIALS

## Chapter I—National Park Service, Department of the Interior

## PART 3—NATIONAL CAPITAL REGION REGULATIONS

### Parades and Public Gatherings; Correction

In F.R. Doc. 66-4545, appearing at page 6263, the following change of an error in composition should be made in § 3.19(b)(4):

The word "East" in line one should read "West".

GEORGE B. HARTZOG, Jr.,
*Director, National Park Service.*

MAY 18, 1966.

[F.R. Doc. 66-5774; Filed, May 25, 1966; 8:48 a.m.]

# Title 35—PANAMA CANAL

## Chapter I—Canal Zone Regulations

[Canal Zone Order 72]

## PART 4—OPERATION AND NAVIGATION OF PANAMA CANAL AND ADJACENT WATERS

### Term, and Suspension or Revocation, of Marine Licenses

Effective immediately § 4.158 of Title 35 of the Code of Federal Regulations is amended to read as follows:

§ 4.158 **Term, and suspension or revocation, of licenses.**

(a) Licenses shall be granted for a term of 3 years, but may be suspended or revoked by the Supervising Inspector, or such other officer as may be designated by the Governor, upon satisfactory proof of negligence, unskillfulness, intemperance or other improper conduct. Prior to final action in the matter of the suspension or revocation of any license, the Board of Local Inspectors shall conduct a hearing in the matter and submit its recommendations therein to the Supervising Inspector or other designated officer.

(b) Paragraph (a) of this section is not applicable to licenses issued to marine personnel of the Panama Canal Company. A license granted to such an employee shall be valid for such period(s) as the licensee is employed by the Panama Canal Company in a position requiring the holding of the license.

(2 C.Z.C. sec. 1331(4), 76A Stat. 46; sec. 19 of P.L. 87-845, 76A Stat. 700; sec. 3(a) of E.O. 9746 of July 1, 1946, 11 F.R. 7329, as amended by E.O. 10595 of Feb. 7, 1955, 20 F.R. 819)

Dated: May 21, 1966.

STANLEY R. RESOR,
*Secretary of the Army.*

[F.R. Doc. 66-5829; Filed, May 25, 1966; 8:53 a.m.]

# Title 43—PUBLIC LANDS: INTERIOR

## Chapter II—Bureau of Land Management, Department of the Interior

### APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 4014]

[Oregon 017497; 017503]

### OREGON

### Withdrawal for National Forest Administrative Site; Partial Revocation of National Forest Administrative Site

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Subject to valid existing rights, the following described national forest lands are hereby withdrawn from appropriation under the mining laws (30 U.S.C., Ch. 2), but not from leasing under the mineral leasing laws, for an administrative site of the Department of Agriculture:

(Oregon 017497)

WILLAMETTE MERIDIAN

WINEMA NATIONAL FOREST

*Pelican Administrative Site Addition*

T. 36 S., R. 6 E.,
Sec. 16, E½NW¼NE¼.

The area described contains approximately 20 acres in Klamath County.

2. The Departmental order of June 12, 1908, withdrawing national forest lands for an administrative site is hereby revoked so far as it affects the following described lands:

(OREGON 017503)

WILLAMETTE MERIDIAN

WINEMA NATIONAL FOREST

*Pelican Administrative Site*

T. 36 S., R. 6 E.,
Sec. 9, SW¼NE¼, S½NW¼, SW¼, N½ NE¼NW¼SE¼, and W½W½SE¼.

The areas described aggregate approximately 325 acres in Klamath County.

3. At 10 a.m., on June 25, 1966, the lands released from withdrawal by paragraph 2 above, shall be open to such forms of disposition as may by law be made of national forest lands.

4. The withdrawal made by paragraph 1 of this order does not alter the applicability of those public land laws governing the use of the national forest lands under lease, license, or permit, or governing the disposal of their mineral or

vegetative resources other than under the mining laws.

HARRY R. ANDERSON,
*Assistant Secretary of the Interior.*

MAY 20, 1966.

[F.R. Doc. 66-5766; Filed, May 25, 1966; 8:47 a.m.]

---

[Public Land Order 4015]

[Oregon 017356 (Wash.)]

## WASHINGTON

### Partial Revocation of Reclamation Withdrawal

By virtue of the authority contained in section 3 of the act of June 17, 1902 (32 Stat. 388; 43 U.S.C. 416), as amended and supplemented, it is ordered as follows:

1. The departmental orders of April 29, 1907, July 20, 1908, and July 27, 1908, withdrawing lands for reclamation purposes are hereby revoked so far as they affect the following described lands:

WILLAMETTE MERIDIAN

T. 13 N., R. 12 E., Unsurveyed
Sec. 14, NW¼NW¼.
T. 13 N., R. 13 E., Unsurveyed
Sec. 3, N½NE¼ and NW¼.
T. 14 N., R. 14 E.,
Sec. 30, S½;
Sec. 31, lot 1 and NE¼NW¼.

The areas described aggregate 652.59 acres in the Snoqualmie National Forest, Yakima County.

2. At 10 a.m., on June 25, 1966, the lands shall be open to such forms of disposition as may by law be made of national forest lands.

HARRY R. ANDERSON,
*Assistant Secretary of the Interior.*

MAY 20, 1966.

[F.R. Doc. 66-5767; Filed, May 25, 1966; 8:47 a.m.]

---

[Public Land Order 4016]

[Fairbanks 020832]

## ALASKA

### Withdrawal of Land for the Bureau of Indian Affairs for School Purposes; Revocation of Prior Withdrawals Wholly or in Part

By virtue of the authority contained in the act of May 31, 1938 (52 Stat. 593; 48 U.S.C. 353a), it is ordered as follows:

1. Subject to valid existing rights, the following described public lands which are under the jurisdiction of the Secretary of the Interior, are hereby withdrawn from all forms of appropriation under the public land laws, including the mining laws (30 U.S.C., Ch. 2), but not from leasing under the mineral leasing laws, and reserved for school purposes:

a. Afognak: U.S. Survey 3886, containing 4.50 acres.

b. Ekwak: U.S. Survey 3864, containing 5.00 acres.

c. Savoonga: U.S. Survey 4237 (unapproved), containing 3.61 acres.

2. Public Land Order No. 1177 of June 28, 1955, and the departmental order of July 5, 1955, withdrawing lands for school purposes, are hereby revoked so far as they affect lands at Afognak, Ekwak, and Savoonga.

3. The primary objective of this order is to redescribe, in terms of the public land surveys, existing withdrawals which describe the lands by metes and bounds. Very little public land is returned to the unreserved public domain by this order.

4. Until 10 a.m., on August 19, 1966, the State of Alaska shall have a preferred right of application to select any lands released from withdrawal by this order, as provided by the act of July 28, 1956 (70 Stat. 709), and section 6g of the act of July 7, 1958 (72 Stat. 339). After that date and hour the lands shall become subject to application, petition, location, and selection generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m., on August 19, 1966, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

5. The released lands will be open to applications and offers under the mineral leasing laws, and to location under the U.S. mining laws after 10 a.m., on August 19, 1966.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Fairbanks, Alaska.

HARRY R. ANDERSON,
*Assistant Secretary of the Interior.*

MAY 20, 1966.

[F.R. Doc. 66-5768; Filed, May 25, 1966; 8:47 a.m.]

---

[Public Land Order 4017]

[Montana 073213 (N.D.)]

## NORTH DAKOTA

### Revocation of Executive Order No. 8111

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

Executive Order No. 8111 of May 10, 1939, reserving all lands owned or controlled by the United States within the following described area for the Billings Lake Migratory Waterfowl Refuge, is hereby revoked:

FIFTH PRINCIPAL MERIDIAN

T. 159 N., R. 61 W.,
Sec. 10, E½;
Sec. 15, N½, N½SE¼ and SE¼SE¼.

The areas described aggregate 760 acres of nonpublic lands in Cavalier County.

HARRY R. ANDERSON,
*Assistant Secretary of the Interior.*

MAY 20, 1966.

[F.R. Doc. 66-5769; Filed, May 25, 1966; 8:47 a.m.]

---

[Public Land Order 4018]

[Sacramento 079493]

## CALIFORNIA

### Withdrawal for National Forest Recreation Area

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), and by virtue of the authority contained in the act of July 9, 1962 (76 Stat. 140; 43 U.S.C. 315g-1), it is ordered as follows:

1. Subject to valid existing rights, the following described lands are hereby withdrawn from appropriation under the U.S. mining laws (Title 30 U.S.C., Ch. 2), but not from leasing under the mineral leasing laws, for a recreation area of the Department of Agriculture:

MOUNT DIABLO MERIDIAN

ELDORADO NATIONAL FOREST

*Pope-Baldwin Recreation Area*

T. 12 N., R. 17 E.,
Sec. 1, lots 2 to 6, incl., N½NE¼, and E½SE¼;
Sec. 2, lots 1 to 4, incl., W½, N½NE¼, SW¼NE¼, and NW¼SE¼;
Sec. 3, E½ (partly unsurveyed);
Sec. 10, NE¼ (unsurveyed);
Sec. 11, lots 1 to 3, incl., NE¼NW¼, and NW¼NW¼;
Sec. 12, lots 2, 3, 4, and 7, SE¼NE¼, and N½SE¼.
T. 13 N., R. 17 E.,
Sec. 25, lots 1 to 5, incl.;
Sec. 26, lots 1 and 2 and S½SW¼;
Sec. 27, SE¼SE¼;
Sec. 34, SE¼NE¼, and SE¼;
Secs. 35 and 36.
T. 12 N., R. 18 E.,
Sec. 5, lot 4;
Sec. 6, lots 1 to 21, incl., E½SW¼, and SE¼.

The areas described, including the national forest lands and nonpublic lands, aggregate 4,882.41 acres, of which the following described lands, totaling 285.84 acres, are the nonpublic lands:

MOUNT DIABLO MERIDIAN

T. 12 N., R. 17 E.,
Sec. 1, patented portion lot 4, and NW¼NE¼SE¼;
Sec. 11, lot 1;
Sec. 12, patented portion lot 4.
T. 13 N., R. 17 E.,
Sec. 25, lot 1, patented portion lot 2;
Sec. 36, NE¼NE¼, E½NW¼NE¼, and E½SE¼NE¼.
T. 12 N., R. 18 E.,
Sec. 6, patented portions lots 3, 4, 5, and 16.

2. The withdrawal made by this order shall attach to the nonpublic lands described above upon acquisition of title thereto by the United States under applicable law and the said lands which are within the exterior boundaries of the Eldorado National Forest shall become a part of the national forest and subject to all laws and regulations applicable thereto upon said acquisition of title.

3. The withdrawal made by this order does not alter the applicability of those public land laws governing the use of the national forest lands under lease, license, or permit, or governing the disposal of their mineral or vegetative re-

sources other than under the mining laws.

HARRY R. ANDERSON,
*Assistant Secretary of the Interior.*

MAY 20, 1966.

[F.R. Doc. 66-5770; Filed, May 25, 1966; 8:47 a.m.]

[Public Land Order 4019]

[Anchorage 067495]

## ALASKA

### Excluding Lands From Chugach and Tongass National Forest for Purchase as Homesites

By virtue of the authority vested in the President by section 1 of the act of June 4, 1897 (30 Stat. 34, 36; 16 U.S.C. 473), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

The following described tracts of land in Alaska, occupied as homesites, are hereby excluded from the national forests indicated and restored, subject to valid existing rights, for purchase as homesites under section 10 of the act of May 14, 1898 (30 Stat. 413; 48 U.S.C. 461), as amended:

CHUGACH NATIONAL FOREST

a. Homesite No. 187, Murcheson Creek Group, lot 2, U.S. Survey 4606, 0.34 acre, approximate latitude 60°32'35" N., longitude 145°42' W.

b. Homesite No. 90, Strawberry Point Group, Tract B, U.S. Survey 2679, 3.76 acres, approximate latitude 60°23'41" N., longitude 146°07'23" W.

c. Homesite No. 207, Heney Creek Group, lot 30, U.S. Survey 3601, 2.96 acres, approximate latitude 60°31'30" N., longitude 145°46' W.

TONGASS NATIONAL FOREST

Homesite No. 1139, Lisianski Group, lot 12, Tract A, U.S. Survey 3305, 0.20 acre, approximate latitude 57°57'25.621" N., longitude 136°13.01' W.

HARRY R. ANDERSON,
*Assistant Secretary of the Interior.*

MAY 20, 1966.

[F.R. Doc. 66-5771; Filed, May 25, 1966; 8:48 a.m.]

[Public Land Order 4020]

[Utah 0141197]

## UTAH

### Adding Land to Manti-LaSal National Forest

By virtue of the authority vested in the President by section 24 of the act of March 3, 1891 (26 Stat. 1103; 16 U.S.C. 471), and the act of June 4, 1897 (30 Stat. 34, 36; 16 U.S.C. 473), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

The boundaries of the Manti-LaSal National Forest are hereby extended to include the following described lands and, subject to valid existing rights and the provisions of existing withdrawals, the lands are hereby made parts of said national forest and hereafter shall be subject to all laws and regulations applicable thereto:

SALT LAKE MERIDIAN

T. 18 S., R. 3 E.,
Sec. 7, SE¼SE¼SE¼;
Sec. 8, S½NE¼, N½SE¼, S½SE¼;
Sec. 9, S½NW¼, N½SW¼, S½SW¼.

The areas described aggregate 490 acres.

HARRY R. ANDERSON,
*Assistant Secretary of the Interior.*

MAY 20, 1966.

[F.R. Doc. 66-5772; Filed, May 25, 1966; 8:48 a.m.]

[Public Land Order 4021]

[Idaho 016764]

## IDAHO

### Withdrawal for Forest Service Recreation Areas

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Subject to valid existing rights, the following described national forest lands are hereby withdrawn from appropriation under the United States mining laws (30 U.S.C., Ch. 2), in aid of programs of the Department of Agriculture:

BOISE MERIDIAN

SALMON NATIONAL FOREST

*Proctor Creek Recreation Area*

T. 23 N., R. 15 E., unsurveyed,
A tract of land which will probably be located within the SW¼, sec. 12, and which is more particularly described as:
Beginning at the intersection of Proctor Creek with the mean high waterline of the Salmon River on the southwest bank, said point bearing S. 50° E. and 26.4 feet from a brass cap 3" in diameter marked U.S. Department of Agriculture, Forest Service, with "P" in center and dated 1965, set in granite boulder 4' x 4' x 4½' above ground; thence S. 28° W., 108.2 feet; thence N. 79° W., 150 feet along raised hogsback ridge parallel to Proctor Creek; thence N. 40° W., 148 feet crossing Proctor Creek at 48 feet; thence N. 39° E., 288 feet along the slope; thence N. 9° E., 237 feet along the toe of the slope; thence N. 81° E., 223 feet down to the mean high waterline of the Salmon River; thence in a southeasterly and southwesterly direction following the meandering mean high waterline approximately 450 feet to the point of beginning.
Totaling 3.9 acres, more or less.

*Kitchen Creek Recreation Area*

T. 23 N., R. 15 E., unsurveyed,
A tract of land which will probably be located within the NE¼, sec. 13, and which is more particularly described as:
Beginning at a granite boulder 12' x 10' x 8' above ground at the intersection of Kitchen Creek with mean high waterline of the Salmon River on the south bank, said point bearing S. 25° E. and 98.3 feet from a brass cap being 3" in diameter marked U.S. Department of Agriculture, Forest Service, with "K" in center and dated 1965, set in a granite outcrop 10' x 4' x 4' above ground; thence N. 3° W., 132 feet along mean high waterline of Salmon River; thence N. 19° W., 264.0 feet; thence N. 30° W., 132 feet; thence N. 44° W., 205.9 feet; thence N. 62° W., 132 feet; thence N. 79° W., 118.1 feet to Douglas-fir 13" diameter at breast height, blazed and scribed "K-1, US"; thence S. 11° W., 139 feet along slope; thence S. 20° E., 400 feet to a rocky point; thence S. 41° E., 675 feet to southwest bank of Salmon River at mean high waterline, crossing Kitchen Creek at 300 feet; thence N. 3° W., 287.8 feet to point of beginning.
Totaling 6.4 acres, more or less.

*Hacksaw Tom Recreation Area*

T. 23 N., R. 17 E., unsurveyed,
A tract of land which will probably be located within the SW¼, sec. 20 and which is more particularly described as:
Beginning at a Forest Service Monument being a granite boulder 7' x 5' x 4' above ground on south bank of Salmon River, marked with "X, H-1" chiseled in on the south face, said point being S. 28° W., and 429.0 feet across the Salmon River from USMM No. 2794, and bearing S. 28° E., and 44.2 feet from a 25" diameter at breast height, ponderosa pine on south bank of Salmon River blazed and scribed W-1 on southeast face; thence N. 85° W., 503.6 feet along toe of slope to dry gulch; thence N. 49° W., 881.8 feet to large granite boulder; thence N. 18° W., 89.1 feet; thence N. 29° W., 333.0 feet to south bank of Salmon River; thence following along the mean high waterline N. 75° E., 87.8 feet; thence N. 66° E., 194.0 feet; thence S. 80° E., 103.5 feet; thence S. 47° E., 132.0 feet; thence S. 35° E., 495.7 feet; thence S. 44° E., 565.0 feet; thence S. 54° E., 280.0 feet to point of beginning.
Totaling 10.7 acres, more or less.

*Badger Flat Recreation Area*

T. 23 N., R. 17 E., unsurveyed.
A tract of land which will probably be located within the SW¼, sec. 20, and which is more particularly described as:
Beginning at a Forest Service Monument being a brass cap 3" in diameter marked U.S. Department of Agriculture, Forest Service, with "B" in center and dated 1965, set in a schist boulder 16' x 4' x 4' above ground, said point bearing S. 74° E., and 444.3 feet from the Indian Paintings located on the north side of the Salmon River road between Ebenezer Creek and Poverty Flat; thence N. 20° W., 16.5 feet to rock cliff being west end of upper Indian Paintings; thence N. 80° E., 118.1 feet along base of cliff; thence S. 60° E., 803.9 feet along rocky hillside; thence S. 45° E., 181.5 feet, crossing dry gulch at 132 feet; thence S. 49° W., 153.1 feet along open hillside; thence S. 11° W., 219.8 feet to north edge of Salmon River road, point bearing S. 61° E., and 36.3 feet to U.S. Coast and Geodetic Survey brass cap marked "R291, 1945", set in granite boulder; thence N. 43° W., 291.7 feet along north edge of Salmon River road to dry gulch; thence N. 35° W., 132 feet; thence N. 31° W., 225.7 feet crossing side road at 134.8 feet; thence N. 48° W., for 378.8 feet; thence N. 70° W., 106.3 feet to point of beginning.
Totaling 4.7 acres, more or less.

*Foot Bridge Flat Recreation Area*

T. 23 N., R. 17 E., unsurveyed,
A tract of land which will probably be located within the NE¼, sec. 14, and which is more particularly described as:
Beginning at a granite outcrop 15' x 4' x 5' above ground marked with "X" chiseled in on the north face, said point being S. 71° W. and approximately 1,056 feet from the southwest corner of the Cove Creek Bridge (beginning point also witnessed by a 15" diameter at breast height ponderosa pine blazed and scribed facing outcrop "CC, 1" bearing S. 36° E., and 15.8 feet to point); thence N. 54° W., 222.4 feet along slope; thence N. 59° W., 221.8 feet; thence N. 32° W., 120.8 feet; thence N. 37° E., 163.7 feet to south bank of Salmon River; thence S. 56° E., 353.8 feet along mean high waterline of the Salmon River; thence S. 80° E., 617.8 feet; thence S. 15° E., 80.5 feet to open hillside crossing access road at 66 feet; thence S. 81° W., 590.1 feet to point of beginning.
Totaling 4.5 acres, more or less.

SAWTOOTH NATIONAL FOREST

*Lightfoot Bar Recreation Area*

T. 3 N., R. 13 E.,
Sec. 7, SE¼SW¼NE¼, NW¼SE¼NE¼, E½NW¼SE¼, and E½SW¼SE¼;
Sec. 18, N½NW¼NE¼.
Totaling 80 acres.

The areas described aggregate 110.2 acres, more or less, in Camas, Idaho, and Lemhi Counties.

The withdrawal made by this order does not alter the applicability of those public land laws governing the use of the national forest lands under lease, license, or permit, or governing the disposal of their mineral or vegetative resources other than under the mining laws.

HARRY R. ANDERSON,
*Assistant Secretary of the Interior.*

MAY 20, 1966.

[F.R. Doc. 66-5773; Filed, May 25, 1966; 8:48 a.m.]

# Title 50—WILDLIFE AND FISHERIES

## Chapter I—Bureau of Sport Fisheries and Wildlife, Fish and Wildlife Service, Department of the Interior

## PART 32—HUNTING

### Alaska

The following special regulations are issued and are effective on date of publication in the FEDERAL REGISTER.

**§ 32.22 Special regulations; upland game; for individual wildlife refuge areas.**

ALASKA

ALEUTIAN ISLANDS NATIONAL WILDLIFE REFUGE

Public hunting of upland game on all lands within the Aleutian Islands National Wildlife Refuge, Alaska, is permitted in accordance with all applicable State regulations governing upland game hunting. Information relative to hunting thereon may be obtained from the Refuge Manager, Cold Bay, Alaska.

The provisions of this special regulation supplement the regulations which govern hunting on wildlife refuge areas generally, which are set forth in Title 50, Code of Federal Regulations, Part 32, and are effective through June 30, 1967.

ARCTIC NATIONAL WILDLIFE RANGE

Public hunting of upland game on all lands within the Arctic National Wildlife Range, Alaska, is permitted in accordance with all applicable State laws governing upland game hunting. Information relative to hunting thereon may be obtained from the Refuge Supervisor, Bureau of Sport Fisheries and Wildlife, Post Office Box 500, Kenai, Alaska.

The provisions of this special regulation supplement the regulations which govern hunting on wildlife refuge areas generally, which are set forth in Title 50, Code of Federal Regulations, Part 32, and are effective through June 30, 1967.

CLARENCE RHODE NATIONAL WILDLIFE RANGE

Public hunting of upland game on all lands within the Clarence Rhode National Wildlife Range, Alaska, is permitted in accordance with all applicable State regulations governing upland game hunting. Information relative to hunting thereon may be obtained from the Refuge Manager, Bethel, Alaska.

The provisions of this special regulation supplement the regulations which govern hunting on wildlife areas generally, which are set forth in Title 50, Code of Federal Regulations, Part 32, and are effective through June 30, 1967.

IZEMBEK NATIONAL WILDLIFE RANGE

Public hunting of upland game on all lands within the Izembek National Wildlife Range, Alaska, is permitted in accordance with all applicable State regulations governing upland game hunting, subject to the following special condition: The landing of aircraft is prohibited except in the event of emergency. Information relative to hunting thereon may be obtained from the Refuge Supervisor, Bureau of Sport Fisheries and Wildlife, Post Office Box 500, Kenai, Alaska.

The provisions of this special regulation supplement the regulations which govern hunting on wildlife refuge areas generally, which are set forth in Title 50, Code of Federal Regulations, Part 32, and are effective through June 30, 1967.

KENAI NATIONAL MOOSE RANGE

Public hunting of upland game on all lands within the Kenai National Moose Range, Alaska, is permitted in accordance with all applicable State regulations governing upland game hunting, subject to the following special conditions:

(1) Except in the event of an emergency, the landing of aircraft on that portion of the Kenai National Moose Range lying south of the Kenai River is restricted to the following areas:

*Area No. 1.* All lakes, streams and other bodies of water except that aircraft may not be landed on any glacier.

*Area No. 2.* The airstrip situated near the south side of Upper Funny River at longitude 150°26'50" W., latitude 60°12'20" N.

*Area No. 3.* The airstrip situated near the west side of Funny River at longitude 150°44'52" W., latitude 60°20'12" N.

*Area No. 4.* The airstrip situated near the north side of Fox River at longitude 150°44' W., latitude 59°58'30" N.

All coordinates are approximate.

This area is delineated on maps available at Refuge headquarters and from the Regional Director, Bureau of Sport Fisheries and Wildlife, Post Office Box 3737, Portland, Oreg., 97208.

The provisions of this special regulation supplement the regulations which govern hunting on wildlife refuge areas generally, which are set forth in Title 50, Code of Federal Regulations, Part 32, and are effective through June 30, 1967.

KODIAK NATIONAL WILDLIFE REFUGE

Public hunting of upland game on all lands within the Kodiak National Wildlife Refuge, Alaska, is permitted in accordance with all applicable State regulations governing upland game hunting, subject to the following special conditions:

(1) Except in the event of an emergency, the landing of aircraft on the Kodiak National Wildlife Refuge is restricted to the lakes, streams, and other bodies of water.

Information relative to hunting thereon may be obtained from the Refuge headquarters, Kodiak, Alaska.

The provisions of this special regulation supplement the regulations which govern hunting on wildlife refuge areas generally, which are set forth in Title 50, Code of Federal Regulations, Part 32, and are effective through June 30, 1967.

NUNIVAK NATIONAL WILDLIFE REFUGE

Public hunting of upland game on all lands within the Nunivak National Wildlife Refuge, Alaska, is permitted in accordance with all applicable State regulations governing upland game hunting. Information relative to hunting on the refuge may be obtained from Refuge Supervisor, Bureau of Sport Fisheries and Wildlife, Post Office Box 500, Kenai, Alaska.

The provisions of this special regulation supplement the regulations which govern hunting on wildlife refuge areas generally, which are set forth in Title 50, Code of Federal Regulations, Part 32, and are effective through June 30, 1967.

PAUL T. QUICK,
*Regional Director, Bureau of Sport Fisheries and Wildlife.*

MAY 18, 1966.

[F.R. Doc. 66-5801; Filed, May 25, 1966; 8:50 a.m.]

## PART 33—SPORT FISHING

### Montezuma National Wildlife Refuge, N.Y.

The following special regulation is issued and is effective on date of publication in the FEDERAL REGISTER.

**§ 33.5 Special regulations; sport fishing; for individual wildlife refuge areas.**

NEW YORK

MONTEZUMA NATIONAL WILDLIFE REFUGE

Sport fishing on the Montezuma National Wildlife Refuge, N.Y., is permitted from May 1, 1966, through April 30, 1967, on the areas designated by signs as open to fishing. Those open areas, comprising three acres, are delineated on maps available at refuge headquarters and from the office of the Regional Director, Bureau of Sport Fisheries and Wildlife, U.S. Post Office and Courthouse, Boston, Mass., 02109. Sport fishing shall be in accordance with all applicable State regulations subject to the following special condition:

(1) No boats may be left on the refuge overnight.

The provisions of this special regulation supplement the regulations governing fishing on wildlife refuge areas generally which are set forth in Title 50, Part 33, Code of Federal Regulations, and are effective through April 30, 1967.

RICHARD E. GRIFFITH,
*Regional Director, Bureau of Sport Fisheries and Wildlife.*

MAY 18, 1966.

[F.R. Doc. 66-5764; Filed, May 25, 1966; 8:47 a.m.]

## PART 33—SPORT FISHING

### Hatchie National Wildlife Refuge, Tennessee

The following special regulation is issued and is effective on date of publication in the FEDERAL REGISTER.

**§ 33.5 Special regulations; sport fishing; for individual wildlife refuge areas.**

TENNESSEE

HATCHIE NATIONAL WILDLIFE REFUGE

Sport fishing on the Hatchie National Wildlife Refuge, Brownsville, Tenn., is permitted only on the areas designated by signs as open to fishing. These open areas, comprising 100 acres, are delineated on a map that is available at the refuge headquarters and from the office of the Regional Director, Bureau of Sport Fisheries and Wildlife, 809 Peachtree-Seventh Building, Atlanta, Ga., 30323. Sport fishing shall be in accordance with all applicable State regulations subject to the following special conditions:

(1) The sport fishing season on the refuge extends from May 25, 1966, through October 15, 1966.

(2) Fishing permitted during daylight hours only.

(3) Outboard motors prohibited.

(4) Methods of fishing are limited to pole and line, or rod and reel, using natural or artificial baits.

(5) Vehicles prohibited beyond Hart's Lake No. 2 on Powell Road.

(6) Foot paths may be used to reach all lakes from Hatchie River.

(7) Firearms prohibited.

The provisions of this special regulation supplement the regulations which govern fishing on wildlife refuge areas generally which are set forth in Title 50, Code of Federal Regulations, Part 33, and are effective through October 15, 1966.

W. L. TOWNS,
*Acting Regional Director, Bureau of Sport Fisheries and Wildlife.*

MAY 17, 1966.

[F.R. Doc. 66-5765; Filed, May 25, 1966; 8:47 a.m.]

# Proposed Rule Making

## DEPARTMENT OF THE TREASURY

### Internal Revenue Service

### [ 26 CFR Part 1 ]

### INCOME TAX

### Treatment of Interest or Dividends Paid by Certain Savings Institutions on Certain Deposits or Withdrawable Accounts

Notice is hereby given, pursuant to the Administrative Procedure Act, approved June 11, 1946, that the regulations set forth in tentative form below are proposed to be prescribed by the Commissioner of Internal Revenue, with the approval of the Secretary of the Treasury or his delegate. Prior to the final adoption of such regulations, consideration will be given to any comments or suggestions pertaining thereto which are submitted in writing, in duplicate, to the Commissioner of Internal Revenue, Attention: CC:LR:T, Washington, D.C., 20224, within the period of 30 days from the date of publication of this notice in the FEDERAL REGISTER. Any person submitting written comments or suggestions who desires an opportunity to comment orally at a public hearing on these proposed regulations should submit his request, in writing, to the Commissioner within the 30-day period. In such case, a public hearing will be held, and notice of the time, place, and date will be published in a subsequent issue of the FEDERAL REGISTER. The proposed regulations are to be issued under the authority contained in section 7805 of the Internal Revenue Code of 1954 (68A Stat. 917; 26 U.S.C. 7805).

[SEAL] SHELDON S. COHEN,
*Commissioner of Internal Revenue.*

In order to conform the Income Tax Regulations (26 CFR Part 1) to the amendment made to section 461 of the Internal Revenue Code of 1954 by section 3(a) of the Act of October 24, 1962 (Public Law 87-876, 76 Stat. 1199), relating to the treatment of interest or dividends paid by certain savings institutions on certain deposits or withdrawable accounts, such regulations are amended by adding at the end of § 1.461-1 a new paragraph (e) which reads as follows:

**§1.461-1 General rule for taxable year of deduction.**

* * * * *

(e) *Dividends or interest paid by certain savings institutions on certain deposits or withdrawable accounts*—(1) *Disallowance of deduction.* Section 461 (e) provides that amounts paid to, or credited to the accounts of, depositors or holders of accounts as dividends or interest on their deposits or withdrawable accounts (if such amounts paid or credited are withdrawable on demand subject only to customary notice to withdraw) by a mutual savings bank not having capital stock represented by shares, a domestic building and loan association, or a cooperative bank shall not be allowed as a deduction for the taxable year to the extent such amounts are paid or credited for periods representing more than 12 months. The provisions of section 461 (e) are applicable with respect to taxable years ending after December 31, 1962. The provisions of this subparagraph shall not apply to a taxpayer in the year in which it liquidates (other than following, or as part of, an acquisition of its assets in which the acquiring corporation, pursuant to section 381(a), takes into account certain items of the taxpayer, which for purposes of this paragraph shall be referred to as an acquisition described in section 381(a)). Whether amounts are paid or credited for periods representing more than 12 months depends upon all the facts and circumstances in each case. For example, payments or credits which under all the facts and circumstances are in the nature of bona fide bonus interest or dividends paid or credited because a shareholder or depositor maintained a certain balance for more than 12 months, shall not be considered made for more than 12 months, providing the regular payments or credits represent a period of 12 months or less. The disallowance of a deduction to the taxpayer under this paragraph shall have no effect upon the proper time for reporting dividends or interest by a depositor or holder of a withdrawable account. With respect to a short period (a taxable year consisting of a period of less than 12 months), amounts of dividends or interest paid or credited shall not be allowed as a deduction to the extent that such amounts are paid or credited for a period representing more than the number of months in such short period. In such a case, the rules contained in section 461(e) and this paragraph shall apply to the short period in a manner consistent with the application of such rules to a 12-month taxable year. Subparagraph (2) of this paragraph provides rules for computing amounts not allowed in the taxable year and subparagraph (3) of this paragraph provides rules for determining when such disallowed amounts are allowed. See section 7701(a) (19) and (32) and the regulations thereunder for the definitions of domestic building and loan association and cooperative bank.

(2) *Computation of amounts not allowed as a deduction*—(i) *Method of computation.* The amount of the dividends or interest to which subparagraph (1) of this paragraph applies, which is not allowed as a deduction, shall be computed under the rules of this subparagraph. The amount which is not allowed as a deduction is the difference between the total amount of dividends or interest paid or credited during the taxable year (or short period, if applicable) and an amount which bears the same ratio to such total as the number 12 (or number of months in the short period) bears to the number of months with respect to which such amounts of dividends or interest are paid or credited.

(ii) *Examples.* The provisions of subdivision (i) of this subparagraph may be illustrated by the following examples:

*Example (1).* X Association, a domestic building and loan association filing its return on the basis of a calendar year, regularly credits dividends on its withdrawable accounts quarterly on the first day of the quarter following the quarter with respect to which they are earned. X changes the time of crediting dividends commencing with the credit for the fourth quarter of 1964. Such credit and all subsequent credits are made on the last day of the quarter with respect to which they are earned. As a result of this change X's credits for the year 1964 are as follows:

| Period with respect to which earned | Date credited in 1964 | Amount |
|---|---|---|
| Fourth quarter, 1963 | Jan. 1 | $250,000 |
| First quarter, 1964 | Apr. 1 | 300,000 |
| Second quarter, 1964 | July 1 | 300,000 |
| Third quarter, 1964 | Oct. 1 | 300,000 |
| Fourth quarter, 1964 | Dec. 31 | 350,000 |
| Total dividends credited | | 1,500,000 |

Since the change in the time of crediting dividends results in the crediting in 1964 of amounts of dividends representing periods totaling 15 months (October 1963, through December 1964), amounts shall not be allowed as a deduction in 1964 which are in excess of $1,200,000, which is the amount which bears the same ratio to the amounts of dividends credited during the year ($1,500,000) as the number 12 bears to the number of months (15) with respect to which such dividends are credited. Thus, $300,000 ($1,500,000 minus $1,200,000) is not allowed as a deduction in 1964.

*Example (2).* Y Association, a domestic building and loan association filing its return on the basis of a calendar year, regularly credits dividends on its withdrawable accounts on the basis of a semiannual period on March 31 and September 30 of each year. Y changes the period with respect to which credits are made from the semiannual period to the quarterly basis, commencing with the last quarter in 1964. The credit for this last quarter and all subsequent credits are made on the last day of the quarter with respect to which they are earned. As a result of this change, Y's credits for the year 1964 are as follows:

| Period with respect to which earned | Date credited in 1964 | Amount |
|---|---|---|
| Six-month period ending Mar. 31, 1964. | Mar. 31 | $300,000 |
| Six-month period ending Sept. 30, 1964. | Sept. 30 | 400,000 |
| Fourth quarter-1964 | Dec. 31 | 200,000 |
| Total dividends credited | | 900,000 |

Since the change in the basis of crediting dividends results in a crediting in 1964 of dividends representing periods totaling 15 months (October 1963, through December 1964), amounts shall not be allowed as a deduction in 1964 which are in excess of $720,000, which is the amount which bears the same ratio to the amounts of dividends credited during the year ($900,000) as the number 12 bears to the number of months (15) with respect to which such dividends are credited. Thus $180,000 ($900,000 minus $720,000) is not allowed as a deduction in 1964.

*Example* (3). Z Association, a domestic building and loan association regularly files its return on the basis of a fiscal year ending on the last day of February and regularly credits dividends on its withdrawable accounts quarterly on the last day of the quarter with respect to which they are earned. Z receives approval from the Commissioner of Internal Revenue to change its accounting period to a calendar year and effects the change by filing a return for a short period ending on December 31, 1964. Dividend credits for the short period beginning on March 1 and ending on December 31, 1964, are as follows:

| Period with respect to which earned | Date credited 1964 | Amount |
|---|---|---|
| Jan.-Mar., 1964 | Mar. 31 | $250,000 |
| April-June, 1964 | June 30 | 300,000 |
| July-Sept., 1964 | Sept. 30 | 300,000 |
| Oct.-Dec., 1964 | Dec. 31 | 350,000 |
| Total dividends credited | | 1,200,000 |

Since the change of accounting period results in amounts of dividends credited ($1,200,000) representing periods totaling 12 months (January through December 1964), and such periods represent more than the number of months (10) in the short period, an amount shall not be allowed as a deduction in such short period which is in excess of $1,000,000, which is the amount which bears the same ratio to the amount of dividends credited in the short period ($1,200,000) as the number of months (10) in the short period bears to the number of months (12) with respect to which such dividends are credited. Thus, $200,000 ($1,200,000 minus $1,000,000) is not allowed as a deduction in the short period.

(3) *When amounts allowable.* The amount of dividends or interest disallowed as a deduction under subparagraph (1) of this paragraph shall be allowed as follows (subject to the limitation that the total of the amounts so allowed shall not exceed the amount disallowed under subparagraph (1) of this paragraph):

(i) Such amount shall be allowed as a deduction in a later taxable year or years to the extent that, when taken together with the deductions otherwise allowable in the later taxable year or years, it does not bring the deductions for any later taxable year to a total representing a period of more than 12 months (or number of months in the short period, if applicable).

(ii) In any case in which it is established by clear and convincing evidence to the satisfaction of the Commissioner that the taxpayer does not intend to avoid taxes and does not achieve any appreciable tax reduction by the timing of the deduction, one-tenth of such amount shall be allowed as a deduction in each of the 10 succeeding taxable years, commencing with the taxable year for which such amount is disallowed as a deduction under subparagraph (1) of this paragraph. Normally, if the disallowance of the deduction under subparagraph (1) of this paragraph is a result of a change, not initiated by the taxpayer, in the taxpayer's annual accounting period or accounting method solely as a consequence of a requirement of a Federal or State regulatory authority, or if the disallowance is a result of the taxpayer being a party to an acquisition to which section 381(a) applies, and its annual accounting period or accounting method is changed because different periods or methods are used by the acquiring corporation and the distributor or transferor corporation, the Commissioner will permit the allowance of the disallowed amount in the manner provided in this subdivision.

(iii) If the total of the amounts, if any, allowed under subdivisions (i) and (ii) of this subparagraph before the taxable year in which the taxpayer liquidates or otherwise ceases to engage in trade or business is less than the amount disallowed under subparagraph (1) of this paragraph, there shall be allowed a deduction in such taxable year for the difference between the amount disallowed under subparagraph (1) of this paragraph and the amounts allowed, if any, as deductions under subdivisions (i) and (ii) of this subparagraph unless the circumstances under which the taxpayer ceased to do business constitute an acquisition described in section 381(a) (relating to carryovers in certain corporate acquisitions). If the circumstances under which the taxpayer ceased to do business constitute an acquisition described in section 381(a), the acquiring corporation shall succeed to and take into account the balance of the disallowed amounts on the same basis as the taxpayer, had it not ceased to engage in business.

[F.R. Doc. 66-5800; Filed, May 25, 1966; 8:50 a.m.]

# DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

## Food and Drug Administration

## [ 21 CFR Part 19 ]

## CREAMED COTTAGE CHEESE

## Proposal To Amend Identity Standard

Notice is given that Crest Foods Co., Inc., Ashton, Ill., 61006, and Land O'Lakes Creameries, Inc., Minneapolis, Minn., 55413, have submitted a petition proposing that the standard of identity for creamed cottage cheese (21 CFR 19.530) be amended by listing the sodium, ammonium, calcium, and potassium salts of casein and dried milk protein as optional ingredients in the creaming mixture. The standard presently permits the optional use of nonfat dry milk or concentrated skim milk to adjust the solids content of the creaming mixture provided the weight of solids added thereby does not exceed 3 percent of the weight of the creaming mixture. The petitioners propose that the additional optional caseinate ingredients and dried milk protein be permitted within this same limitation on weight of solids used.

Grounds set forth in the petition to support the amendment are that the caseinates and dried milk protein when added to the creaming mixture form a more permanent film of creaming mixture on the curd and thereby effectively reduce syneresis or whey separation.

The petition also proposes label declaration of the optional ingredients when used in the manufacture of creamed cottage cheese.

Accordingly, it is proposed that § 19.530 (b), (c), and (d)(1) be revised to read as follows:

§ 19.530 Creamed cottage cheese; identity; label statement of optional ingredients.

* * * * *

(b) The creaming mixture consists of cream or a mixture of cream with milk or skim milk or both, to which one or more of the following optional ingredients may be added, subject to the conditions set forth in this section:

(1) Salt.

(2) Nonfat dry milk, concentrated skim milk, sodium caseinate, ammonium caseinate, calcium caseinate, potassium caseinate, or dried milk protein may be added singly or in any combination to adjust the solids content, provided the weight of the solids added thereby does not exceed 3 percent of the weight of the creaming mixture.

(3) A culture of harmless lactic acid and flavor-producing bacteria, with or without rennet.

(4) A preparation of pasteurized skim milk with added citric acid, which preparation has been cultured with harmless flavor- and aroma-producing bacteria.

(5) Lactic acid, citric acid, phosphoric acid.

(6) (i) A stabilizing ingredient consisting of one or any mixture of two or more of the following: Carob (locust) bean gum, guar gum, gum karaya, gum tragacanth, calcium sulfate; carrageenan or salts of carrageenan complying with the requirements of §§ 121.1066 and 121.1067 of this chapter; furcelleran or salts of furcelleran, complying with the requirements of §§ 121.1068 and 121.1069 of this chapter; gelatin, lecithin, algin (sodium alginate), propylene glycol alginate, sodium carboxymethylcellulose (cellulose gum).

(ii) Stabilizing ingredients used may be added in a mixture with a carrier consisting of one or any mixture of two or more of the following: Sugar, dex-

trose, corn sirup solids, dextrin, glycerin, propylene glycol. The quantity of the stabilizing ingredient, including any carrier used, is such that the weight of solids contained therein is not more than 0.5 percent of the weight of the creaming mixture.

The creaming mixture is pasteurized, except that the bacterial cultures permitted by this paragraph and the acids listed in subparagraph (5) of this paragraph may be added after pasteuriztaion.

(c) For the purposes of this section:

(1) "Milk" means sweet milk of cows; "skim milk" means milk from which the milk fat has been separated; and "concentrated skim milk" means skim milk from which a portion of the water has been removed by evaporation.

(2) "Sodium caseinate," "ammonium caseinate," "calcium caseinate," and "potassium caseinate" means the dried form of the reaction product resulting from treating casein precipitated from skim milk with a suitable alkali in such a manner that no excess of alkali is present, as determined by a pH of not more than 8.0 in a 2-percent solution at 25° C.

(3) "Dried milk protein" means the dried form of the reaction product resulting from treating coprecipitates of milk proteins of which casein and lactalbumin are the constituents of major content with a suitable alkali in such manner that no excess of alkali is present, as determined by a pH of not more than 8.0 in a 2-percent solution at 25° C.

(d) (1) When one or a mixture of two or more of the optional ingredients listed in paragraphs (b) (5) and (6) (i) and (c) (2) and (3) of this section is used, the label shall bear the statement "_____ added" or "with added _____," the blank being filled in with the common name or names of the optional ingredients used; *Provided, however,* That the name "vegetable gum" may be used in lieu of the specific names for carob (locust) bean gum, guar gum, gum karaya, and gum tragacanth.

* * * * *

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (secs. 401, 701, 52 Stat. 1046, 1055, as amended 70 Stat. 919, 72 Stat. 948; 21 U.S.C. 341, 371) and in accordance with the authority delegated to the Commissioner of Food and Drugs by the Secretary of Health, Education, and Welfare (21 CFR 2.120; 31 F.R. 3008), all interested persons are invited to submit their views in writing, preferably in quintuplicate, regarding this proposal. Such views and comments should be addressed to the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington, D.C., 20201, within 60 days following the date of publication of this notice in the FEDERAL REGISTER, and may be accompanied by a memorandum or brief in support thereof.

Dated: May 19, 1966.

J. K. KIRK,
*Assistant Commissioner for Operations.*

[F.R. Doc. 66-5812; Filed, May 25, 1966; 8:51 a.m.]

## [ 21 CFR Part 166 ]

[Docket No. FDA-DAC-1]

## DEPRESSANT AND STIMULANT DRUGS

### Meprobamate; Notice of Scheduling of Additional Prehearing Conference

In the matter of listing meprobamate as a drug subject to control under the Drug Abuse Control Amendments of 1965:

An order was published in the FEDERAL REGISTER of March 19, 1966 (31 F.R. 4679), which, among other things, amended Part 166 by adding to § 166.3 a new paragraph (c) designating meprobamate, among other drugs, as a drug subject to control under the Drug Abuse Control Amendments of 1965, in view of its potential for abuse because of its depressant effect on the central nervous system.

After publication of this order, Wallace Laboratories, a division of Carter-Wallace, Inc., Cranbury, N.J., filed objections to the listing of meprobamate and requested a public hearing. It was concluded that the objections of Wallace Laboratories stated reasonable grounds.

Accordingly, there was published in the FEDERAL REGISTER of May 17, 1966 (31 F.R. 7174), an order which, among other things, announced action on objections and also announced that a hearing will be held beginning at 10 a.m., e.d.t., on June 27, 1966, in Room 5131, Health, Education, and Welfare Building, 330 Independence Avenue SW., Washington, D.C., for the purpose of receiving evidence relevant and material to the issues set forth in the order. Also, a prehearing conference was announced for the simplification of the issues, exchange of documentary evidence, the scheduling of witnesses, and such other matters as may aid in the disposition of the hearing, to be held at the same location as the hearing, beginning at 10 a.m. on June 21 1966.

Upon the request of Wallace Laboratories, supported by reasonable grounds, it has been concluded that it will expedite the preparation for the hearing in this matter to hold an additional prehearing conference.

Therefore, pursuant to the authority vested in the Secretary of Health, Education, and Welfare by the Federal Food, Drug, and Cosmetic Act (secs. 201(v), 511, 701, 52 Stat. 1055, as amended, 79 Stat. 227 et seq.; 21 U.S.C. 321(v), 360a, 371) and delegated by him to the Commissioner of Food and Drugs (21 CFR 2.120; 31 F.R. 3008), notice is given that an additional prehearing conference for the simplification of the issues, exchange of documentary evidence, the scheduling of witnesses, and such other matters as may aid in the disposition of the proceeding involving the drug meprobamate, will be held in Room 5131, Health, Education, and Welfare Building, 330 Independence Avenue SW., Washington, D.C., beginning at 10 a.m., e.d.t., on June 14, 1966.

All interested persons are invited to attend, and any interested person desiring to appear at the hearings or prehearing conferences should file with the hearing examiner a written notice of appearance, as specified in §§ 2.60 and 2.64 (21 CFR 2.60, 2.64; 31 F.R. 3004), setting forth his name, address, and interest. If any interested person desires to be heard through a representative, such person or representative should file with the hearing examiner a written notice of appearance setting forth the name, address, and employment of such person. These written notices of appearance should be filed as soon as possible or brought to the prehearing conference herein announced.

Any interested person intending to introduce documentary evidence at the hearing shall bring five copies thereof to the prehearing conference.

Mr. William E. Brennan, Room 6411, Federal Building No. 8, 200 C Street SW., Washington, D.C., 20204, is the designated hearing examiner for the proceedings announced herein.

Dated: May 23, 1966.

WILLIAM E. BRENNAN,
*Hearing Examiner.*

[F.R. Doc. 66-5852; Filed, May 25, 1966; 8:53 a.m.]

# FEDERAL AVIATION AGENCY

## [ 14 CFR Part 71 ]

[Airspace Docket No. 65-SO-90]

## FEDERAL AIRWAYS

### Proposed Alteration

The Federal Aviation Agency is considering amendments to Part 71 of the Federal Aviation Regulations that would raise the floors of Federal airway segments in the Atlanta, Ga., flight advisory area.

Interested persons may participate in the propsed rule making by submitting such written data, views, or arguments as they may desire. Communications should identify the airspace docket number and be submitted in triplicate to the Director, Southern Region, Attention: Chief, Air Traffic Division, Federal Aviation Agency, Post Office Box 20636, Atlanta, Ga., 30320. All communications received within 45 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendments. The proposals contained in this notice may be changed in the light of comments received.

An official docket will be available for examination by interested persons at the Federal Aviation Agency, Office of the General Counsel, Attention: Rules Docket, 800 Independence Avenue SW., Washington, D.C., 20553. An informal docket also will be available for examination at the Office of the Regional Air Traffic Division Chief.

The Federal Aviation Agency proposes to amend pertinent segments of the following airways as hereinafter set forth.

1. V-5 From Dublin, Ga., 1,200 feet AGL via Rex, Ga., including a 1,200 feet AGL W alternate via Macon, Ga., and INT Macon 335° and Rex 140° True ra-

dials; 1,200 feet AGL INT Rex 345° and Chattanooga, Tenn., 118° True radials; 1,200 feet AGL to Chattanooga, including a 1,200 feet AGL W alternate from Rex to Chattanooga via INT Rex 268° and Atlanta, Ga., 347° True radials and INT Atlanta 347° and Chattanooga 152° True radials.

2. V–7 From Dothan, Ala., 1,200 feet AGL via INT Dothan 333° and Montgomery, Ala., 129° True radials; 1,200 feet AGL Montgomery; 1,200 feet AGL INT Montgomery 308° and Birmingham, Ala., 180° True radials; 7 mi. wide (4 mi. on E, 3 mi. on W and within 4.5° of the centerline) 1,200 feet AGL Birmingham; 1,200 feet AGL Muscle Shoals, Ala., including a 1,200 feet AGL E alternate via INT Birmingham 358° and Muscle Shoals 122° True radials.

3. V–16 From Crossville, Tenn., 1,200 feet AGL via Knoxville, Tenn., including a 1,200 feet AGL S alternate via INT Crossville 100° and Knoxville 247° True radials; 1,200 feet AGL Holston Mountain, Tenn., including a 1,200 feet AGL S alternate from Knoxville to Holston Mountain via Snowbird, Tenn.; 1,200 feet AGL to Pulaski, Va., including a 1,200 feet AGL N alternate from Knoxville to Pulaski via INT Knoxville 050° and Blackford, Va., 246° True radials and Blackford.

4. V–18 From Tuscaloosa, Ala., 1,200 feet AGL via Birmingham, Ala.; 1,200 feet AGL Anniston, Ala.; 1,200 feet AGL Rex, Ga.; 1,200 feet AGL INT Rex 090° and Augusta, Ga., 278° True radials; 1,200 feet AGL to Augusta, including a 1,200 feet AGL S alternate from Birmingham to Augusta via INT of Birmingham 114° and Brookwood, Ala., 083° True radials; Atlanta, Ga., and INT Atlanta 098° and Augusta 263° True radials.

5. V–20 From Mobile, Ala., 1,200 feet AGL via INT Mobile 048° and Monroeville, Ala., 231° True radials; 1,200 feet AGL Monroeville, including a 1,200 feet AGL N alternate via INT Mobile 033° and Monroeville 250° True radials and also a 1,200 feet AGL, 6 mi. wide S alternate via INT Mobile 063° and Monroeville 216° True radials; 1,200 feet AGL Montgomery, Ala.; 1,200 feet AGL La Grange, Ga.; 1,200 feet AGL Atlanta, Ga., including a 1,200 feet AGL N alternate from Montgomery to Atlanta via INT Montgomery 033° and Atlanta 248° True radials; 1,200 feet AGL Rex, Ga.; 1,200 feet AGL Anderson, S.C.; 1,200 feet AGL Spartanburg, S.C., including a 1,200 feet AGL N alternate from Atlanta to Spartanburg via Norcross, Ga., and INT Norcross 055° and Spartanburg 244° True radials; 1,200 feet AGL Greensboro, N.C.; 1,200 feet AGL South Boston, Va.

6. V–35 From Albany, Ga., 1,200 feet AGL via Macon, Ga., including a 1,200 feet AGL W alternate via INT Albany 010° and Macon 228° True radials; 1,200 feet AGL Athens, Ga.; 1,200 feet AGL Asheville, N.C.; 1,200 feet AGL to Holston Mountain, Tenn., including a 1,200 feet AGL E alternate via INT Asheville 022° and Holston Mountain 146° True radials and also a 1,200 feet AGL W alternate via INT Asheville 301° and Holston Mountain 203° True radials.

7. V–37 From Fort Mill, S.C., 1,200 feet AGL to Pulaski, Va., including a 1,200 feet AGL W alternate via Hickory, N.C.

8. V–45 From Raleigh-Durham, N.C., 1,200 feet AGL to Greensboro, N.C.

9. V–51 From Dublin, Ga., 1,200 feet AGL via Rex, Ga.; 1,200 feet AGL Crossville, Tenn.; 1,200 feet AGL to Highway, Tenn.

10. V–53 From Columbia, S.C., 1,200 feet AGL via Spartanburg, S.C.; 1,200 feet AGL Asheville, N.C., including a 1,200 feet AGL W alternate from Columbia to Asheville via Greenwood, S.C., excluding the airspace between the main and this W alternate; 1,200 feet AGL to Holston Mountain, Tenn.

11. V–54 From Muscle Shoals, Ala., 1,200 feet AGL via Huntsville, Ala., including a 1,200 feet AGL N alternate via INT Muscle Shoals 067° and Huntsville 282° True radials; 1,200 feet AGL Chattanooga, Tenn., including a 1,200 feet AGL N alternate and also a 1,200 feet AGL S alternate via INT Huntsville 097° and Chattanooga 229° True radials; 1,200 feet AGL Harris, Ga.; 1,200 feet AGL Spartanburg, S.C.; 1,200 feet AGL Fort Mill, S.C.; 1,200 feet AGL to Pinehurst, N.C.

12. V–56 From Montgomery, Ala., 1,200 feet AGL via INT Montgomery 049° and Columbus, Ga., 270° True radials; 1,200 feet AGL Columbus; 1,200 feet AGL Macon, Ga.; 1,200 feet AGL to Augusta, Ga.

13. V–57 From Birmingham, Ala., 1,200 feet AGL to Decatur, Ala., including a 1,200 feet AGL E alternate via INT Birmingham 013° and Decatur 130° True radials.

14. V–66 From Tuscaloosa, Ala., 1,200 feet AGL via Brookwood, Ala.; 15 mi., 7 mi. wide (4 mi. N and 3 mi. S of centerline) 1,200 feet AGL Atlanta, Ga.; 1,200 feet AGL Rex, Ga.; 1,200 feet AGL INT Rex 090° and Athens, Ga., 238° True radials; 1,200 feet AGL Athens; 1,200 feet AGL Fort Mill, S.C.; 1,200 feet AGL to Raleigh-Durham, N.C.

15. V–70 From Greene County, Miss., 1,200 feet AGL via Monroeville, Ala.; 1,200 feet AGL INT Monroeville 073° and Eufaula, Ala., 258° True radials; 1,200 feet AGL Eufaula; 1,200 feet AGL to Vienna, Ga.

16. V–97 From Albany, Ga., 1,200 feet AGL via Atlanta, Ga., including a 1,200 feet AGL E alternate from Albany to Atlanta via INT of Albany 010° and Rex, Ga., 173° True radials, INT of Rex 173° and Atlanta 147° True radials; 1,200 feet AGL via INT Atlanta 007° and Knoxville, Tenn., 198° True radials; 1,200 feet AGL to Knoxville, including a 1,200 feet AGL E alternate from Atlanta to Knoxville via Norcross, Ga., and Harris, Ga.

17. V–115 From Montgomery, Ala., 1,200 feet AGL INT Montgomery 308° and Birmingham, Ala., 180° True radials; 7 miles wide (4 miles on E and 3 miles on W and within 4.5° of centerline) 1,200 feet AGL Birmingham; 1,200 feet AGL Chattanooga, Tenn., including a 1,200 feet AGL E alternate via INT Birmingham 097° and Gadsden, Ala., 233° True radials, Gadsden, INT Gadsden 042° and Chattanooga 214° True radials; 1,200 feet AGL INT Chattanooga 037° and Knoxville, Tenn., 247° True radials; 1,200 feet AGL to Knoxville.

18. V–133 From Fort Mill, S.C., 1,200 feet AGL to Hickory, N.C.

19. V–143 From Fort Mill, S.C., 1,200 feet AGL to Greensboro, N.C.

20. V–154 From Kewanee, Miss., 1,200 feet AGL via Selma, Ala.; 1,200 feet AGL Montgomery, Ala.; 1,200 feet AGL Tuskegee, Ala.; 1,200 feet AGL INT Tuskegee 078° and Columbus, Ga., 255° True radials; 1,200 feet AGL Columbus, including a 1,200 feet AGL S alternate from Montgomery to Columbus via INT Montgomery 090° and Columbus 219° True radials; 1,200 feet AGL Macon, Ga.; 1,200 feet AGL to Dublin, Ga.

21. V–159 From Eufaula, Ala., 1,200 feet AGL via Tuskegee, Ala.; 1,200 feet AGL to Birmingham, Ala.

22. V–185 From Greenwood, S.C., 1,200 feet AGL via Asheville, N.C.; 1,200 feet AGL Snowbird, Tenn.; 1,200 feet AGL INT Snowbird 301° and Knoxville, Tenn., 069° True radials; 1,200 feet AGL to Knoxville, including a 1,200 feet AGL E alternate from Asheville to Knoxville via INT Asheville 329° and Knoxville 069° True radials.

23. V–194 From Norcross, Ga., 1,200 feet AGL via INT Norcross 055° and Anderson, S.C., 267° True radials; 1,200 feet AGL Anderson; 1,200 feet AGL INT Anderson 065° and Charlotte, N.C., 240° True radials; 1,200 feet AGL Charlotte; 1,200 feet AGL Liberty, N.C.; 1,200 feet AGL to Raleigh-Durham, N.C.

24. V–222 From Hattiesburg, Miss., 1,200 feet AGL Monroeville, Ala. From Norcross, Ga., 1,200 feet AGL via INT Norcross 010° and Toccoa, Ga., 230° True radials; 1,200 feet AGL Toccoa; 1,200 feet AGL Asheville, N.C.; 1,200 feet AGL to Hickory, N.C.

25. V–241 From Dothan, Ala., 1,200 feet AGL via Eufaula, Ala.; 1,200 feet AGL Columbus, Ga., including a 1,200 feet AGL W alternate from Dothan to Columbus via INT Dothan 002° and Columbus 219° True radials; 1,200 feet AGL INT Columbus 086° and Atlanta, Ga., 198° True radials; 1,200 feet AGL to Atlanta; including a 1,200 feet AGL W alternate via INT Columbus 019° and Atlanta 233° True radials and also a 1,200 feet AGL E alternate via INT Columbus 086° and Atlanta 198° True radials, INT of Columbus 041° and Atlanta 198° True radials and INT Columbus 041° and Atlanta 174° True radials.

26. V–243 From Vienna, Ga., 1,200 feet AGL via Atlanta, Ga., including a 1,200 feet AGL E alternate from INT of Vienna 328° and Macon, Ga., 205° True radials to INT of Macon 297° and Vienna 328° True radials via Macon; 1,200 feet AGL INT Atlanta 347° and Chattanooga, Tenn., 152° True radials; 1,200 feet AGL to Chattanooga.

27. V–245 From Jackson, Miss., 1,200 feet AGL Columbus, Miss., excluding the airspace at 8,000 feet MSL and above.

28. V–259 From Fort Mill, S.C., 1,200 feet AGL to Holston Mountain, Tenn., including a 1,200 feet AGL E alternate

via Hickory, N.C., and INT Hickory 350° and Holston Mountain 104° True radials.

29. V–266 From Hickory, N.C., 1,200 feet AGL to South Boston, Va.

30. V–267 From Dublin, Ga., 1,200 feet AGL via Norcross, Ga.; 1,200 feet AGL Harris, Ga.; 1,200 feet AGL to Knoxville, Tenn.

31. V–278 From Columbus, Miss., 1,200 feet AGL to Birmingham, Ala., including a 1,200 feet AGL S alternate via INT of Columbus 082° and Tuscaloosa, Ala., 304° True radials and Tuscaloosa.

32. V–296 From Asheville, N.C., 1,200 feet AGL to Fort Mill, S.C.

33. V–310 From Holston Mountain, Tenn., 1,200 feet AGL via INT Holston Mountain 104° and Greensboro, N.C., 280° True radials; 1,200 feet AGL to Greensboro.

34. V–311 From Norcross, Ga., 1,200 feet AGL via INT Norcross 055° and Anderson, N.C., 267° True radials; 1,200 feet AGL Anderson; 1,200 feet AGL Greenwood, S.C.; 1,200 feet AGL Columbia, S.C.

35. V–321 From Huntsville, Ala., 1,200 feet AGL via INT Huntsville 149° and Gadsden, Ala., 333° True radials; 1,200 feet AGL Gadsden; 1,200 feet AGL INT Gadsden 130° and Atlanta, Ga., 264° True radials; 1,200 feet AGL to Atlanta.

36. V–325 From Muscle Shoals, Ala., 1,200 feet AGL to Gadsden, Ala., including a 1,200 feet AGL N alternate from Muscle Shoals to Gadsden via Decatur, Ala., and INT Decatur 130° and Gadsden 318° True radials.

37. V–425 From Brookley, Ala., 1,200 feet AGL to INT Brookley 357° and Mobile, Ga., 048° True radials.

38. V–454 From Monroeville, Ala., 1,200 feet AGL via INT Monroeville 073° and Columbus, Ga., 219° True radials; 1,200 feet AGL Columbus; 1,200 feet AGL INT Columbus 019° and Atlanta, Ga., 233° True radials; 1,200 feet AGL Atlanta; 1,200 feet AGL Rex, Ga.; 1,200 feet AGL INT Rex 090° and Greenwood, S.C., 240° True radials; 1,200 feet AGL Greenwood; 1,200 feet AGL INT Greenwood 060° and Fort Mill, S.C., 227° True radials; 1,200 feet AGL Fort Mill; 1,200 feet AGL Liberty, N.C.; 1,200 feet AGL Lawrenceville, Va.

1,200 feet AGL floors are proposed herein to retain cardinal altitudes, and radar vector altitudes down to the minimum obstruction altitudes, and for aeronautical chart legibility. In some instances the floors could be raised above 1,200 feet AGL, however, because of the short distances involved and height that the floors could be raised, the increase in uncontrolled airspace would be negligible. The airway alignments described herein reflect those under consideration in Airspace Dockets Nos. 65–SO–28 (31 F.R. 2490), 65–SO–50 (31 F.R. 5055) and 65–SO–59 (31 F.R. 3499).

These amendments are proposed under the authority of section 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348).

Issued in Washington, D.C., on May 19, 1966.

T. McCORMACK,
*Acting Chief, Airspace and Air Traffic Rules Division.*

[F.R. Doc. 66–5752; Filed, May 25, 1966; 8:46 a.m.]

---

## [ 14 CFR Part 71 ]

[Airspace Docket No. 66–CE–46]

## CONTROL ZONE AND TRANSITION AREA

### Proposed Alteration

The Federal Aviation Agency is considering amendments to Part 71 of the Federal Aviation Regulations which would alter the controlled airspace in the Hutchinson, Kans., terminal area. A JAL/TACAN No. 2 approach for the Hutchinson ANG Base has been proposed, necessitating a revision of controlled airspace protection.

The Hutchinson, Kans., control zone is presently designated as that airspace within a 5-mile radius of the Hutchinson Municipal Airport (latitude 38°03'56" N., longitude 97°51'38" W.), and within 2 miles each side of the 042° radial of the Hutchinson VORTAC extending from the 5-mile radius zone SW to the VORTAC, and within a 5-mile radius of the Hutchinson ANG Base (latitude 37°55'-35" N., longitude 97°54'20" W.).

The Hutchinson, Kans., transition area is presently designated as that airspace extending upward from 700 feet above the surface within an 8-mile radius of Hutchinson Municipal Airport (latitude 38°03'56" N., longitude 97°51'38" W.), and within a 7-mile radius of Hutchinson ANG Base (latitude 37°55'35" N., longitude 97°54'20" W.), and within 8 miles NW and 5 miles SE of the 222° radial of the Hutchinson VORTAC extending from the VORTAC to a point 12 miles SW, and within 8 miles W and 5 miles E of the 342° radial of the Hutchinson VORTAC extending from the VORTAC to a point 12 miles N and within 8 miles NE and 5 miles SW of the Hutchinson ILS localizer NW course extending from the 8-mile radius area to a point 12 miles NW of the OM; and that airspace extending upward from 1,200 feet above the surface within a 30-mile radius of the Hutchinson VORTAC, and within 5 miles SW and 8 miles NE of the Hutchinson VORTAC 296° radial extending from the 30-mile radius to 33 miles NW of the VORTAC, and the area SW of Hutchinson bounded on the NE by the arc of the 30-mile radius circle centered on the Hutchinson VORTAC, on the S by the N edge of V–12N, on the NW by the SE edge of V–280, excluding the Wichita transition area; and that airspace W of Hutchinson extending upward from 3,500 feet MSL bounded on the E by the arc of the 30-mile radius circle centered on Hutchinson VORTAC on the S by the N edge of V–10, and on the N by the S edge of V–10N, excluding the Great Bend transition area.

In order to provide protection for aircraft executing the JAL/TACAN No. 2 approach procedure and to provide protection for aircraft operating in the Groveland intersection holding pattern airspace, the Federal Aviation Agency proposes the following airspace actions:

(1) Redesignate the Hutchinson, Kans., control zone, as that airspace within a 5-mile radius of the Hutchinson Municipal Airport (latitude 38°03'-56" N., longitude 97°51'38" W.); within 2 miles each side of the 042° radial of the Hutchinson VORTAC extending from the 5-mile radius zone SW to the VORTAC; within a 5-mile radius of the Hutchinson ANG Base (latitude 37°55'-35" N., longitude 97°54'20" W.); and within 2 miles each side of the 166° bearing from the Hutchinson ANG Base extending from the 5-mile radius zone to a point 7 miles S of the Air Base.

(2) Redesignate the Hutchinson, Kans., transition area as that airspace extending upward from 700 feet above the surface within an 8-mile radius of the Hutchinson Municipal Airport (latitude 38°03'56" N., longitude 97°51'38" W.) and within a 7-mile radius of the Hutchinson ANG Base (latitude 37°55'-35" N., longitude 97°54'20" W.), and within 2 miles each side of the 166° bearing from the Hutchinson ANG Base extending from the 7-mile radius area to a point 5 miles S, and within 8 miles NW and 5 miles SE of the 222° radial of the Hutchinson VORTAC extending from the VORTAC to a point 12 miles SW, and within 8 miles W and 5 miles E of the 342° radial of the Hutchinson VORTAC extending from the VORTAC to a point 12 miles N and within 8 miles NE and 5 miles SW of the Hutchinson ILS localizer NW course extending from the 8-mile radius area to a point 12 miles NW of the OM; and that airspace extending upward from 1,200 feet above the surface within a 30-mile radius of the Hutchinson VORTAC and within 8 miles W and 5 miles E of the Hutchinson VORTAC 025° radial extending from the 30-mile radius area to a point 40 miles N of the VORTAC, and within 5 miles SW and 8 miles NE of the Hutchinson VORTAC 296° radial extending from the 30-mile radius area to 33 miles NW of the VORTAC, and the area SW of Hutchinson bounded on the NE by the arc of the 30-mile radius circle centered on the Hutchinson VORTAC, on the S by the N edge of V–12N, on the NW by the SE edge of V–280, excluding the Wichita transition area.

Air traffic control requirements no longer exist for the 3,500-foot floor transition area associated with the Hutchinson terminal area.

The floors of the airways that traverse the transition area proposed herein would automatically coincide with the floors of the transition area.

Specific details of the JAL/TACAN No. 2 approach procedure may be examined by contacting the Chief, Airspace Branch, Air Traffic Division, Central Region, Federal Aviation Agency, 4825 Troost Avenue, Kansas City, Mo., 64110.

Interested persons may submit such written data, views or arguments as they may desire. Communications should be submitted in triplicate to the Director, Central Region, Attention: Chief, Air Traffic Division, Federal Aviation Agency, 4825 Troost Avenue, Kansas City, Mo., 64110. All communications received within 45 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. No public hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Agency officials may be made by contacting the Regional Air Traffic Division Chief. Any data, views, or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

The public docket will be available for examination by interested persons in the office of the Regional Counsel, Federal Aviation Agency, 4825 Troost Avenue, Kansas City, Mo., 64110.

This amendment is proposed under the authority of section 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348).

Issued at Kansas City, Mo., on May 17, 1966.

FRANCIS E. UNTI,
*Acting Director, Central Region.*

[F.R. Doc. 66-5753; Filed, May 25, 1966; 8:46 a.m.]

# FEDERAL COMMUNICATIONS COMMISSION

## [ 47 CFR Part 73 ]

[Docket No. 16601]

## CERTAIN FM BROADCAST STATIONS

### Order Extending Time for Filing Comments and Reply Comments

In the matter of Amendment of § 73.202 *Table of Assignments*, FM Broadcast Stations (Mount Sterling, Ky., Litchfield, Minn., Oconto, Wis., Dodgeville, Wis., Clare, Mich., Tioga, N. Dak., Prentiss, Miss., Crossett, Ark., Bristow, Okla., Boone, Iowa, Oxford and Clarksdale, Miss., Warsaw, Va., Kingsport, Tenn., Norton, Va., and Neon, Ky.); Docket Nos. 16601; RM-921, RM-922, RM-923, RM-925, RM-931, RM-932, RM-935, RM-938, RM-929, RM-933, RM-934, RM-939.

1. On April 20, 1966, the Commission adopted a notice of proposed rule making (FCC 66-367; 31 F.R. 6429, Apr. 28, 1966) in the above-entitled proceeding which invited comments and reply comments by May 20 and May 31, 1966, respectively, on proposals to amend the FM Table of Assignments with regard to the above-named communities in the caption.

2. On May 20, 1966, Radio Station WKIN, Inc., licensee of Station WKIN (AM), Kingsport, Tenn., filed a motion for extension of time to May 27, 1966, in which to file comments on the proposal, contained in paragraph 13 of the notice of proposed rule making, to amend the FM Table of Assignments with regard to Kingsport, Tenn.; Norton, Va.; and Neon, Ky.

3. In support thereof, WKIN avers that it is in the process of preparing comments which it believes will be of aid to the Commission in this regard, that it will not be possible to complete and file the comments by May 20, 1966, and that the short extension cannot significantly delay Commission action on the proposal contained in paragraph 13 of the notice or any other aspect of the proceeding.

4. It appears that the public interest would be served by a grant of the motion.

5. In view of the foregoing: *It is ordered*, This 20th day of May 1966, That the "Motion for Extension of Time" filed on May 20, 1966, by Radio Station WKIN, Inc., in this proceeding is granted, and that the time for filing comments and reply comments concerning the proposals (for Kingsport, Tenn., Norton, Va., and Neon, Ky.) made in paragraph 13 of the notice of proposed rule making herein is extended from May 20, 1966, to May 27, 1966, and from May 31, 1966, to June 7, 1966, respectively. The filing dates with regard to all other proposals in this proceeding remain as set forth in the notice of proposed rule making.

6. This action is taken pursuant to authority found in sections 4(i), 5(d)(1), and 303(r) of the Communications Act of 1934, as amended, and § 0.281(d)(8) of the Commission's rules.

Released: May 23, 1966.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
*Secretary.*

[F.R. Doc. 66-5819; Filed, May 25, 1966; 8:52 a.m.]

## [ 47 CFR Part 73 ]

[Docket No. 14229]

## [ 47 CFR Part 78 ]

## UHF TELEVISION CHANNELS

### Expanded Use; Order Extending Time for Filing Reply Comments

1. The filing date for reply comments in the proceeding in this docket relating to the type of television stations to be assigned on UHF Channels 70 and above is May 20, 1966. The Television Advisory Committee, State of California, on May 16, 1966, filed a petition stating that the recommendations of its consulting engineers on this complex plan involve several technical and educational policy factors, and that the time provided for reply comments is not sufficient for it to reach soundly based conclusions about its educational television needs and plans and the effect thereon of the comments filed in this proceeding.

2. As indicated in a previous order herein denying a request for extension of time for filing comments, we are not disposed to delay this proceeding considering its importance and the substantial amount of time already provided for comments. However, inasmuch as this request concerns final reply comments, and it appears that petitioner's studies are complex and extensive and, furthermore, should be helpful to the Commission in resolving this important proceeding, we are of the view that although an extension of 60 days as requested by petitioner would be excessive, a short extension of 10 days is warranted in these circumstances.

3. *Accordingly, it is ordered*, This 18th day of May 1966, that the time for filing reply comments is extended from May 20, 1966, to June 1, 1966. This action is taken pursuant to authority found in sections 4(i), 5(d)(1), and 303(r) of the Communications Act of 1934, as amended, and § 0.281(d)(8) of the Commission's rules.

Released: May 20, 1966.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
*Secretary.*

[F.R. Doc. 66-5820; Filed, May 25, 1966; 8:52 a.m.]

# Notices

## INTERSTATE COMMERCE COMMISSION

[Notice 924]

### MOTOR CARRIER, BROKER, WATER CARRIER AND FREIGHT FORWARDER APPLICATIONS

MAY 20, 1966.

The following applications are governed by Special Rule 1.247[1] of the Commission's general rules of practice (49 CFR, as amended), published in the FEDERAL REGISTER issue of April 20, 1966, effective May 20, 1966. These rules provide, among other things, that a protest to the granting of an application must be filed with the Commission within 30 days after date of notice of filing of the application is published in the FEDERAL REGISTER. Failure seasonably to file a protest will be construed as a waiver of opposition and participation in the proceeding. A protest under these rules should comply with § 1.247 (d) (3) of the rules of practice which requires that it set forth specifically the grounds upon which it is made, contain a detailed statement of protestant's interest in the proceeding (including a copy of the specific portions of its authority which protestant believes to be in conflict with that sought in the application, and describing in detail the method—whether by joinder, interline, or other means—by which protestant would use such authority to provide all or part of the service proposed), and shall specify with particularity the facts, matters, and things relied upon, but shall not include issues or allegations phrased generally. Protests not in reasonable compliance with the requirements of the Rules may be rejected. The original and one copy of the protest shall be filed with the Commission, and a copy shall be served concurrently upon applicant's representative, or applicant if no representative is named. If the protest includes a request for oral hearing, such request shall meet the requirements of section 1.247 (d) (4) of the special rule, and shall include the certification required therein.

Section 1.247(f) of the Commission's rules of practice further provides that each applicant shall, if protests to its application have been filed, and within 60 days of the date of this publication, notify the Commission in writing (1) that it is ready to proceed and prosecute the application, or (2) that it wishes to withdraw the application, failure in which the application will be dismissed by the Commission.

[1] Copies of Special Rule 1.247 (as amended) can be obtained by writing to the Secretary, Interstate Commerce Commission, Washington, D.C., 20423.

Further processing steps (whether modified procedure, oral hearing, or other procedures) will be determined generally in accordance with the Commission's general policy statement concerning motor carrier licensing procedures, published in the FEDERAL REGISTER issue of May 3, 1966. This assignment will be by Commission order which will be served on each party of record.

The publications hereinafter set forth reflect the scope of the applications as filed by applicants, and may include descriptions, restrictions, or limitations which are not in a form acceptable to the Commission. Authority which ultimately may be granted as a result of the applications here noticed will not necessarily reflect the phraseology set forth in the application as filed, but also will eliminate any restrictions which are not acceptable to the Commission.

No. MC 217 (Sub-No. 9), filed May 6, 1966. Applicant: POINT TRANSFER, INC., 174 Sandy Creek Road, Verona, Pa. Applicant's representative: John A. Vuono, 1515 Park Building, Pittsburgh, Pa., 15222. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives and household goods as defined by the Commission), between points in Putnam County, Ill., on the one hand, and, on the other, points in Alabama, Arizona, Arkansas, California, Colorado, Florida, Georgia, Idaho, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Minnesota, Mississippi, Missouri, Montana, Nebraska, Nevada, New Mexico, North Dakota, Ohio, Oklahoma, Oregon, Pennsylvania, South Dakota, Tennessee, Texas, Utah, Washington, Wisconsin, and Wyoming. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 730 (Sub-No. 267), filed May 4, 1966. Applicant: PACIFIC INTERMOUNTAIN EXPRESS CO., 1417 Clay Street, Oakland, Calif. Applicant's representative: Earl J. Brooks (same address). Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, lumber, household goods as defined by the Commission, commodities in bulk and those requiring special equipment), between Winnemucca, Nev., and the Oregon-Nevada State line at McDermitt, Oreg., as an alternate or connecting route serving no intermediate points and serving the Oregon-Nevada State line at McDermitt, Oreg., for the purpose of joinder only as follows; from Winnemucca over U.S. Highway 95 to the Oregon-Nevada State line at McDermitt and return over the same route. NOTE: Applicant states operations over the above-described route are restricted to the transportation of shipments moving to or from points in Idaho. If a hearing is deemed necessary, applicant requests it be held at Reno, Nev.

No. MC 1124 (Sub-No. 213), filed May 5, 1966. Applicant: HERRIN TRANSPORTATION COMPANY, a corporation, 2301 McKinney Avenue, Houston, Tex. Applicant's representative: Leroy Hallman, 45th Floor, First National Bank Building, Dallas, Tex., 75202. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities*, including dangerous explosives (except those of unusual value, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment), serving the site of the Manning, Maxwell & Moore Co. plant, located near Alpine City, La., on U.S. Highway 71, approximately 12 miles northwest of Alexandria, La., as an off-route point in connection with applicant's presently authorized regular route operations. NOTE: If a hearing is deemed necessary, applicant requests it be held at Dallas, Tex., or New Orleans, La.

No. MC 1187 (Sub-No. 26), filed May 6, 1966. Applicant: CUSHMAN MOTOR DELIVERY COMPANY, a corporation, 1480 West Kinzie Street, Chicago, Ill., 60622. Applicant's representative: David Axelrod, 39 South La Salle Street, Chicago, Ill., 60603. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, and commodities in bulk, in tank vehicles), between points in Putnam County, Ill., on the one hand, and, on the other, points in Alabama, Arkansas, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Minnesota, Mississippi, Missouri, Nebraska, Ohio, Oklahoma, North Dakota, South Dakota, Tennessee, Texas, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 10928 (Sub-No. 52), filed April 22, 1966. Applicant: SOUTHERN-PLAZA EXPRESS, INC., 175 Linfield Drive, Menlo Park, Calif. Applicant's representative: Marshall G. Berol, 100 Bush Street, San Francisco, Calif., 94104. Applicant, in No. MC 10928 and Sub-Nos. 8, 10, 11, 12, 14, 18, 25, 27, 28, 30, 31, 32, 33, 35, 36, 40, 41, 43, and 49, presently holds authority from this Commission to transport "general commodities, except those of unusual value" and various other exceptions applicable in the various certificates. By this application, applicant seeks authority to delete the exception of "those (commodities) of unusual value" which presently exists, and to add the following exception to

those certificates which presently have the "commodities of unusual value" exception: "General commodities, except * * * (exceptions presently applicable for each certificate except the one concerning commodities of unusual value) and the transportation of commodities in connection with which shipper requires carrier to furnish armed guards or armored equipment." Applicant presently conducts operations by virtue of the above-numbered certificates in the States of Arkansas, Illinois, Indiana, Kansas, Kentucky, Missouri, Oklahoma, Tennessee, and Texas. NOTE: Common control may be involved. Applicant states it intends to tack the authority sought in this application to its presently held authority, and also intends to interline with other carriers. If a hearing is deemed necessary, applicant does not specify a location.

No. MC 21170 (Sub-No. 216), filed May 9, 1966. Applicant: BOS LINES, INC., 408 South 12th Avenue, Marshalltown, Iowa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Food products and materials and supplies and advertising matter*, when moving in conjunction therewith, from Lancaster, Ohio, to Louisville, Ky., St. Louis, Mo., and points in Illinois, Indiana, and the Lower Peninsula of Michigan. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 21170 (Sub-No. 217), filed May 9, 1966. Applicant: BOS LINES, INC., 408 South 12th Avenue, Marshalltown, Iowa, 50158. Authority sought to operate as a *common carrier* by motor vehicle, over irregular routes, transporting: (1) *Foodstuffs*, from Springdale, Ark.; and (2) *foodstuffs and baby supplies*, from Fort Smith, Ark.; to points in Kansas, Missouri, and Kentucky, and to Alton, Cairo, Carbondale, Centralia, East St. Louis, Eldorado, Granite City, Marion, Mount Vernon, Murphysboro, Staunton, Litchfield, Quincy, and Scott Air Force Base, Ill. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill., or Little Rock, Ark.

No. MC 21170 (Sub-No. 218), filed May 9, 1966. Applicant: BOS LINES, INC., 408 South 12th Avenue, Marshalltown, Iowa, 50158. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Tile, floor and wall, mastic, tools, equipment, and supplies* used in the installation of tile, floor or wall, from points in Carroll, Cuyahoga, Franklin, Muskingham, Stark, and Summit Counties, Ohio, and Cook (except points north of U.S. Highway 6), Grundy and Kankakee Counties, Ill., to points in Nebraska, South Dakota, and Iowa. NOTE: If a hearing is deemed necessary, applicant requests it be held at Omaha, Nebr.

No. MC 21170 (Sub-No. 220), filed May 12, 1966. Applicant: BOS LINES, INC., 408 South 12th Avenue, Marshalltown, Iowa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, packinghouse products* and *commodities used by packinghouses*, as described in appendix I, Ex Parte MC 45, 61 M.C.C. 209 and 766 (except commodities in bulk, in tank vehicles), from the plantsite of George A. Hormel & Co. located at or near Bureau, Ill., to points in Maine, New Hampshire, Vermont, Massachusetts, Rhode Island, Connecticut, New York, Pennsylvania, New Jersey, Delaware, Maryland, West Virginia, Virginia, Iowa, Minnesota, and the District of Columbia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 21170 (Sub-No. 224), filed May 12, 1966. Applicant: BOS LINES, INC., 408 South 12th Avenue, Marshalltown, Iowa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Frozen foods*, in vehicles equipped with mechanical refrigeration, from Lexington, N.C., to points in Alabama, Arkansas, Connecticut, Delaware, Florida, Georgia, Kentucky, Louisiana, Maine, Maryland, Massachusetts, Mississippi, New Hampshire, New Jersey, New York, North Carolina, Oklahoma, Pennsylvania, Rhode Island, South Carolina, Tennessee, Texas, Vermont, Virginia, West Virginia, and the District of Columbia, and *rejected, refused and damaged shipments of frozen foods*, on return. NOTE: If a hearing is deemed necessary, applicant requests it be held at Charlotte, N.C.

No. MC 21571 (Sub-No. 30), filed May 9, 1966. Applicant: SCHERER FREIGHT LINES, INC., 424 West Madison Street, Ottawa, Ill., 61350. Applicant's representative: Edward G. Bazelon, 39 South La Salle Street, Chicago, Ill., 60603. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, and commodities in bulk, in tank vehicles), between points in Putnam County, Ill., on the one hand, and, on the other, points in Alabama, Arkansas, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Minnesota, Mississippi, Missouri, Nebraska, Ohio, Oklahoma, North Dakota, South Dakota, Tennessee, Texas, and Wisconsin. NOTE: Applicant holds contract carrier authority in MC 115738, therefore, dual operations may be involved. If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 21866 (Sub-No. 57), filed May 17, 1966. Applicant: WEST MOTOR FREIGHT, INC., 740 South Reading Avenue, Boyertown, Pa., 19512. Applicant's representative: Paul Coyle, 5631 Utah Avenue NW., Washington, D.C., 20015. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Margarine*, (a) between Coatesville, Pa., on the one hand, and, on the other, points in Connecticut, Delaware, Maryland, Massachusetts, New Jersey, New York, Ohio, Rhode Island, Virginia, West Virginia, and the District of Columbia, and (b) from points in Illinois, Indiana, and Michigan, to Coatesville, Pa. Restriction: The proposed authorities above shall not be joined so as to render a through service between points in the States specified in the first service paragraph above, on the one hand, and, on the other, those specified in the second service paragraph above, via Coatesville, Pa., as a gateway, and (2) *materials and supplies used in the packaging or repackaging of margarine*, from points in Connecticut, Delaware, Illinois, Indiana, Maryland, Massachusetts, Michigan, New Jersey, New York, Ohio, Rhode Island, Virginia, West Virginia, and the District of Columbia, to Coatesville, Pa. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 22195 (Sub-No. 121), filed May 5, 1966. Applicant: DAN DUGAN TRANSPORT COMPANY, a corporation, Post Office Box 946, 41st and Grange Avenue, Sioux Falls, S. Dak., 57101. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Petroleum and petroleum products*, as described in appendix XIII to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209, in bulk, in tank vehicles, from the terminal facilities of the Kaneb Pipe Line Co. located at or near Aberdeen, Mitchell, and Wolsey, S. Dak., to the terminal facilities of the Kaneb Pipe Line Co. at or near Geneva and Norfolk, Nebr. NOTE: If a hearing is deemed necessary, applicant does not specify a location.

No. MC 29079 (Sub-No. 29), filed May 9, 1966. Applicant: BRADA MILLER FREIGHT SYSTEM, INC., 1200 Home Avenue, Kokomo, Ind., 46901. Applicant's representative: Edward G. Bazelon, 39 South La Salle Street, Chicago, Ill., 60603. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, and commodities in bulk, in tank vehicles), between points in Putnam County, Ill., on the one hand, and, on the other, points in Alabama, Arkansas, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Minnesota, Mississippi, Missouri, Nebraska, Ohio, Oklahoma, North Dakota, South Dakota, Tennessee, Texas, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 29734 (Sub-No. 8) (Amendment), filed April 7, 1966, published in FEDERAL REGISTER issue of April 28, 1966, amended and republished as amended this issue. Applicant: JOSEPH H. SMITH, WILLIAM H. SMITH, and JAMES J. SMITH, doing business as JOSEPH H. SMITH & COMPANY, 301 East Richmond Street, Philadelphia, Pa. Applicant's representative: Morris J. Winokur, Suite 1920, 2 Penn Center Plaza, John F. Kennedy Boulevard at 15th Street, Philadelphia, Pa., 19102. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Tallow and inedible animal grease*, in insulated tank ve-

hicles, from Smithfield, Norfolk, and Dogue, Va., to Baltimore, Md., and Philadelphia, Pa. NOTE: The purpose of this republication is to broaden the authority sought. If a hearing is deemed necessary, applicant requests it be held at Philadelphia, Pa.

No. MC 29886 (Sub-No. 225), filed May 4, 1966. Applicant: DALLAS & MAVIS FORWARDING CO., INC., 4000 West Sample Street, South Bend, Ind. Applicant's representative: Charles M. Pieroni, 4000 West Sample Street, South Bend, Ind., 46621. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Commodities*, the transportation of which because of size or weight require the use of special equipment, and *related machinery parts, and related contractors' materials and supplies* when their transportation is incidental to the transportation by carrier of commodities which by reason of size or weight require the use of special equipment, between points in Illinois, on the one hand, and, on the other, points in Connecticut, New Jersey, New York, and Pennsylvania. NOTE: Applicant states it is authorized to perform this service under its MC 29886, Sub 189 but must perform service by operating through the State of Michigan. By this application it seeks authority to operate direct. If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 29886 (Sub-No. 226), filed May 6, 1966. Applicant: DALLAS & MAVIS FORWARDING CO., INC., 4000 West Sample Street, South Bend, Ind., 46621. Applicant's representative: Charles M. Pieroni (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Boats*, from Costa Mesa, Calif., to points in Minnesota, Iowa, Wisconsin, Missouri, Illinois, Kentucky, Indiana, Michigan, Ohio, Pennsylvania, Maryland, Delaware, New Jersey, New York, Connecticut, Rhode Island, Massachusetts, Vermont, New Hampshire, Maine, and the District of Columbia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Los Angeles, Calif.

No. MC 35358 (Sub-No. 18), filed May 2, 1966. Applicant: BERGER TRANSFER AND STORAGE, INC., 3720 Maclester Drive NE., Minneapolis, Minn. Applicant's representative: Val M. Higgins, First National Bank Building, Minneapolis, Minn., 55402. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Uncrated furniture* and *parts thereof*, when moving at the same time, between Audubon, Iowa, and points in Kansas, Nebraska, Missouri, Minnesota, North Dakota, and South Dakota. NOTE: If a hearing is deemed necessary, applicant requests it be held at Des Moines, Iowa.

No. MC 36832 (Sub-No. 20), filed May 9, 1966. Applicant: AMERICAN TRANSIT LINES, INCORPORATED, 221 North La Salle Street, Chicago, Ill., 60601. Applicant's representative: David Axelrod, 39 South La Salle Street, Chicago, Ill., 60603. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, and commodities in bulk, in tank vehicles, between points in Putnam County, Ill., on the one hand, and, on the other, points in Alabama, Arkansas, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Minnesota, Mississippi, Missouri, Nebraska, Ohio, Oklahoma, North Dakota, South Dakota, Tennessee, Texas, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 41849 (Sub-No. 26), filed May 5, 1966. Applicant: KEIGHTLEY BROS., INC., 1601 South 39th Street, St. Louis, Mo. Applicant's representative: Ernest A. Brooks II, 1301–02 Ambassador Building, St. Louis, Mo., 63101. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Salt*, in bulk, and in bags, from St. Louis, Mo., to points in Illinois. NOTE: If a hearing is deemed necessary, applicant requests it be held at St. Louis, Mo.

No. MC 41915 (Sub-No. 31), filed May 10, 1966. Applicant: MILLER'S MOTOR FREIGHT, INC., Post Office Box 345–183, York, Pa. Applicant's representative: Christian V. Graf, 407 North Front Street, Harrisburg, Pa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Aerial bombs*, empty, from York, Pa., to Yorktown, Va. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 42963 (Sub-No. 40), filed May 5, 1966. Applicant: DANIEL HAMM DRAYAGE COMPANY, a corporation, Second and Tyler Streets, St. Louis, Mo., 63102. Applicant's representative: Ernest A. Brooks II, 1301–02 Ambassador Building, St. Louis, Mo., 63101. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Cement*, in bulk and in bags, from the plantsite of Dundee Cement Co. at or near Clarksville, Mo.; (2) *cement*, in bulk, from the plantsite of Dundee Cement Co. at or near Rock Island, Ill.; and (3) *cement*, in bulk, from the plantsite of Dundee Cement Co. at or near St. Louis, Mo.; to points in Illinois, Iowa, Missouri, Kansas, Nebraska, Arkansas, Oklahoma, Kentucky, Tennessee, Indiana, Ohio, and Michigan. NOTE: If a hearing is deemed necessary, applicant requests it be held at St. Louis, Mo.

No. MC 45148 (Sub-No. 9), filed May 11, 1966. Applicant: KELLY-SPRINGFIELD TRUCKING CO., a corporation, 1235 Harrison Avenue, Harrison, N.J. Applicant's representative: George A. Olsen, 69 Tonnele Avenue, Jersey City, N.J., 07306. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: (1) *Hoisting engines, pile-driving equipment and parts, drilling machinery and parts, movable bridge machinery and parts, and general construction machinery*; (2) *iron castings*; (3) *scrap iron*; (4) *wood and metal patterns*; (5) *foundry equipment, materials, and supplies* (except commodities in bulk, in tank vehicles), between the plantsite of Campbell Foundry Co., Harrison, N.J., on the one hand, and, on the other, points in Connecticut, Delaware, Maryland, New York, Pennsylvania, and Virginia, and the District of Columbia. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 50069 (Sub-No. 358), filed May 9, 1966. Applicant: REFINERS TRANSPORT & TERMINAL CORPORATION, 930 North York Road, Hinsdale, Ill., 60521. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Acids, chemicals, fertilizers, and fertilizer ingredients*, in bulk, in tank vehicles, from the plantsite of the Apple River Chemical Co. located at Niota, Ill., to points in Illinois, Indiana, Iowa, Kansas, Kentucky, Michigan, Minnesota, Missouri, Nebraska, Ohio, South Dakota, and Wisconsin. NOTE: Common control and dual operations may be involved. If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill., or Washington, D.C.

No. MC 51146 (Sub-No. 42), filed May 5, 1966. Applicant: SCHNEIDER TRANSPORT & STORAGE, INC., 817 McDonald Street, Green Bay, Wis. Applicant's representative: Charles W. Singer, 33 North La Salle Street, Chicago, Ill., 60602. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Cellulose materials and products; cellulose materials and products joined to or combined with paper, plastics, synthetics or cloth; paper and paper products; paper and paper products joined to or combined with plastics, synthetics or cloth; materials, equipment and supplies* used in the manufacture and distribution of such products; and *related premiums and advertising materials* when shipped with such products, between Wilmington, Ill., on the one hand, and, on the other, Kansas City, Mo.; Omaha, Nebr.; Pittsburgh, Pa.; and points in Indiana, Iowa, Kentucky, Michigan, Minnesota, Missouri, Ohio, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 51146 (Sub-No. 43), filed May 6, 1966. Applicant: SCHNEIDER TRANSPORT & STORAGE, INC., 817 McDonald Street, Green Bay, Wis., 54303. Applicant's representative: Charles Singer, 33 North La Salle Street, Chicago, Ill., 60602. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron and steel, iron and steel articles and materials, equipment and supplies* used in the manufacture and distribution of the above described commodities, between points in Putnam County, Ill., on the one hand, and, on the other, points in Alabama, Arkansas, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Minnesota, Mississippi, Missouri, Nebraska, North Dakota,

Ohio, Oklahoma, South Dakota, Tennessee, Texas, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 51146 (Sub-No. 44), filed May 6, 1966. Applicant: SCHNEIDER TRANSPORT & STORAGE, INC., 817 McDonald Street, Green Bay, Wis., 54303. Applicant's representative: Charles Singer, 33 North La Salle Street, Chicago, Ill., 60602. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Building, paving, and roofing materials and supplies*, from Chicago, Ill., to points in Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 52110 (Sub-No. 99), filed May 6, 1966. Applicant: BRADY MOTOR-FRATE, INC., 1223 Sixth Avenue, Des Moines, Iowa. Applicant's representative: Homer E. Bradshaw, Fifth Floor, Central National Building, Des Moines, Iowa, 50309. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, bullion, livestock, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment), between points in Putnam County, Ill., on the one hand, and, on the other, points in Indiana, Iowa, Kansas, Minnesota, Missouri, Nebraska, and the Lower Peninsula of Michigan. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 52673 (Sub-No. 23), filed May 5, 1966. Applicant: FRED OLSON MOTOR SERVICE COMPANY, a corporation, 6022 West State Street, Milwaukee, Wis. Applicant's representative: Eugene L. Cohn, 1 North La Salle Street, Chicago 2, Ill. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission and commodities in bulk), *including commodities requiring special equipment*, between points in Putnam County, Ill., on the one hand, and, on the other, points in Arkansas, Illinois, Indiana, Iowa, Kansas, Kentucky, Michigan, Minnesota, Missouri, Nebraska, Ohio, Oklahoma, North Dakota, South Dakota, Tennessee, Texas, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 52751 (Sub-No. 60), filed May 6, 1966. Applicant: ACE LINES, INC., 4143 East 43d Street, Des Moines, Iowa, 50317. Applicant's representative: William A. Landau, 1307 East Walnut Street, Des Moines 16, Iowa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron and steel articles, and steel mill materials, supplies and equipment*, between points in Putnam County, Ill., on the one hand, and, on the other, points in Illinois, Iowa, Kansas, Minnesota, Missouri, Nebraska, North Dakota, South Dakota, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 52932 (Sub-No. 13), filed May 5, 1966. Applicant: NORTH PENN TRANSFER, INC., Box 230, Lansdale, Pa. Applicant's representative: John W. Frame, Post Office Box 626, 2207 Old Gettysburg Road, Camp Hill, Pa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron or steel, iron or steel products, and articles of iron or steel manufacture*, (1) between Philadelphia, Pa., and points in Delaware, Montgomery, and Bucks (except points in Bristol and Falls Township), Counties, Pa.; Upper Saucon, Lower Macungie and Lower Milford Townships, Lehigh County, Pa.; Colebrookdale, Hereford, and Washington Townships, Berks County, Pa.; and Coventry, East Vincent, West Vincent, East Pikeland, West Pikeland, Charlestown, Willistown, Easttown, North Coventry, and East Coventry Townships, Chester County, Pa.; and (2) between points in the above-described territory on the one hand, and, on the other, points in Massachusetts, Connecticut, Rhode Island, New York, New Jersey, Delaware, Maryland, Virginia, North Carolina, Ohio, and the District of Columbia. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 58902 (Sub-No. 10), filed May 9, 1966. Applicant: MANLEY TRANSFER COMPANY, INC., 315 North Santa Fe Street, Chanute, Kans., 66720. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment), between Springfield, Mo., and Joplin, Mo., over U.S. Highway 66, and return over the same route, serving the intermediate point of Carthage, Mo. NOTE: If a hearing is deemed necessary, applicant requests it be held at Kansas City, Mo.

No. MC 59728 (Sub-No. 15), filed May 6, 1966. Applicant: MORRISON MOTOR FREIGHT, INC., 1100 East Jenkins Boulevard, Akron, Ohio, 44306. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value and except dangerous explosives, livestock, household goods as defined in *Practices of Motor Common Carriers of Household Goods*, 17 M.C.C. 467, commodities in bulk, commodities requiring special equipment, and those injurious or contaminating to other lading), between Indianapolis, Ind., and the Indiana State line; over Interstate Highway 74, serving no intermediate points, as an alternate route for operating convenience only, and serving the termini for the purpose of joinder only. NOTE: If a hearing is deemed necessary, applicant requests it be held at Akron, Ohio.

No. MC 60014 (Sub-No. 19), filed May 6, 1966. Applicant: AERO TRUCKING, INC., Post Office Box 278, Rural Delivery No. 1, Oakdale, Pa. Applicant's representative: Noel F. George, Columbus Center, 100 East Broad Street, Columbus, Ohio, 43215. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron and steel, iron and steel products, and steel mill equipment, materials and supplies*, between points in Putnam County, Ill., on the one hand, and, on the other, points in Alabama, Arkansas, Connecticut, Delaware, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Maine, Maryland, Massachusetts, Michigan, Mississippi, Missouri, Nebraska, New Hampshire, New Jersey, New York, North Carolina, North Dakota, Ohio, Oklahoma, Pennsylvania, Rhode Island, South Carolina, South Dakota, Tennessee, Texas, Vermont, Virginia, West Virginia, and Wisconsin, and the District of Columbia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 61506 (Sub-No. 30), filed May 5, 1966. Applicant: RUSSELL TRANSFER COMPANY, INC., Athens-Augusta Highway, Post Office Box 92, Washington, Ga. Applicant's representative: Theodore M. Forbes, Jr., Suite 825, The Citizens & Southern National Bank Building, Atlanta, Ga., 30303. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Gasoline, kerosene, jet fuels, and fuel oil distillates*, in bulk, in tank vehicles only, from Athens, Ga., to points in North Carolina and South Carolina, and *rejected shipments*, on return, under continuing contract or contracts for the account of Gulf Oil Corp. only. NOTE: If a hearing is deemed necessary, applicant requests it be held at Atlanta, Ga.

No. MC 61592 (Sub-No. 73), filed May 2, 1966. Applicant: JENKINS TRUCK LINE, INC., 3708 Elm Street, Bettendorf, Iowa, 52722. Applicant's representative: Val M. Higgins, 1000 First National Bank Building, Minneapolis, Minn., 55402. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Tractors* (except truck tractors and except those which because of size or weight, require the use of special equipment), from Cleveland, Ohio, and ports of entry on the international boundary line between the United States and Canada located in Maine, to points in Ohio, Michigan, Indiana, Kentucky, Illinois, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Columbus, Ohio.

No. MC 64600 (Sub-No. 28), filed April 29, 1966. Applicant: WILSON TRUCKING CORPORATION, Broad Street, Box 340, Waynesboro, Va. Applicant's representative: Francis W. McInerny, 1000 16th Street NW., Washington, D.C. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities*, in bulk, between Washington, D.C., and Cape Charles, Va., from Washington, D.C., over U.S. Highway 50 to Salisbury, Md., thence over U.S. Highway 13 to Cape Charles, Va., and return over the same route, serving the Washington,

D.C., commercial zone and points on that portion of U.S. Highway 13 extending from the Maryland-Virginia State line to Cape Charles, Va. NOTE: Applicant states that no service may be rendered at points in Maryland other than those in the Washington, D.C., commercial zone. If a hearing is deemed necessary, applicant requests that it be held at Washington, D.C., or Richmond, Va.

No. MC 69116 (Sub-No. 99), filed May 6, 1966. Applicant: SPECTOR FREIGHT SYSTEM, INC., 205 West Wacker Drive, Chicago, Ill., 60606. Applicant's representative: David Axelrod, 39 South La Salle Street, Chicago, Ill., 60603. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, and commodities in bulk, in tank vehicles), between points in Putnam County, Ill., on the one hand, and, on the other, points in Alabama, Arkansas, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Minnesota, Mississippi, Missouri, Nebraska, Ohio, Oklahoma, North Dakota, South Dakota, Tennessee, Texas, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 72243 (Sub-No. 18), filed May 6, 1966. Applicant: THE AETNA FREIGHT LINES, INC., 2507 Youngstown Road SE., Warren, Ohio. Applicant's representative: James M. Burtch, Columbus Center, 100 East Broad Street, Columbus, Ohio, 43215. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron and steel and iron and steel products*, and *steel mill equipment, materials and supplies*, between points in Putnam County, Ill., on the one hand, and, on the other, points in Alabama, Arizona, Arkansas, California, Colorado, Connecticut, Delaware, Florida, Georgia, Idaho, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Maryland, Massachusetts, Michigan, Minnesota, Mississippi, Missouri, Montana, Nebraska, Nevada, New Jersey, New Mexico, North Carolina, North Dakota, Ohio, Oklahoma, Oregon, Rhode Island, South Carolina, South Dakota, Tennessee, Texas, Utah, Virginia, Washington, Wisconsin, and Wyoming. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 77424 (Sub-No. 23), filed May 9, 1966. Applicant: WENHAM TRANSPORTATION, INC., 3200 East 79th Street, Cleveland, Ohio, 44104. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except those of unusual value, dangerous explosives, household goods as defined in *Practices of Motor Common Carriers of Household Goods*, 17 M.C.C. 467, commodities in bulk, commodities requiring special equipment, and those injurious or contaminating to other lading), between Putnam County, Ill., on the one hand, and, on the other, all points in Arkansas, Colorado, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Minnesota, Mississippi, Missouri, Nebraska, Nevada, New York, North Dakota, Ohio, Oklahoma, Pennsylvania, South Dakota, Tennessee, Texas, West Virginia, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 92633 (Sub-No. 9) (Amendment), filed March 29, 1966, published FEDERAL REGISTER issue of April 14, 1966, amended May 16, 1966, and republished, as amended, this issue. Applicant: ZIRBEL TRANSPORT, INC., 420–28 Street, Lewiston, Idaho. Applicant's representative: Donald A. Ericson, Suite 708, Old National Bank Building, Spokane 1, Wash. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Clay*, from Bovill, Latah County, Idaho, to Bellingham, Wash., and Springfield, Salem, Gardiner, St. Helens, Deer Island, West Linn, and Wauna, Oreg. NOTE: Common control and dual operations may be involved. The purpose of this republication is to add the destination point of West Linn, Oreg. If a hearing is deemed necessary, applicant requests it be held at Lewiston, Idaho, or Spokane, Wash.

No. MC 92983 (Sub-No. 516), filed May 2, 1966. Applicant: ELDON MILLER, INC., Post Office Drawer 617, Kansas City, Mo., 64141. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Fats and oils, including blends and products thereof*, in bulk, from points in Oregon and Washington, to points in Colorado, Kansas, Missouri, and Utah. NOTE: If a hearing is deemed necessary, applicant requests it be held at Kansas City, Mo.

No. MC 92983 (Sub-No. 517), filed May 5, 1966. Applicant: ELDON MILLER, INC., Post Office Drawer 617, Kansas City, Mo., 64141. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Paint and paint materials*, in bulk, from points in Iowa, to points in Alabama and Georgia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Kansas City, Mo.

No. MC 92983 (Sub-No. 518), filed May 9, 1966. Applicant: ELDON MILLER, INC., Post Office Drawer 617, Kansas City, Mo., 64141. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Fats and oils, including blends and products thereof*, in bulk, from points in Iowa, to points in Arkansas, Oklahoma, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Kansas City, Mo.

No. MC 94350 (Sub-No. 170), filed May 5, 1966. Applicant: TRANSIT HOMES, INC., 210 West McBee Avenue, Greenville, S.C. Applicant's representative: Henry P. Willimon, Greenville, S.C. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Trailers* designed to be drawn by passenger automobiles, in initial movements, from points in Baltimore County, Md., to points in the United States, including Alaska, but excluding Hawaii. NOTE: If a hearing is deemed necessary, applicant requests it be held at Baltimore, Md.

No. MC 95084 (Sub-No. 49), filed May 4, 1966. Applicant: HOVE TRUCK LINE, Stanhope, Iowa. Applicant's representative: Kenneth F. Dudley, 901 South Madison Avenue, Post Office Box 279, Ottumwa, Iowa, 52501. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron and steel and iron and steel articles*, from Bartonville, Ill., to points in Iowa, Kansas, Nebraska, and South Dakota. NOTE: If a hearing is deemed necessary, applicant requests it be held at Des Moines, Iowa.

No. MC 100666 (Sub-No. 81) (Amendment), filed April 18, 1966, published FEDERAL REGISTER issue of May 5, 1966, amended May 12, 1966, and republished as amended, this issue. Applicant: MELTON TRUCK LINES, INC., Box 7295, Shreveport, La. Applicant's representative: Wilburn L. Williamson, 443–54 American Building, Oklahoma City, Okla. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Iron and steel, and iron and steel articles*, from points in Putnam County, Ill., to points in North Dakota, South Dakota, Nebraska, Kansas, Oklahoma, Texas, Minnesota, Iowa, Missouri, Arkansas, Wisconsin, Illinois, Michigan, Indiana, Ohio, Kentucky, Tennessee, Mississippi, Louisiana, Alabama, Georgia, and Florida, and (2) *materials and supplies used in the manufacture and distribution of iron and steel articles*, from the destination States named in (1) above, to points in Putnam County, Ill. NOTE: The purpose of this republication is to broaden the origin point. If a hearing is deemed necessary, applicant requests it be held at Springfield, or Chicago, Ill.

No. MC 101075 (Sub-No. 104), filed May 6, 1966. Applicant: TRANSPORT, INC., 1215 Center Avenue, Moorhead, Minn. Applicant's representative: Ronald B. Pitsenbarger, Post Office Box 396, Moorhead, Minn. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Petroleum and petroleum products*, in bulk, as defined in appendix XIII to the Report in *Description in Motor Carrier Certificates*, 61 M.C.C. 209, from the site of the terminal outlet of Kaneb Pipeline Co. located at or near Jamestown, N. Dak., to the sites of the terminal outlets of Kaneb Pipeline Co. located at or near Geneva and Norfolk, Nebr. NOTE: If a hearing is deemed necessary, applicant requests it be held at Sioux Falls, S. Dak.

No. MC 102616 (Sub-No. 799), filed May 4, 1966. Applicant: COASTAL TANK LINES, INC., 501 Grantley Road, York, Pa., 17405. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Liquid chemicals*, in bulk, in tank vehicles, from Trevose (Bucks County), Pa., to Pascagoula, Miss. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 102616 (Sub-No. 800), filed May 4, 1966. Applicant: COASTAL

TANK LINES, INC., 501 Grantley Road, York, Pa., 17405. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Ammonium thiocyanate liquor*, in bulk, in tank vehicles, from the plantsite of Halby Chemical Co., located at or near Le Moyne, Ala., to points in Ohio, Iowa, Illinois, Missouri, Indiana, and West Virginia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 102616 (Sub-No. 801), filed May 10, 1966. Applicant: COASTAL TANK LINES, INC., 501 Grantley Road, York, Pa., 17405. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Feed and feed ingredients*, in bulk, from Louisville, Ky., to points in Alabama, Arkansas, Florida, Iowa, Kentucky, Louisiana, Minnesota, Mississippi, Missouri, North Carolina, Oklahoma, and Texas. NOTE: If a hearing is deemed necessary, applicant does not specify a location.

No. MC 104093 (Sub-No. 3), filed May 3, 1966. Applicant: HILLSIDE VAN LINES, INC., 142-08 Liberty Avenue, Jamaica, N.Y., 11435. Applicant's representative: Edward M. Alfano, 2 West 45th Street, New York 36, N.Y. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Household goods*, as defined by the Commission between New York, N.Y., on the one hand, and, on the other, points in Georgia, Indiana, North Carolina, South Carolina, Vermont, and West Virginia. NOTE: Applicant states the purpose of the application is to obtain authority to serve States which are presently traversed by applicant in serving States within its present operating authority. If a hearing is deemed necessary, applicant requests it be held at New York, N.Y.

No. MC 105461 (Sub-No. 72), filed May 4, 1966. Applicant: HERR'S MOTOR EXPRESS, INC., Quarryville, Pa. Applicant's representative: Bernard N. Gingerich, Quarryville, Pa., 17566. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Pipe, plate or sheet, steel roofing, plate or sheet, iron or steel, coated or plain, corrugated or not corrugated, aluminum sheet, sheet or plate steel, articles*, from Beech Bottom, W. Va.; Steubenville, Ohio; Martins Ferry, Ohio; and Yorkville, Ohio, to points in Connecticut, Delaware, Maine, Maryland, Massachusetts, New Hampshire, New Jersey, New York, Ohio, Pennsylvania, Rhode Island, Vermont, and Virginia. Note: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 106233 (Sub-No. 12), filed May 2, 1966. Applicant: HART TRUCK LINE, INC., Dexter, Mo. Applicant's representative: G. F. Gunn, Suite 1230, Boatmen's Bank Building, St. Louis, Mo., 63102. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, commodities in bulk, commodities requiring special equipment and those injurious or contaminating to other lading), between Poplar Bluff, Mo., and Doniphan, Mo., as follows: (a) From Poplar Bluff over U.S. Highway 160 to junction Ripley County Highway U, thence over Ripley County Highway U to Doniphan, and return over the same route, serving no intermediate points, and (b) from Poplar Bluff over Missouri Highway 53 to junction Missouri Highway 142, thence over Missouri Highway 142 to Doniphan, and return over the same route, serving the intermediate points of Neelyville, Naylor, and Oxley, Mo. NOTE: If a hearing is deemed necessary, applicant requests it be held at St. Louis, Mo.

No. MC 106760 (Sub-No. 53), filed March 25, 1966. Applicant: WHITE-HOUSE TRUCKING, INC., 2905 Airport Highway, Toledo, Ohio, 43609. Applicant's representative: Robert W. Loser, 409 Chamber of Commerce Building, Indianapolis, Ind., 46204. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Prefabricated building sections, prefabricated building panels, parts and accessories which are intended for use in a building*, from Canton and Fairhope, Ohio, to points in Connecticut, Florida, Maine, Massachusetts, New Hampshire, New York, Rhode Island, and Vermont. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 107107 (Sub-No. 367), filed May 9, 1966. Applicant: ALTERMAN TRANSPORT LINES, INC., 2424 Northwest 46th Street, Post Office Box 458, Allapattah Station, Miami, Fla., 33142. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Blood plasma*, human, frozen, from Philadelphia, Pa., to Dallas, Tex. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 107295 (Sub-No. 91), filed May 9, 1966. Applicant: PRE-FAB TRANSIT CO., a corporation, Post Office Box 146, Farmer City, Ill. Applicant's representative: Mack Stephenson, 42 Fox Mill Lane, Springfield, Ill., 62707. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Pipe, conduit and tubing*, when said commodities are not intended to be used as a component part, material, supply, or fixture of a building, from points in Livingston County, Ill., to points in Minnesota, Arkansas, Indiana, Iowa, Kentucky, Michigan, Missouri, Ohio, Tennessee, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 107403 (Sub-No. 680), filed May 4, 1966. Applicant: MATLACK, INC., 10 West Baltimore Avenue, Lansdowne, Pa., 19050. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Ferro manganese*, in bulk, from Johnston, Pa., to Detroit, Mich. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 107403 (Sub-No. 681), filed May 4, 1966. Applicant: MATLACK INC., 10 West Baltimore Avenue, Lansdowne, Pa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Petroleum products*, in bulk, in tank vehicles, from Columbus, Ohio, to points in Michigan. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 107496 (Sub-No. 479), filed May 9, 1966. Applicant: RUAN TRANSPORT CORPORATION, Keosauqua Way at Third, Des Moines, Iowa, 50309. Applicant's representative: H. L. Fabritz (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Fats and tallow*, in bulk, from points in Illinois, Iowa, Minnesota, and Wisconsin, to Milwaukee, Wis. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Des Moines, Iowa.

No. MC 107496 (Sub-No. 480), filed May 9, 1966. Applicant: RUAN TRANSPORT CORPORATION, Keosauqua Way at Third, Des Moines, Iowa, 50309. Applicant's representative: H. L. Fabritz (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Ink*, in bulk, from Chicago, Ill., to points in Indiana. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 107515 (Sub-No. 548), filed May 2, 1966. Applicant: REFRIGERATED TRANSPORT CO., INC., Post Office Box 10799, Station A, Atlanta, Ga., 30310. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Foodstuffs*, from Lewisburg, Tenn., to points in Arkansas, Texas, Oklahoma, Kansas, Missouri, Illinois, Michigan, New Jersey, Pennsylvania, New York, Maryland, Ohio, and Indiana. NOTE: If a hearing is deemed necessary, applicant requests it be held at New York, N.Y.

No. MC 107906 (Sub-No. 21), filed May 9, 1966. Applicant: TRANSPORT MOTOR EXPRESS, INC., Post Office Box 958, Meyer Road, Fort Wayne, Ind. Applicant's representative: Carl L. Steiner, 39 South La Salle Street, Chicago, Ill., 60603. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, and commodities in bulk, in tank vehicles), between points in Putnam County, Ill., on the one hand, and, on the other, points in Alabama, Arkansas, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Minnesota, Mississippi, Missouri, Nebraska, Ohio, Oklahoma, North Dakota, South Dakota, Tennessee, Texas, and Wisconsin. NOTE: If a hearing is

deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 108449 (Sub-No. 233), filed May 4, 1966. Applicant: INDIANHEAD TRUCK LINE, INC., 1947 West County Road C, St. Paul, Minn., 55113. Applicant's representative: Adolph J. Bieberstein, 121 West Doty Street, Madison, Wis., 53703. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Silica sand*, in bulk, from Minneapolis, Minn., to Fargo, N. Dak. NOTE: If a hearing is deemed necessary, applicant requests it be held at Minneapolis, Minn.

No. MC 108449 (Sub-No. 234), filed May 4, 1966. Applicant: INDIANHEAD TRUCK LINE, INC., 1947 West County Road C, St. Paul, Minn., 55113. Applicant's representative: Adolph J. Bieberstein, 121 West Doty Street, Madison, Wis. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Tanners pocessing oil*, in bulk, in tank vehicles, from Milwaukee, Wis., to Red Wing, Minn. If a hearing is deemed necessary, applicant requests it be held at Minneapolis, Minn.

No. MC 109478 (Sub-No. 95), filed May 3, 1966. Applicant: WORSTER MOTOR LINES, INC., East Main Road, Rural Delivery No. 1, North East, Pa. Applicant's representative: William W. Knox, 23 West 10th Street, Erie, Pa., 16501. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Frozen potatoes and potato products*, from points in Maine, to points in New York, Pennsylvania, and Ohio. NOTE: If a hearing is deemed necessary, applicant requests it be held at Boston, Mass., or Washington, D.C.

No. MC 110193 (Sub-No. 147), filed May 9, 1966. Applicant: SAFEWAY TRUCK LINES, INC., 20450 Ireland Road, Post Office Box 2628, South Bend, Ind. Applicant's representative: Walter J. Kobos, Post Office Box 2628, South Bend, Ind. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meat, meat products, meat byproducts and articles distributed by meat packinghouses*, from Oakland, Iowa, and points with 5 miles thereof, to points in Connecticut, Delaware, Maine, Maryland, Massachusetts, Michigan, New Hampshire, New Jersey, New York, Ohio, Pennsylvania, Rhode Island, Vermont, Virginia, and the District of Columbia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Omaha, Nebr.

No. MC 110354 (Sub-No. 10), filed May 3, 1966. Applicant: V. KAP TRUCKING, INC., Post Office Box 706, Painesville, Ohio. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Fertilizer, pesticides, insecticides, and herbicides*, from Cleveland, Ohio, to points in Allegheny, Armstrong, Beaver, Butler, Clarion, Clearfield, Fayette, Greene, Indiana, Jefferson, Lawrence, Mercer, Washington, Warren, Westmoreland, and Venango Counties, Pa., and Hancock, Marshall, Tyler, and Wetzel Counties, W. Va. NOTE: Applicant states that operations to be conducted under contract with Agrico Chemical Co., division of Continental Oil Co., 4600 West 140th Street, Cleveland, Ohio. If a hearing is deemed necessary, applicant requests it be held at Columbus, Ohio.

No. MC 110358 (Sub-No. 5), filed May 9, 1966. Applicant: WILLIAM STREB, doing business as DUNCANNON TRANSPORTATION COMPANY, 1368 Bustleton Pike, Feasterville, Pa. Applicant's representative: G. Donald Bullock, Box 146, Wyncote, Pa., 19095. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Foodstuffs and food products used in or useful to or resulting from the manufacture, sale or distribution of bakery, candy, and confectionary products*, in containers, and in connection therewith, *equipment, materials, and supplies* used in the conduct of such business, (1) between Philadelphia, Pa., Grand Rapids, Mich., and Cincinnati, Ohio; and (2) between the points in (1) above on the one hand, and, on the other, points in Connecticut, Delaware, Illinois, Indiana, Maryland, Massachusetts, Michigan, Ohio, New Jersey, New York, Pennsylvania, Rhode Island, Virginia, and West Virginia, and the District of Columbia; under a continuing contract or contracts with the United Biscuit Co. of America. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 110686 (Sub-No. 29) (Amendment), filed April 18, 1966, published in FEDERAL REGISTER issue of May 12, 1966, amended and republished this issue. Applicant: McCORMICK DRAY LINE, INC., Avis, Pa. Applicant's representative: David A. Sutherlund, 1120 Connecticut Avenue NW., Washington, D.C., 20036. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except classes A and B explosives, household goods as defined by the Commission, and commodities of unusual value), between points in Putnam County, Ill., and points in Alabama, Arizona, California, Colorado, Florida, Georgia, Idaho, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Minnesota, Mississippi, Missouri, Montana, Nebraska, Nevada, New Mexico, North Dakota, Ohio, Oklahoma, Oregon, Pennsylvania, South Dakota, Tennessee, Texas, Utah, Washington, Wisconsin, and Wyoming. NOTE: The purpose of this republication is to change the point of Hennepin, Ill., to points in Putnam County, Ill. If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 110988 (Sub-No. 214), filed May 6, 1966. Applicant: KAMPO TRANSIT, INC., 200 Cecil Street, Neenah, Wis. Applicant's representative: Wilmer B. Hill, Transportation Building, Washington, D.C., 20006. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Dry plastics*, in bulk, in tank or hopper vehicles, from Henry, Ill., to points in Delaware, Indiana, Kentucky, Maryland, Michigan, New Jersey, New York, Ohio, Pennsylvania, Virginia, West Virginia, and the District of Columbia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 111231 (Sub-No. 146), filed May 9, 1966. Applicant: JONES TRUCK LINES, INC., 610 East Emma Avenue, Springdale, Ark. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Pipe and pipe fittings, couplings, connections, and accessories* (except iron and steel pipe) and (except those requiring special equipment), from points in Sangamon, Rock Island, and Logan Counties, Ill., to points in Minnesota, North Dakota, South Dakota, Nebraska, Wyoming, Colorado, New Mexico, and Arizona. NOTE: If a hearing is deemed necessary, applicant does not specify a location.

No. MC 111231 (Sub-No. 147), filed May 6, 1966. Applicant: JONES TRUCK LINES, INC., 610 East Emma Avenue, Springdale, Ark. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Foodstuffs*, from Memphis, Tenn., to points in Alabama, Arkansas, Connecticut, Delaware, Florida, Georgia, Illinois, Indiana, Kentucky, Louisiana, Maine, Maryland, Massachusetts, Michigan, Mississippi, Missouri, New Hampshire, New Jersey, New York, North Carolina, Ohio, Pennsylvania, Rhode Island, South Carolina, Tennessee, Vermont, Virginia, West Virginia, and the District of Columbia. NOTE: If a hearing is deemed necessary, applicant does not specify a location.

No. MC 111231 (Sub-No. 148), filed May 9, 1966. Applicant: JONES TRUCK LINES, INC., 610 East Emma Avenue, Springdale, Ark. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Pipe and pipefittings, couplings, connections and accessories* (except iron and steel pipe) and (except those requiring special equipment) from points in Sangamon, Rock Island, and Logan Counties, Ill., to points in Wisconsin, Iowa, Indiana, Ohio, Missouri, Kentucky, Tennessee, Alabama, Mississippi, Louisiana, Arkansas, Oklahoma, Kansas, and Texas. NOTE: If a hearing is deemed necessary, applicant does not specify location.

No. MC 111545 (Sub-No. 88), filed May 6, 1966. Applicant: HOME TRANSPORTATION COMPANY, INC., Post Office Box 6426, Station A, 1425 Franklin Road SE., Marietta, Ga. Applicant's representative: Paul M. Daniell, 1600 First Federal Building, Atlanta, Ga., 30303. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Tractors* (except truck tractors designed primarily for the transportation of property over highways), *tractor attachments, and agricultural implements and machinery* (except commodities, the transportation of which because of size or weight re-

quires the use of special equipment), from Atlanta and Decatur, Ga., to points in Connecticut, Delaware, Georgia, Indiana, Maryland, Massachusetts, New Jersey, New York, North Carolina, Ohio, Pennsylvania, Rhode Island, South Carolina, and Virginia, and the District of Columbia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Atlanta, Ga.

No. MC 112223 (Sub-No. 76), filed May 6, 1966. Applicant: QUICKIE TRANSPORT COMPANY, a corporation, 501 11th Avenue South, Minneapolis, Minn. Applicant's representative: Earl Hacking, 503 11th Avenue South, Minneapolis, Minn., 55415. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Liquid caustic soda and phosphoric acid*, in bulk, in tank vehicles, from Minneapolis and St. Paul, Minn., to points in Iowa, North Dakota, Minnesota, South Dakota, Nebraska, Illinois, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Minneapolis, Minn.

No. MC 112520 (Sub-No. 144), filed May 3, 1966. Applicant: McKENZIE TANK LINES, INC., New Quincy Road, Tallahassee, Fla. Applicant's representative: Sol H. Proctor, 1730 American Heritage Life Building, Jacksonville, Fla., 32202. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Acids and chemicals*, in bulk, between points in Wakulla County, Fla., on the one hand, and, on the other, points in Florida. NOTE: If a hearing is deemed necessary, applicant requests it be held at Jacksonville or Tallahassee, Fla.

No. MC 112520 (Sub-No. 145), filed May 5, 1966. Applicant: McKENZIE TANK LINES, INC., New Quincy Road, Tallahassee, Fla. Applicant's representative: Sol H. Proctor, 1730 American Heritage Life Building, Jacksonville, Fla., 32202. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Chemicals*, in bulk, from Pace, Fla., to points in Alabama, Arkansas, Colorado, Connecticut, Delaware, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Maine, Maryland, Massachusetts, Michigan, Minnesota, Mississippi, Missouri, Nebraska, New Hampshire, New Jersey, New York, North Carolina, Ohio, Oklahoma, Pennsylvania, Rhode Island, South Carolina, South Dakota, Tennessee, Texas, Vermont, Virginia, West Virginia, Wisconsin, and the District of Columbia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Atlanta, Ga., Tallahassee or Jacksonville, Fla.

No. MC 113678 (Sub-No. 255), filed April 27, 1966. Applicant: CURTIS, INC., 770 East 51st Avenue, Denver, Colo., 80216. Applicant's representative: Duane W. Acklie, Post Office Box 2028, Lincoln, Nebr. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts, and articles distributed by meat-packinghouses*, as described in sections A and C of appendix 1 to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766 (except liquid bulk commodities, in tank vehicles, and except hides), from Atlanta, Ga., to Oklahoma City, Okla., and Denver, Colo. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 113843 (Sub-No. 117), filed May 9, 1966. Applicant: REFRIGERATED FOOD EXPRESS, INC., 316 Summer Street, Boston, Mass., 02210. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Frozen foods*, and, (2) *potatoes and potato products*, when moving in mixed loads with frozen foods, from Detroit and Greenville, Mich., to points in Connecticut, Delaware, Illinois, Indiana, Iowa, Kansas, Kentucky, Maine, Maryland, Massachusetts, Minnesota, Missouri, Nebraska, New Hampshire, New Jersey, New York, Ohio, Pennsylvania, Rhode Island, Tennessee, Vermont, Virginia, West Virginia, Wisconsin, and the District of Columbia. NOTE: Applicant states that the above operation is restricted to traffic originating at the shipper's plantsite or storage and warehouse facilities used by the concerned shippers. If a hearing is deemed necessary, applicant requests it be held at Detroit, Mich.

No. MC 114360 (Sub-No. 14), filed May 6, 1966. Applicant: SOUTHERN EXPRESS COMPANY, 3333 South Cicero Avenue, Cicero, Ill., 60650. Applicant's representative: David Axelrod, 39 South La Salle Street, Chicago, Ill., 60603. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, and commodities in bulk, in tank vehicles), between points in Putnam County, Ill., on the one hand, and, on the other, points in Alabama, Arkansas, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Minnesota, Mississippi, Missouri, Nebraska, Ohio, Oklahoma, Pennsylvania, North Dakota, South Dakota, Tennessee, Texas, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 114533 (Sub-No. 137), filed May 10, 1966. Applicant: B. D. C. CORPORATION, 4970 South Archer Avenue, Chicago, Ill. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Fresh cut flowers*, between Mount Clemens, Mich., on the one hand, and, on the other, Cleveland, Lorain, and Toledo, Ohio, and Indianapolis, Ind. NOTE: If a hearing is deemed necessary, applicant requests it be held at Detroit, Mich.

No. MC 114533 (Sub-No. 138), filed May 10, 1966. Applicant: B. D. C. CORPORATION, 4970 South Archer Avenue, Chicago, Ill. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Eye glasses, frames, lenses and parts thereof*, between Cleveland, Ohio, on the one hand, and, on the other, Ann Arbor, Battle Creek, Bay City, Flint, Highland Park, Jackson, Kalamazoo, Pontiac, and Saginaw, Mich. NOTE: If a hearing is deemed necessary, applicant requests it be held at Cleveland, Ohio.

No. MC 114552 (Sub-No. 27), filed May 6, 1966. Applicant: SENN TRUCKING COMPANY, Post Office Box 333, Newberry, S.C. Applicant's representative: Frank A. Graham, Jr., 707 Security Federal Building, Columbia, S.C., 29201. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Materials* used in the installation of wood flooring when transported in the same vehicle with wood flooring and not exceeding 15 percent of the weight of the total shipment, from points in Laurens County, S.C., to points in Florida, Kentucky, Tennessee, and Virginia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Columbia, S.C.

No. MC 114848 (Sub-No. 30), filed May 6, 1966. Applicant: WHARTON TRANSPORT CORPORATION, 1498 Channel Avenue, Memphis, Tenn. Applicant's representative: James N. Clay, III, 340 Sterick Building, Memphis, Tenn. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Clay and clay products*, in bulk, from points in Tippah County, Miss., to points in Illinois, Indiana, Kentucky, Tennessee, Ohio, West Virginia, Virginia, North Carolina, South Carolina, Georgia, Florida, Alabama, Mississippi, Louisiana, Arkansas, Texas, Oklahoma, and Missouri. NOTE: If a hearing is deemed necessary, applicant requests it be held at Memphis, Tenn.

No. MC 115162 (Sub-No. 127), filed May 10, 1966. Applicant: WALTER POOLE, doing business as POOLE TRUCK LINE, Post Office Box 310, Evergreen, Ala., 36401. Applicant's representative: Robert E. Tate, Suite 2025, City Federal Building, Birmingham, Ala., 35203. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron and steel, iron and steel articles, and iron and steel mill products, equipment, materials, and supplies including those used in the manufacture of iron and steel articles and used in the maintenance of steel plants*, between points in Putnam County, Ill., and points in Alabama, Arkansas, Florida, Georgia, Kansas, Kentucky, Illinois, Indiana, Iowa, Louisiana, Michigan, Minnesota, Mississippi, Missouri, Nebraska, North Carolina, North Dakota, Ohio, Oklahoma, South Carolina, South Dakota, Tennessee, Texas, Virginia, West Virginia, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 115180 (Sub-No. 35), filed May 5, 1966. Applicant: ONLEY REFRIGERATED TRANSPORTATION, INC., 408 West 14th Street, New York, N.Y. Applicant's representative: George A. Olsen, 69 Tonnele Avenue, Jersey City, N.J., 07306. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, trans-

porting: *Meat, meat products, meat byproducts, and articles distributed by meat packinghouses* as described in sections A and C of appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766, from Oakland, Iowa, and points within 5 miles thereof, to points in Connecticut, Delaware, Illinois, Maryland, New Jersey, New York, Ohio, Indiana, Pennsylvania, Virginia, West Virginia, and the District of Columbia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 115331 (Sub-No. 193), filed May 2, 1966. Applicant: TRUCK TRANSPORT, INCORPORATED, 707 Market Street, St. Louis, Mo., 63101. Applicant's representative: Thomas F. Kilroy, Colorado Building, 1341 G Street NW., Washington, D.C., 20005. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Plastic materials, liquid, vinyl acetate, and latex*, in bulk, in tank vehicles, from Illiopolis, Ill., to points in Colorado, Minnesota, Missouri, Kansas, Ohio, Wisconsin, Texas (except points within 50 miles of Houston), Indiana (except Wabash), Georgia (except Austell and Dalton), Pennsylvania (except Bloomsburg and New Carlyle), and Massachusetts, and Newark, N.J.; Glen Cove, Long Island, N.Y.; and Saugerties, N.Y. NOTE: Applicant states that it will transport exempt commodities on return. If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 116254 (Sub-No. 67), filed May 9, 1966. Applicant: CHEM-HAULERS, INC., Post Office Box 245, Sheffield, Ala. Applicant's representative: Walter Harwood, Nashville Bank & Trust Building, Nashville 3, Tenn. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Clay*, in bulk, between points in Graves County, Ky., and Henry and Weakley Counties, Tenn., on the one hand, and, on the other, points in Illinois, Indiana, Kentucky, Tennessee, Ohio, West Virginia, Virginia, North Carolina, South Carolina, Georgia, Florida, Alabama, Mississippi, Louisiana, Arkansas, Texas, Oklahoma, and Missouri. NOTE: If a hearing is deemed necessary, applicant requests it be held at Memphis, Tenn., or Nashville, Tenn.

No. MC 116475 (Sub-No. 1) (Clarification), filed March 4, 1966, published FEDERAL REGISTER, issue of March 24, 1966, and republished as clarified this issue. Applicant: ESTY's TRANSPORTATION, INC., Post Office Box 37, South Windham, Maine. Applicant's representative: Mary E. Kelley, 10 Tremont Street, Boston, Mass. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Classes A, B, and C explosives, and supplies and equipment* used and shipped therewith, between Hudson, Mass., and points in Maine, under a continuing contract with E. I. du Pont de Nemours & Co., a Delaware corporation. NOTE: Applicant states that the purpose of this application is to follow the traffic which formerly originated at Chelmsford, Mass. The purpose of this republication is to eliminate the restriction contained in the prior publication confining the proposed service to "shipments not exceeding 10,000 pounds in weight," which is not acceptable to the Commission. If a hearing is deemed necessary, applicant requests it be held at Boston, Mass.

No. MC 116544 (Sub-No. 73), filed May 9, 1966. Applicant: WILSON BROTHERS TRUCK LINE, INC., 700 East Fairview Avenue, Carthage, Mo. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Liquid fertilizers, dry fertilizers, cleaning, scouring or washing compounds*, liquid or dry, from Cedar Rapids, Iowa, to points in Alabama, Arkansas, Florida, Georgia, Kansas, Louisiana, Mississippi, Missouri, Nebraska, North Carolina, Oklahoma, South Carolina, Tennessee, and Texas. NOTE: If a hearing is deemed necessary, applicant requests it be held at Des Moines, Iowa.

No. MC 116544 (Sub-No. 74), filed May 9, 1966. Applicant: WILSON BROTHERS TRUCK LINE, INC., 700 East Fairview Avenue, Carthage, Mo. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts and articles distributed by meat packinghouses*, as described in appendix I to the report in *Descriptions in Motor Carriers Certificates*, 61 M.C.C. 209 and 766 (except hides and commodities in bulk, in tank vehicles), from Tama, Iowa, to points in Alabama, Arkansas, Florida, Georgia, Kansas, Louisiana, Mississippi, Missouri, Nebraska, North Carolina, Oklahoma, South Carolina, Tennessee, and Texas. NOTE: If a hearing is deemed necessary, applicant requests it be held at Des Moines, Iowa.

No. MC 116628 (Sub-No. 8), filed May 10, 1966. Applicant: SUBURBAN TRANSFER SERVICE, INC., 285 Highland Cross, Post Office Box 168, Rutherford, N.J., 07070. Applicant's representative: Clarence D. Todd, 1825 Jefferson Place NW., Washington, D.C., 20036. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Such merchandise* as is dealt in by retail department stores, *packaging materials* for such merchandise and *materials and supplies* used in the operation of such stores, between Plymouth Meeting, Pa., on the one hand, and, on the other, points in New Jersey, and New York, and Buffalo, Yonkers, and Long Island, N.Y.; Wilmington, Del.; Philadelphia and Willow Grove, Pa.; Boston, Mass.; Westport and Milford, Conn.; Baltimore, Md.; and the District of Columbia; limited to the transportation service to be performed under a continuing contract or contracts with Franklin Simon. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 116763 (Sub-No. 86), filed May 9, 1966. Applicant: CARL SUBLER TRUCKING, INC., North West Street, Versailles, Ohio. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Metal containers*, from Homerville, Ga., to points in Florida. NOTE: If a hearing is deemed necessary, applicant requests it be held at Atlanta, Ga.

No. MC 117119 (Sub-No. 371), filed May 9, 1966. Applicant: WILLIS SHAW FROZEN EXPRESS, INC., Elm Springs, Ark., 72728. Applicant's representative: John H. Joyce, 26 North College, Fayetteville, Ark. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Animal and poultry feeds and ingredients and supplements thereof*, from points in Arizona to points in Idaho. NOTE: If a hearing is deemed necessary, applicant does not specify a location.

No. MC 117574 (Sub-No. 147), filed May 4, 1966. Applicant: DAILY EXPRESS, INC., Post Office Box 39, Mail Route No. 3, Carlisle, Pa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron and steel, iron and steel articles, steel mill materials, supplies, and equipment, and building materials*, between points in Putnam County, Ill., on the one hand, and, on the other, points in the United States (except Hawaii). NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 117883 (Sub-No. 83), filed May 5, 1966. Applicant: SUBLER TRANSFER, INC., East Main Street, Versailles, Ohio. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meat, meat products, meat byproducts*, and *articles distributed by meat packinghouses*, from Oakland, Iowa, and points within 5 miles thereof, to points in Connecticut, Delaware, Illinois, Indiana, Kentucky, Maine, Maryland, Massachusetts, Michigan, New Hampshire, New Jersey, New York, Ohio, Pennsylvania, Rhode Island, Vermont, Virginia, West Virginia, and the District of Columbia. NOTE: If a hearing is deemed necessary, applicant does not specify a location.

No. MC 118196 (Sub-No. 70), filed May 11, 1966. Applicant: RAYE & COMPANY TRANSPORTS, INC., Highway 71 North, Post Office Box 613, Carthage, Mo. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meat, meat products, meat byproducts, dairy products* and *articles distributed by meat packinghouses*, as described in sections A, B, and C of appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766, from Guymon, Okla., and points within 10 miles thereof, to points in Arizona, California, Colorado, Idaho, Minnesota, Montana, New Mexico, Nevada, Oregon, Utah, Washington, Wisconsin, and Wyoming. NOTE: If a hearing is deemed necessary, applicant does not specify a location.

No. MC 118196 (Sub-No. 71), filed May 13, 1966. Applicant: RAY & COMPANY TRANSPORTS, INC., Post Office Box 613, Highway 71 North, Carthage, Mo. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Dairy products*,

from points in Iowa to points in Missouri (except St. Louis, Mo.) and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Kansas City, Mo.

No. MC 118867 (Sub-No. 4), filed May 6, 1966. Applicant: TWINS, INC., 243 Windsor Street, Kearny, N.J. Applicant's representative: George A. Olsen, 69 Tonnele Avenue, Jersey City, N.J., 07306. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Radioactive materials*, between points in Alabama, Arkansas, Connecticut, Delaware, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Maine, Maryland, Massachusetts, Michigan, Minnesota, Mississippi, Missouri, Nebraska, New Hampshire, New Jersey, New York, North Carolina, Ohio, Oklahoma, Pennsylvania, Rhode Island, South Carolina, Tennessee, Texas, Vermont, Virginia, West Virginia, Wisconsin, and the District of Columbia, under a continuing contract with Nuclear Engineering Co., Inc., of Walnut Creek, Calif. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C., or New York, N.Y.

No. MC 119422 (Sub-No. 40), filed May 9, 1966. Applicant: Ee-JAY TRANSPORTS, INC., 15th and Lincoln Streets, East St. Louis, Ill. Applicant's representative: Ernest A. Brooks II, 1301–02 Ambassador Building, St. Louis, Mo., 63101. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Cement*, (1) from plantsites of Dundee Cement Co. located at or near Clarksville, Mo., and (2) from plantsites of Dundee Cement Co. located at or near St. Louis, Mo., to points in Illinois, Iowa, Missouri, Kansas, Nebraska, Arkansas, Oklahoma, Kentucky, Tennessee, Indiana, Ohio, and Michigan. NOTE: If a hearing is deemed necessary, applicant requests it be held at St. Louis, Mo.

No. MC 119700 (Sub-No. 3), filed May 9, 1966. Applicant: STEEL HAULERS, INC., 306 Ewing, Kansas City, Mo. Applicant's representative: Frank W. Taylor, Jr., 1221 Baltimore Avenue, Kansas City, Mo., 64105. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron and steel, iron and steel articles, and such materials as are used or useful in highway construction projects*, between points in Whiteside County, Ill., on the one hand, and, on the other, points in Indiana, Missouri, Arkansas, Louisiana, Texas, Oklahoma, Kansas, Iowa, Nebraska, South Dakota, North Dakota, and points in Colorado, on and east of U.S. Highways 85 and 87. NOTE: Applicant states that it does not desire to tack this authority with any other authority it presently holds but will interline traffic handled pursuant to this authority. If a hearing is deemed necessary, applicant requests it be held at Kansas City, Mo.

No. MC 119700 (Sub-No. 5), filed May 9, 1966. Applicant: STEEL HAULERS, INC., 306 Ewing, Kansas City, Mo. Applicant's representative: Frank W. Taylor, Jr., 1221 Baltimore Avenue, Kansas City, Mo. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron and steel, iron and steel articles, and such materials as are used or useful in highway construction projects*, between Kansas City, Mo., Chicago, Ill., St. Louis, Mo., and Springfield, Mo., on the one hand, and, on the other, points in Louisiana and points in Colorado, on and east of U.S. Highways 85 and 87. NOTE: Applicant states that it does not desire to tack this authority with any other authority it presently holds but will interline traffic handled pursuant to this authority. If a hearing is deemed necessary, applicant requests it be held at Kansas City, Mo.

No. MC 119700 (Sub-No. 6), filed May 9, 1966. Applicant: STEEL HAULERS, INC., 306 Ewing, Kansas City, Mo. Applicant's representative: Frank W. Taylor, Jr., 1221 Baltimore Avenue, Kansas City, Mo., 64105. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron and steel, iron and steel articles, and such materials* as are used or useful on highway construction projects, between Houston, Tex., and points in Louisiana, on the one hand, and, on the other, points in Texas, Oklahoma, Kansas, Missouri, Illinois, Iowa, Nebraska, South Dakota, Arkansas, Indiana, Wisconsin, Minnesota, and points in Colorado on and east of U.S. Highways 85 and 87. NOTE: Applicant states that it does not desire to tack this authority with any other authority it presently holds but will interline traffic handled pursuant to this authority. If a hearing is deemed necessary, applicant requests it be held at Kansas City, Mo.

No. MC 119700 (Sub-No. 7), filed May 9, 1966. Applicant: STEEL HAULERS, INC., 306 Ewing, Kansas City, Mo. Applicant's representative: Frank W. Taylor, Jr., 1221 Baltimore Avenue, Kansas City, Mo., 64105. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron and steel, iron and steel articles, and such materials* as are used or useful on highway construction projects, between points in Putnam County, Ill., on the one hand, and, on the other, points in Indiana, Missouri, Arkansas, Louisiana, Texas, Oklahoma, Kansas, Iowa, Nebraska, South Dakota, North Dakota, and points in Colorado on and east of U.S. Highways 85 and 87. NOTE: Applicant states that it does not desire to tack this authority with any other authority it presently holds but will interline traffic handled pursuant to this authority. If a hearing is deemed necessary, applicant requests it be held at Kansas City, Mo.

No. MC 119700 (Sub-No. 8), filed May 9, 1966. Applicant: STEEL HAULERS, INC., 306 Ewing, Kansas City, Mo. Applicant's representative: Frank W. Taylor, Jr., 1221 Baltimore Avenue, Kansas City, Mo., 64105. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Refractory products*, between points in Callaway, Audrain, and Montgomery Counties, Mo., on the one hand, and, on the other, points in Illinois and Indiana. NOTE: Applicant states that it does not desire to tack this authority with any other authority it presently holds but will interline traffic handled pursuant to this authority. If a hearing is deemed necessary, applicant requests it be held at Kansas City, Mo.

No. MC 119700 (Sub-No. 9), filed May 9, 1966. Applicant: STEEL HAULERS, INC., 306 Ewing, Kansas City, Mo. Applicant's representative: Frank W. Taylor, Jr., 1221 Baltimore Avenue, Kansas City, Mo., 64105. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron and steel, iron and steel articles, and such materials* as are used or useful on highway construction projects, between Tulsa, Okla., on the one hand, and, on the other, points in Nebraska, South Dakota, Louisiana, Indiana, Wisconsin, Minnesota, and points in Colorado on and east of U.S. Highways 85 and 87. NOTE: Applicant states that it does not desire to tack this authority with any other authority it presently holds but will interline traffic handled pursuant to this authority. If a hearing is deemed necessary, applicant requests it be held at Kansas City, Mo.

No. MC 119767 (Sub-No. 167), filed May 10, 1966. Applicant: BEAVER TRANSPORT CO., a corporation, 100 South Calumet Street, Burlington, Wis. Applicant's representative: Fred H. Figge, Post Office Box 339, Burlington, Wis. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Such commodities as are manufactured, sold, and distributed by persons engaged in the manufacture, processing and milling of grain products*, except in bulk, in tank vehicles, from St. Charles and West Chicago, Ill., to points in Illinois, Iowa, Minnesota, Missouri, North Dakota, South Dakota, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Minneapolis, Minn.

No. MC 119767 (Sub-No. 169), filed May 10, 1966. Applicant: BEAVER TRANSPORT CO., a corporation, 100 South Calumet, Burlington, Wis. Applicant's representative: Fred H. Figge (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Frozen prepared food and pies*, not baked, and (2) *poultry dressed and/or eviscerated frozen*, when in mixed shipments with (1) above, from Carrollton, Macon, Marshall, Milan, and Moberly, Mo., to points in Indiana, Michigan, Ohio, Wisconsin, and Illinois (except points in Christian, Coles, Macon, and Sangamon Counties). NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 119917 (Sub-No. 18), filed May 5, 1966. Applicant: DUDLEY TRUCKING COMPANY, INC., 717 Memorial Drive, SE., Atlanta, Ga., 30316. Applicant's representative: R. J. Reynolds, Jr., Suite 403–11, Healey Building Atlanta, Ga., 30303. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting:

*Damaged salvaged merchandise* (except those commodities which because of size or weight require the use of special equipment), (1) between points in Arkansas, Oklahoma, and Texas, and (2) between points in Arkansas, Oklahoma, and Texas, on the one hand, and, on the other, points in Alabama, Florida, Georgia, Kentucky, Louisiana, Mississippi, North Carolina, South Carolina, Tennessee, Virginia, and the District of Columbia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Atlanta, Ga.

No. MC 123375 (Sub-No. 9), filed May 9, 1966. Applicant: KIRK TRUCKING SERVICE, INC., Post Office Box 153, Monroeville, Pa., 15146. Applicant's representative: Noel F. George, 100 East Broad Street, Columbus, Ohio, 43215. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron and steel and steel products, and steel mill equipment, materials, and supplies*, between Putnam County, Ill., on the one hand, and, on the other, points in Alabama, Arkansas, Connecticut, Florida, Georgia, Illinois, Indiana, Iowa, Kentucky, Kansas, Maryland, Massachusetts, Michigan, Louisiana, Minnesota, Mississippi, Missouri, Nebraska, North Dakota, South Dakota, New Jersey, New York, Ohio, Oklahoma, Pennsylvania, Texas, West Virginia, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 123544 (Sub-No. 2), filed May 9, 1966. Applicant: OTTO BERTSCH, Box 15, Hillsboro, N. Dak. Applicant's representative: William S. Rosen, 400 Minnesota Building, St. Paul, Minn., 55101. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Farm machinery and implements and parts thereof*, in seasonal operations between approximately January 1 and September 1, from ports of entry on the international boundary line between the United States and Canada, located at Neche and Pembina, N. Dak., and Noyes, Minn., to points in Kansas and Nebraska. NOTE: Applicant states that operations will be limited to traffic originating at Winnipeg, Canada, or its commercial zone, and destined for points in the above-named States. If a hearing is deemed necessary, applicant requests it be held at Minneapolis, Minn.

No. MC 123633 (Sub-No. 1), filed May 6, 1966. Applicant: AHRENS MOTOR TRUCKING, INC., 550 Ninth Street, Hoboken, N.J. Applicant's representative: George A. Olsen, 69 Tonnele Avenue, Jersey City, N.J., 07306. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Corrugated paper*, in rolls, sheets, and boxes, from the plantsite of Hinde Dauch, division of the West Virginia Pulp & Paper Co., located at Hoboken, N.J., to points in New York south of New York Highway 8 to junction New York Highway 30, thence along New York Highway 30 to junction New York Highway 7, and thence along New York Highway 7 to the New York-Pennsylvania State line, under a continuing contract with Hinde Dauch, division the West Virginia Pulp & Paper Co. NOTE: If a hearing is deemed necessary, applicant requests it be held at New York, N.Y., or Washington, D.C.

No. MC 123639 (Sub-No. 78), filed May 5, 1966. Applicant: J. B. MONTGOMERY, INC., 5150 Brighton Boulevard, Denver, Colo., 80216. Applicant's representative: Charles W. Singer, Tower Suite 3600, 33 North La Salle Street, Chicago, Ill., 60602. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Paint materials* and *plumbing supplies*, from points in Douglas County, Nebr., to points in Colorado, Arizona, Wyoming, New Mexico, California, Utah, Nevada, and Kansas. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 123639 (Sub-No. 79), filed May 5, 1966. Applicant: J. B. MONTGOMERY, INC., 5150 Brighton Boulevard, Denver, Colo. Applicant's representative: Charles W. Singer, Tower Suite 3600, 33 North La Salle Street, Chicago, Ill., 60602. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts, and articles distributed by meat packinghouses*, as described in sections A and C of appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766, from Tama, Iowa, and points within 5 miles thereof to points in Illinois, Indiana, Ohio, and Michigan. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 123639 (Sub-No. 80), filed May 5, 1966. Applicant: J. B. MONTGOMERY, INC., 5150 Brighton Boulevard, Denver, Colo. Applicant's representative: Charles W. Singer, 33 North La Salle Street, Chicago, Ill., 60602. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Bakery goods*, from Des Plaines, Ill., to points in Colorado, Arizona, Nevada, Utah, California, and Nebraska. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 123639 (Sub-No. 81), filed May 5, 1966. Applicant: J. B. MONTGOMERY, INC., 5150 Brighton Boulevard, Denver, Colo. Applicant's representative: Charles W. Singer, 33 North La Salle Street, Chicago, Ill., 60602. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts and articles distributed by meat packinghouses*, as described in sections A and C of appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766, from Oakland, Iowa, and points within 5 miles thereof, to points in Illinois, Indiana, Ohio, and Michigan. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 123639 (Sub-No. 82), filed May 5, 1966. Applicant: J. B. MONTGOMERY, INC., 5150 Brighton Boulevard, Denver, Colo. Applicant's representative: Charles W. Singer, Tower Suite 3600, 33 North La Salle Street, Chicago, Ill., 60602. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts*, and *articles distributed by meat packinghouses*, as described in sections A and C of appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766, from Oakland, Iowa, and points within 5 miles thereof, to points in Colorado, Arizona, California, Nevada, Nebraska, Utah, Wyoming, and New Mexico. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 123639 (Sub-No. 83), filed May 5, 1966. Applicant: J. B. MONTGOMERY, INC., 5150 Brighton Boulevard, Denver, Colo. Applicant's representative: Charles W. Singer, Tower Suite 3600, 33 North La Salle Street, Chicago, Ill., 60602. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts*, and *articles distributed by meat packinghouses*, as described in sections A and C of appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766, from Tama, Iowa, and points within 5 miles thereof, to points in Colorado, Arizona, California, Nevada, Nebraska, Utah, Wyoming, and New Mexico. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 123639 (Sub-No. 84), filed May 5, 1966. Applicant: J. B. MONTGOMERY, INC., 5150 Brighton Boulevard, Denver, Colo. Applicant's representative: Charles W. Singer, Tower Suite 3600, 33 North La Salle Street, Chicago, Ill., 60602. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Frozen foods*, from Kansas City, Kans., to points in Arizona, California, and Nevada. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 123821 (Sub-No. 5), filed May 9, 1966. Applicant: LESTER R. SUMMERS, INC., Rural Delivery No. 1, Ephrata, Pa. Applicant's representative: John M. Musselman, 400 North Third Street, Post Office Box 46, Harrisburg, Pa., 17108. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Stone and sand*, from points in Luzerne County, Pa., to Washington, D.C. NOTE: If a hearing is deemed necessary, applicant requests it be held at Harrisburg, Pa.

No. MC 124170 (Sub-No. 12), filed May 9, 1966. Applicant: FROSTWAYS, INC., 2450 Scotten Street, Detroit, Mich. Applicant's representative: Eugene C. Ewald, Suite 1700, 1 Woodward Avenue, Detroit, Mich., 48226. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, and meat byproducts*, as described in appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766,

from Detroit, Mich., to Elmira and Binghamton, N.Y. NOTE: If a hearing is deemed necessary, applicant requests it be held at Detroit, Mich.

No. MC 124174 (Sub-No. 42), filed May 9, 1966. Applicant: MOMSEN TRUCKING CO., a corporation, U.S. Highways 71 and 18 North, Spencer, Iowa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts, and articles distributed by meat packinghouses*, as described in sections A and C of appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766 (except liquid commodities in bulk, in tank vehicles), from Salina, Kans., to points in Indiana, Illinois, Iowa, Minnesota, and Wisconsin. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant does not specify a location.

No. MC 124174 (Sub-No. 43), filed May 9, 1966. Applicant: MOMSEN TRUCKING CO., a corporation, Highways 71 and 18 North, Spencer, Iowa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron and steel and iron and steel articles*, between Hennepin, Ill., and points in Putnam County, Ill., on the one hand, and, on the other, points in Colorado, Iowa, Kansas, Minnesota, Missouri, Nebraska, North Dakota, Oklahoma, South Dakota, Wisconsin, and Wyoming. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant does not specify a location.

No. MC 124174 (Sub-No. 44), filed May 6, 1966. Applicant: MOMSEN TRUCKING COMPANY, Highways 71 and 18 North, Spencer, Iowa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Glassware, glass bottles, glass jars, closures, lids, caps, paper cartons, and packing glass*, from points in Lake and Will Counties, Ill., to points in Iowa, Kansas, Nebraska, Minnesota, Missouri, North Dakota, and South Dakota. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 124174 (Sub-No. 48), filed May 9, 1966. Applicant: MOMSEN TRUCKING COMPANY, a corporation, Highways 71 and 18 North, Spencer, Iowa. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except classes A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment), serving North Chicago, Ill., as an off-route point in connection with applicant's presently authorized regular and irregular routes which authorize service to or from Chicago, Ill. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Omaha, Nebr.

No. MC 124669 (Sub-No. 20), filed May 6, 1966. Applicant: TRANSPORT, INC., 1012 West 41st Street, Sioux Falls, S. Dak. Applicant's representative: Ronald B. Pitsenbarger, Post Office Box 396, Moorhead, Minn. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Petroleum and petroleum products*, in bulk, as defined in appendix XIII to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209, from the sites of the terminal outlets of Kaneb Pipeline Co. located at or near Aberdeen, Mitchell, and Wolsey, S. Dak., to the sites of the terminal outlets of Kaneb Pipeline Co. located at or near Geneva and Norfolk, Nebr. NOTE: If a hearing is deemed necessary, applicant requests it be held at Sioux Falls, S. Dak.

No. MC 125708 (Sub-No. 49), filed May 11, 1966. Applicant: HUGH MAJOR, 150 Sinclair Avenue, South Roxana, Ill. Applicant's representative: Edward G. Bazelon, 39 South La Salle Street, Chicago, Ill., 60603. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, and commodities in bulk, in tank vehicles), between points in Putnam County, Ill., on the one hand, and, on the other, points in Alabama, Arkansas, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Minnesota, Mississippi, Missouri, Nebraska, Ohio, Oklahoma, North Dakota, South Dakota, Tennessee, Texas, and Wisconsin. NOTE: Applicant is also authorized to conduct operations as a contract carrier in permit No. MC 116434 and Subs thereunder; therefore, dual operations may be involved. If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 125708 (Sub-No. 56), filed May 6, 1966. Applicant: HUGH MAJOR, 150 Sinclair Avenue, South Roxana, Ill. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Pipe and pipe fittings, couplings, connections and accessories*, from points in Sangamon, Rock Island, and Logan Counties, Ill., to points in Wisconsin, Indiana, Ohio, Kentucky, Tennessee, Iowa, Kansas, Pennsylvania, and West Virginia. NOTE: Applicant holds contract carrier authority in MC 116434 and Subs, therefore dual operations may be involved. If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill., or St. Louis, Mo.

No. MC 125708 (Sub-No. 57), filed May 6, 1966. Applicant: HUGH MAJOR, 150 Sinclair Avenue, South Roxana, Ill. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Lumber, lumber products and flooring*, from points in Carroll and Boone Counties, Ark., to points in Iowa, Illinois, Indiana, Missouri, Michigan, Kansas, Ohio, and Wisconsin. NOTE: Applicant holds contract carrier authority in MC 116434 and Subs, therefore dual operations may be involved. If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill., or St. Louis, Mo.

No. MC 125996 (Sub-No. 7), filed May 6, 1966. Applicant: JENSEN TRUCKING CO., INC., 807 Washington Street, Gothenburg, Nebr. Applicant's representative: Charles J. Kimball, Box 2028, Lincoln, Nebr., 68501. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Bird, fish, poultry, and animal feed ingredients and bird, fish, poultry and animal feed*, from (1) Buhl and Hagerman, Idaho, to points in Washington and Oregon (except Ontario, Oreg.), and, (2) points in Arizona and California to points in Iowa, Minnesota, Missouri, Nebraska, and Wisconsin. NOTE: Applicant states it seeks no duplicate authority and presently holds said authority over Idaho gateways, and said application is for the purpose of gateway elimination. If a hearing is deemed necessary, applicant requests it be held at Lincoln, Nebr.

No. MC 126276 (Sub-No. 3), filed May 9, 1966. Applicant: FAST MOTOR SERVICE, INC., 7521 West 62d Street, Summit, Ill. Applicant's representative: Robert H. Levy, 29 South La Salle Street, Chicago, Ill., 60603. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: (1) *Metal containers*, from the plantsite of Crown Cork and Seal Co., Inc., located at St. Louis, Mo., to Chicago, Ill., and Kenosha, Wis.; and (2) *metal containers and materials* used in the manufacture or shipping of metal containers, from Chicago, Ill., to St. Louis and Berkeley, Mo. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 126749 (Sub-No. 7), filed May 3, 1966. Applicant: K. P. MOVING & STORAGE, INC., 1475 South Acoma Street, Denver, Colo. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Articles dealt in by furniture auction houses*, between Denver, Colo., on the one hand, and, on the other, points in Utah, New Mexico, Arizona, California, Oregon, Washington, Idaho, Nevada, Montana, Wyoming, North Dakota, South Dakota, Oklahoma, and Texas. NOTE: If a hearing is deemed necessary, applicant requests it be held at Denver, Colo.

No. MC 127042 (Sub-No. 16), filed May 9, 1966. Applicant: HAGEN, INC., 4120 Floyd Boulevard, Sioux City, Iowa. Applicant's representative: J. Max Harding, Box 2028, Lincoln, Nebr., 68501. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meat, meat products, meat byproducts, and articles distributed by meat packinghouses*, as described in appendix I to the Report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766 (except hides and commodities in bulk, in tank vehicles), from Tama, Iowa, to points in Oregon, Montana, Idaho, Wyoming, North Dakota, South Dakota, Nebraska, Kansas, Minnesota, Iowa, Missouri, Wisconsin, Illinois, Indiana, and Ohio. NOTE: Common control may be involved. Applicant holds contract carrier authority in MC 115915 and subs, therefore dual operations may be involved. If a hearing is deemed necessary, applicant requests it be held at Des Moines, Iowa.

No. MC 127185 (Sub-No. 4), filed May 10, 1966. Applicant: GATEWAY TRANSFER CO., INC., Post Office Box 526, Laredo, Tex. Applicant's representative: Jerry Prestridge, 12th Floor Capital National Bank Building, Austin, Tex. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities, including classes A and B explosives* (but excluding commodities in bulk, household goods as defined by the Commission and commodities which because of size or weight require the use of special equipment), (1) between Laredo, Tex., and the port of entry on the international boundary line between the United States and Mexico located at or near Roma, Tex., over U.S. Highway 83, and (2) between Laredo, Tex., and the port of entry on the international boundary line between the United States and Mexico located at or near Rio Grande City, Tex., over U.S. Highway 83, serving no intermediate or off-route points in (1) and (2) above. NOTE: If a hearing is deemed necessary, applicant requests it be held at Laredo, Corpus Christi, or San Antonio, Tex.

No. MC 127304 (Second Amendment), filed May 26, 1965, published FEDERAL REGISTER issues of June 24 and November 18, 1965, respectively, amended May 13, 1966, and republished, as amended, this issue. Applicant: CLEAR WATER TRUCK COMPANY, INC., 410 Fourth National Bank Building, Wichita, Kans. Applicant's representative: James F. Miller, Suite N–13 Medical and Professional Building, 7501 Mission Road, Shawnee Mission, Kans. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Fluoro-chloro hydrocarbons, including monofluoromethane, dichlorofluoromethane, monochlorodifluoromethane dichlorodifluoromethane and trichloromonofluoromethane*, in containers, in cylinders, and in bulk, from Wichita, Kans., to points in the United States (except Alaska and Hawaii), and *empty containers and such other incidental facilities as are to be used or are useful in the transportation of fluoro-chloro hydrocarbons*, and also *new containers*, on return. NOTE: The purpose of this republication is to add the return movement. If a hearing is deemed necessary, applicant requests it be held at Wichita, Kans.

No. MC 127601 (Sub-No. 1), filed May 10, 1966. Applicant: REFRIGERATED EXPRESS LINES, INC., Post Office Box 458, Plant City, Fla. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Canned fruits and juices, drinks and beverages*, not requiring refrigeration, from points in Florida to points in Alabama, Georgia, North Carolina, South Carolina, and Tennessee, and *damaged, refused, and rejected shipments*, on return. NOTE: If a hearing is deemed necessary, applicant requests it be held at Tampa, Fla.

No. MC 127844 (Sub-No. 1), filed May 9, 1966. Applicant: L. B. BARNHILL AND I. S. JOHNSON, a partnership, doing business as B & J TRANSPORTATION, R.F.D. No. 1, Box 48 XA, Sumter, S.C. Applicant's representative: Henry P. Willimon, Box 1075, Greenville, S.C. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *New furniture*, (1) from points in Marion County, S.C., to points in Virginia, the District of Columbia, Maryland, Delaware, Connecticut, Rhode Island, and Massachusetts, and (2) from points in Florence County, S.C., to points in New Jersey, Pennsylvania, and Delaware. NOTE: If a hearing is deemed necessary, applicant requests it be held at Columbia, S.C.

No. MC 127925 (Sub-No. 2), filed May 6, 1966. Applicant: KINGSLAND PAPER HAULAGE, INC., 217 Post Avenue, Lyndhurst, N.J. Applicant's representative: George A. Olsen, 69 Tonnele Avenue, Jersey City, N.J., 07306. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Scrap and waste paper*, (1) from Lyndhurst, N.J., to Easton, Pa., and (2) from Easton, Pa., to Ridgefield, N.J.; under a continuing contract with James Carrano Sons, New York, N.Y. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C., or New York, N.Y.

No. MC 127951 (Sub-No. 1), filed May 2, 1966. Applicant: SOUTHEASTERN CARRIERS, INC., 2400 Northwest 75th Street, Miami, Fla. Applicant's representative: Bernard C. Pestcoe (same as applicant). Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Laminated sheet plastic material*, from Coshocton, Ohio, to points in Florida, Georgia, North Carolina, and South Carolina and *commodities falling within the partial exemption of section 203(b)(6) of the Act*, and *damaged and rejected shipments*, on return. NOTE: If a hearing is deemed necessary, applicant requests it be held at Miami, Fla.

No. MC 128161, filed May 2, 1966. Applicant: ECOFF TRUCKING, INC., Fortville, Ind. Applicant's representative: Robert C. Smith, 620 Illinois Building, Indianapolis, Ind., 46204. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Molded polystyrene foam*, from the plantsite of Brookside Corp., located at or near McCordsville, Ind., to points in Ohio, Michigan, Illinois, Kentucky, and St. Louis, Mo., and *damaged or returned shipments* on return, under a continuing contract or contracts with Brookside Corp., McCordsville, Ind. NOTE: Applicant holds contract carrier authority in MC 119934 and subs, therefore, dual operations may be involved. If a hearing is deemed necessary, applicant requests it be held at Indianapolis, Ind.

No. MC 128177, filed May 4, 1966. Applicant: ALFRED M. COOLEY, 389 Edith Street, Pontiac, Mich. Applicant's representative: Paul L. Merideth, 1591 Woodward, Post Office Box 1, Barbour Building, Bloomfield Hills, Mich. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities*, between Willow Run Airport, located in Wayne and Washtenaw Counties, Mich., and Detroit Metropolitan Wayne County Airport, located in Wayne County, Mich., on the one hand, and, on the other, Pontiac, Flint and Saginaw, Mich., restricted to traffic having an immediately prior or an immediately subsequent movement by aircraft. NOTE: If a hearing is deemed necessary, applicant requests it be held at Lansing, Mich.

No. MC 128178, filed May 6, 1966. Applicant: ROY B. HAMMETT, WILLIAM GILLIS HAMMETT, and ROY MOORE, doing business as ALASKA-TEXAS EXPRESS, Post Office Box 1101, Denton, Tex. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Machinery, equipment, materials, and supplies* used in, or in connection with, the discovery, development, production, refining, manufacture, processing, storage, transmission, and distribution of natural gas and petroleum and their products and byproducts; *lumber, lumber products and byproducts;* and *machinery, equipment, materials, and supplies* used in or in connection with the construction, operation, repair, servicing, maintenance, and dismantling of pipelines, including the stringing and picking up thereof, between points in Alaska, on the one hand, and, on the other, points in Louisiana, Alabama, Texas, Oklahoma, New Mexico, Kansas, Colorado, Wyoming, and Montana; and, (2) *commodities*, the transportation of which, because of size or weight, requires the use of special equipment, and *related machinery parts, and related contractors materials and supplies* when their transportation is incidental to the transportation by the carrier of commodities which, because of size or weight, require the use of special equipment, exclusive of those commodities specified in the paragraph next above, *mining machinery, materials, parts and supplies*, between points in Alaska, on the one hand, and, on the other, points in Louisiana, Alabama, Texas, Oklahoma, New Mexico, Kansas, Colorado, Wyoming, and Montana. NOTE: If a hearing is deemed necessary, applicant requests it be held at Dallas, Tex.

No. MC 128188, filed May 6, 1966. Applicant: DOMINION AUTO CARRIERS LTD., 12335 68th Street, Edmonton, Alberta, Canada. Applicant's representative: Walter N. Bieneman, Suite 1700, 1 Woodward Avenue, Detroit, Mich., 48226. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Automobiles, trucks, and buses*, as defined in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766, in initial and secondary movements, in driveaway and truckaway service, and *parts and accessories thereof*, moving at the same time and with the vehicles of which they are a part and on which they are to be installed, and (2) *farm type tractors* moving in mixed shipments with automobiles and trucks, and *parts and accessories thereof* moving at the same time and with the tractors of which they are a part and on which they are to be in-

stalled, from ports of entry on the international boundary line between the United States and Canada located in Washington, Idaho, and Montana, to points in Washington, Idaho, and Montana. Restriction: The proposed authority herein will be restricted to traffic moving in foreign commerce from foreign plantsites of Ford Motor Co. (including its foreign affiliates and subsidiaries). NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

MOTOR CARRIERS OF PASSENGERS

No. MC 12995, filed March 9, 1966. Applicant: MASON CITY TRAVEL AGENCY, INC., 215 North Federal Avenue, Mason City, Iowa. Applicant's representative: Clayton L. Wornson, 206 Brick and Tile Building, Mason City, Iowa. For a license (BMC 5) to engage in operations as a *broker* at Mason City, Iowa, in arranging for the transportation, in interstate or foreign commerce, of *passengers and their baggage*, as individuals or in groups, special and charter operations, in round trip all-expense tours, beginning and ending at Mason City, Iowa, and extending to points in the United States, including Alaska and Hawaii. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Omaha, Nebr., or Des Moines, Iowa.

No. MC 43267 (Sub-No. 13), filed May 2, 1966. Applicant: MOHAWK COACH LINES, INC., 149 Liberty Street, Little Ferry, N.J. Applicant's representative: Robert E. Goldstein, 8 West 40th Street, New York, N.Y., 10018. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Passengers and their baggage* in the same vehicle with passengers, (1) in one-way charter operations, beginning at points in Westchester County, N.Y., and ending at points in the United States, except Hawaii, and (2) in round trip charter operations beginning and ending at points in Westchester County, N.Y., and extending to points in the United States except Hawaii. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at New York, N.Y.

No. MC 119975 (Sub-No. 1), filed May 6, 1966. Applicant: F. A. KING, Rural Delivery No. 1, Box 224, Hopwood, Pa. Applicant's representative: Jerome Solomon, 1302 Grant Building, Pittsburgh, Pa., 15219. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Passengers and their baggage* in the same vehicle with passengers, in round-trip, charter operations, beginning and ending at points in Fayette County, Pa., and extending to points in Ohio, West Virginia, Maryland, New Jersey, New York, Delaware, Virginia, Indiana, and Michigan, and the District of Columbia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Uniontown, Pa.

APPLICATION OF FREIGHT FORWARDER

FREIGHT FORWARDER OF PROPERTY

No. FF-329 (Sub-No. 1) (BUTLER TRANSPORT COMPANY, INC.—Extension—Motor Vehicles), filed May 12, 1966. Applicant: BUTLER TRANSPORT COMPANY, INC., 4000 West Sample Street, South Bend, Ind. Applicant's representative: Charles Pieroni (same address as applicant). Authority sought under section 410 of the Interstate Commerce Act for a permit authorizing applicant to institute operation as a freight forwarder in interstate or foreign commerce, subject to part IV of the act, through use of the facilities of, railroad, water, or motor vehicle, in the transportation of: Motor vehicles of all types, including trucks with special bodies and equipment and including empty freight carrying trailers, between points in the United States, including Alaska and Hawaii.

APPLICATION OF WATER CARRIER

No. W-414 (Sub-No. 7) (THE OHIO RIVER COMPANY—EXTENSION—ARKANSAS RIVER (2)), filed May 16, 1966. Applicant: THE OHIO RIVER COMPANY, 451 Central Trust Building, Cincinnati, Ohio. Applicant's representatives: John Ladd Dean, 800 National City East, Sixth Building, Cleveland, Ohio, 44114, and J. Paul Toner (same address as applicant). Applicant seeks revision of its present certificate No. W-414 so as to authorize it to perform the following additional service over the routes and between the ports and points indicated: Operation in interstate or foreign commerce as a *common carrier* by nonself propelled vessels with the use of separate towing vessels in the transportation of commodities generally, and by towing vessels in the performance of general towage (a) between ports and points along the Verdigris River and the Arkansas River from Catoosa, Okla., to the confluence of the Arkansas River with the Mississippi River, including the Arkansas Post Canal and the Lower White River between the junction of the Arkansas Post Canal and the Arkansas River and the confluence of the Lower White River with the Mississippi River; and (b) between ports and points specified in (a) above, on the one hand, and, on the other, ports and points which applicant is presently authorized to serve pursuant to its certificate of public convenience and necessity issued August 17, 1964, in Docket No. W-414, as amended.

No. MC 111401 (Sub-No. 197), filed May 5, 1966. Applicant: GROENDYKE TRANSPORT, INC., 2510 Rock Island Boulevard, Post Office Box 632, Enid, Okla., 73701. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Liquefied petroleum gases*, in bulk, in tank vehicles, from Borger, Tex., to points in Santa Barbara, Ventura, Los Angeles, Orange, Riverside, San Bernardino, Kern, San Luis Obispo, San Diego, and Imperial Counties, Calif.

No. MC 123965 (Sub-No. 3), filed May 9, 1966. Applicant: KEAL DRIVE-AWAY COMPANY, a corporation, 836 East 73d Street, Cleveland, Ohio, 44103. Applicant's representative: J. C. Schriner, 11615 Detroit Avenue, Cleveland, Ohio, 44102. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *New trucks and new truck chassis*, in driveaway service, from Buffalo, N.Y., and Detroit, Mich., to points in the United States (except Alaska and Hawaii); and *refused or rejected shipments*, on return; restricted to new trucks and new truck chassis which have had prior movement from Brantford, Ontario, Canada.

No. MC 127141 (Sub-No. 2), filed May 4, 1966. Applicant: ERNEST FALEN, Route 6, Caldwell, Idaho. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Frozen foods, including frozen fruits, vegetables, juices, and melons*, from points in California, to La Grande, Oreg., and Walla Walla, Wash.

No. MC 127661 (Sub-No. 1), filed April 29, 1966. Applicant: ALFRED PRIEST AND DAVID PRIEST, a partnership, doing business as PRIEST TRANSPORT, 202 42d Avenue, SE., Calgary, Alberta, Canada. Applicant's representative: W. A. Galloway, 11th Floor, Guinness House, Calgary, Canada. Authority sought to operate as a *contract carrier*, by motor vehicle, over regular routes, transporting: *Steel ceiling trusses and their component parts for the construction of prefabricated industrial buildings*, (1) between Spokane, Wash., and the port of entry on the international boundary line between the United States and Canada located at Eastport, Idaho; from Spokane over U.S. Highway 10 to Coeur d'Alene, Idaho, thence over U.S. Highway 95–10A to Sand Point, Idaho, thence over U.S. Highway 95–2 to junction U.S. Highway 95, and thence over U.S. Highway 95 to Eastport, and return over the same route, serving no intermediate points, and (2) between Spokane, Wash., and the port of entry on the international boundary line between the United States and Canada located at Oroville, Wash.; from Spokane over U.S. Highway 2 to Wilbur, Wash., thence over Washington Highway 174 to Grand Coulee, Wash., thence over Washington Highway 155 to Omak, Wash., and thence over U.S. Highway 97 to Oroville, and return over the same route, serving no intermediate points.

No. MC 128030 (Sub-No. 21), filed May 6, 1966. Applicant: THE STOUT TRUCKING CO., INC., Box 167, Rural Route No. 1, Urbana, Ill. Applicant's representative: W. L. Jordan, 201–2 Merchants Savings Building, 7 South Sixth Street, Terre Haute, Ind. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Malt beverages*, in containers, from Milwaukee, Wis., to

Effingham, Ill. NOTE: Common control may be involved.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 66-5725; Filed May 25, 1966; 8:45 a.m.]

## FOURTH SECTION APPLICATIONS FOR RELIEF

MAY 23, 1966.

Protests to the granting of an application must be prepared in accordance with Rule 1.40 of the general rules of practice (49 CFR 1.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 40489—*Substituted service—T&P and Consolidated Copperstate Lines.* Filed by J. D. Hughett, agent (No. 83), for interested carriers. Rates on property loaded in trailers and transported on railroad flatcars, between El Paso, Tex., on the one hand, and Dallas and Fort Worth, Tex., on the other, on traffic originating at or destined to such points or points beyond as described in the application.

Grounds for relief—Motortruck competition.

Tariff—Supplement 10 to J. D. Hughett, agent, tariff MF-ICC 403.

FSA No. 40490—*Phthalic anhydride to Kingsport, Tenn.* Filed by Traffic Executive Association-Eastern Railroads, agent (E.R. No. 2842), for interested rail carriers. Rates on phthalic anhydride, in tank carloads, from Bridgeport and Woodbridge, N.J., also Institute, W. Va., to Kingsport, Tenn., and specified points in Virginia.

Grounds for relief—Market competition.

Tariffs—Supplements 199 and 139 to Traffic Executive Association-Eastern Railroads, agent, tariffs ICC C-102 and C-334, respectively.

FSA No. 40491—*Soda ash to points in Tennessee.* Filed by Traffic Executive Association-Eastern Railroads, agent (E.R. No. 2843), for interested rail carriers. Rates on soda ash, in bulk, or in bags, in carloads, from specified points in Michigan and Ohio, to Frisco, Greenland, and Kingsport, Tenn.

Grounds for relief—Market competition.

Tariff—Supplement 199 to Traffic Executive Association-Eastern Railroads, agent, tariff ICC C-102.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 66-5824; Filed, May 25, 1966; 8:52 a.m.]

[3d Rev. S.O. 562; Pfahler's ICC Order 202, Amdt. 1]

## SOO LINE RAILROAD CO.

### Diverting or Rerouting of Traffic; Expiration Date

Upon further consideration of Pfahler's ICC Order No. 202 (Soo Line Railroad Co.) and good cause appearing therefor:

*It is ordered*, That:

Pfahler's ICC Order No. 202 be, and it is hereby amended by substituting the following paragraph (g) for paragraph (g) thereof:

(g) *Expiration date.* This order shall expire at 11:59 p.m., August 31, 1966, unless otherwise modified, changed or suspended.

*It is further ordered*, That this amendment shall become effective at 11:59 p.m., May 31, 1966, and that this order shall be served upon the Association of American Railroads, Car Service Division, as agent of all railroads subscribing to the car service and per diem agreement under the terms of that agreement, and by filing it with the Director, Office of the Federal Register.

Issued at Washington, D.C., May 23, 1966.

INTERSTATE COMMERCE COMMISSION,

[SEAL] R. D. PFAHLER, *Agent.*

[F.R. Doc. 66-5825; Filed, May 25, 1966; 8:52 a.m.]

[Notice 187]

## MOTOR CARRIER TEMPORARY AUTHORITY APPLICATIONS

MAY 23, 1966.

The following are notices of filing of applications for temporary authority under section 210a(a) of the Interstate Commerce Act provided for under the new rules in Ex Parte No. MC 67 (49 CFR Part 240), published in the FEDERAL REGISTER, issue of April 27, 1965, effective July 1, 1965. These rules provide that protests to the granting of an application must be filed with the field official named in the FEDERAL REGISTER publication, within 15 calendar days after the date notice of the filing of the application is published in the FEDERAL REGISTER. One copy of such protest must be served on the applicant, or its authorized representative, if any, and the protest must certify that such service has been made. The protest must be specific as to the service which such protestant can and will offer, and must consist of a signed original and six copies.

A copy of the application is on file, and can be examined, at the Office of the Secretary, Interstate Commerce Commission, Washington, D.C., and also in the field office to which protests are to be transmitted.

MOTOR CARRIERS OF PROPERTY

No. MC 21866 (Sub-No. 58 TA), filed May 19, 1966. Applicant: WEST MOTOR FREIGHT, INC., 740 South Reading Avenue, Boyertown, Pa., 19512. Applicant's representative: Paul Coyle, 5631 Utah Avenue NW., Washington, D.C. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Margarine*, between Coatesville, Pa., on the one hand, and, on the other, points in Connecticut, Delaware, Maryland, Massachusetts, New Jersey, New York, Ohio, Rhode Island, Virginia, West Virginia, and the District of Columbia, from points in Illinois, Indiana, and Michigan, to Coatesville, Pa., with no transportation for compensation on return except as otherwise authorized; Restriction: The authorities granted above shall not be joined so as to render a through service between points in the States specified in the first service paragraph above, via Coatesville, Pa., as a gateway; *materials and supplies*, used in the packaging or repackaging of margarine, from points in Connecticut, Delaware, Illinois, Indiana, Maryland, Massachusetts, Michigan, New Jersey, New York, Ohio, Rhode Island, Virginia, West Virginia, and the District of Columbia, to Coatesville, Pa., with no transportation for compensation on return except as otherwise authorized, for 150 days. Supporting shipper: Dairy Sales Corp., Post Office Box 388, Coatesville, Pa. Send protests to: Ross A. Davis, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 900 U.S. Customhouse, Philadelphia, Pa., 19106.

No. MC 22254 (Sub-No. 48 TA), filed May 19, 1966. Applicant: TRANS-AMERICAN VAN SERVICE, INC., 7540 South Western Avenue, Chicago, Ill., 60620. Applicant's representative: Cohn & Colby, 1 North La Salle Street, Chicago, Ill. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Uncrated self-propelled power sweepers* (other than self-propelled street sweepers, uncrated) *and accessories and parts therefor* when accompanying said vehicle, between Pomona, Calif., and points in the United States, for 180 days. Supporting shipper: Wayne Manufacturing Co., 1201 East Lexington Street, Pomona, Calif. Send protests to: Charles J. Kudelka, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, Room 1086, U.S. Courthouse and Federal Office Building, 219 South Dearborn Street, Chicago, Ill., 60604.

No. MC 42487 (Sub-No. 651 TA), filed May 19, 1966. Applicant: CONSOLIDATED FREIGHTWAYS CORPORATION OF DELAWARE, 175 Linfield Drive, Menlo Park, Calif., 94025. Applicant's representative: V. S. Tyler (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Weed killing compounds*, liquid, in bulk, in tank vehicles, from Richmond, Calif., to Dayton, N.J., for 150 days. Supporting shipper: Stauffer Chemical Co., 636 California Street, San Francisco, Calif. Send protests to: William R. Murdoch, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 450 Golden Gate Avenue, Box 36004, San Francisco, Calif., 94102.

No. MC 45736 (Sub-No. 26 TA), filed May 19, 1966. Applicant: GUIGNARD FREIGHT LINES, INC., Highway 21, North, Post Office Box 26067, Charlotte, N.C., 28201. Applicant's representative: W. D. Turner, Sr., Post Office Box 3661, Charlotte, N.C., 28203. Authority sought

to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Lubricating oil and greases*, from Farmers Valley and Emlenton, Pa., to points in North Carolina and South Carolina, for 180 days. Supporting shipper: Quaker State Oil Refining Corp., Oil City, Pa., 16301. Send protests to: Jack K. Huff, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, Room 206, 327 North Tryon Street, Charlotte, N.C., 28202.

No. MC 52709 (Sub-No. 285 TA), filed May 19, 1966. Applicant: RINGSBY TRUCK LINES, INC., 3201 Ringsby Court, Denver, Colo., 80216. Applicant's representative: Eugene Hamilton (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *Classes A and B explosives*, between Denver, Colo., on the one hand, and, on the other, Rifle and Craig, Colo., from Denver over U.S. Highway 6 to Rifle (also from Denver over U.S. Highway 40 to its junction with U.S. Highway 6 near Idaho Springs, Colo., thence over U.S. Highway 6 to Rifle) and return over the same routes, serving no intermediate points; from Denver over U.S. Highway 40 to Craig (also from Denver over U.S. Highway 6 to its junction with U.S. Highway 40 near Idaho Springs, Colo., thence over U.S. Highway 40 to Craig) and return over the same routes, serving no intermediate points; applicant will tack the authority herein sought with its existing authority at Craig, Rifle, and Denver, and at Denver will interline with connecting carriers, for 180 days. Supporting shippers: Red Ball Motor Freight, Inc., Post Office Box 16062, Denver, Colo., 80216; The Golden Mill, Golden, Colo.; West Nebraska Express, Inc., Box 350, Scottsbluff, Nebr.; Darworth, Inc., Post Office Box 308, Simsbury, Conn.; Buckley Powder Co., 4701 Jackson Street, Denver, Colo., 80216. Send protests to: Luther H. Oldham, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce, Commission, 2022 Federal Building, 1961 Stout Street, Denver, Colo., 80202.

No. MC 64932 (Sub-No. 413 TA), filed May 19, 1966. Applicant: ROGERS CARTAGE CO., 1439 West 103d Street, Chicago, Ill., 60643. Applicant's representative: Axelrod, Goodman & Steiner, 39 South La Salle Street, Chicago, Ill., 60603. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Plastics, synthetic*, other than liquid, in bulk, in tank trucks and hopper trucks, from Delaware City, Del., to points in Illinois, Indiana, Michigan, Missouri, Ohio, and Wisconsin, for 180 days. Supporting shipper: Stauffer Chemical Co., 380 Madison Avenue, New York 17, N.Y. Send protests to: Charles J. Kudelka, District Supervisor, Bureau of Operations and Compliance, Room 1086, Interstate Commerce Commission, U.S. Courthouse and Federal Office Building, 219 South Dearborn Street, Chicago, Ill., 60604.

No. MC 78786 (Sub-No. 262 TA), filed May 19, 1966. Applicant: PACIFIC MOTOR TRUCKING COMPANY, 9 Main Street, San Francisco, Calif., 94105. Applicant's representative: R. K. Booth (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Class A and class B explosives*, from Hawthorne, Nev., to Concord and Port Chicago, Calif., for 150 days. Supporting shipper: Military Traffic Management and Terminal Service, Washington, D.C. Send protests to: William R. Murdoch, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 450 Golden Gate Avenue, Box 36004, San Francisco, Calif., 94102.

No. MC 108207 (Sub-No. 192 TA), filed May 19, 1966. Applicant: FROZEN FOOD EXPRESS, 318 Cadiz Street, Post Office Box 5888, Dallas, Tex., 75222. Applicant's representative: L. M. McLean (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Human blood plasma*, from Florence, Ariz., to Berkeley, Calif., for 150 days. Supporting shipper: Cutter Laboratories, Fourth and Parker Streets, Berkeley 10, Calif. Send protests to: E. K. Willis, Jr., District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 513 Thomas Building, 1314 Wood Street, Dallas, Tex., 75202.

No. MC 115955 (Sub-No. 8 TA), filed May 19, 1966. Applicant: SCARI'S DELIVERY SERVICE, INC., 409 North Harrison Street, Wilmington, Del. Applicant's representative: Harry J. Scari (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Dry ice*, less truck load and truck load, from points in the commercial zone of Wilmington, Del., to points in the commercial zone of Dover, Del., for 180 days. Supporting shipper: International Latex Corp., Playtex Park, Dover, Del., 19901 (Frank M. Ryan, traffic manager). Send protests to: Paul J. Lowry, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 206 Post Office Building, Salisbury, Md., 21801.

No. MC 124078 (Sub-No. 224 TA), filed May 19, 1966. Applicant: SCHWERMAN TRUCKING CO., 611 South 28th Street, Milwaukee, Wis., 53246. Applicant's representative: Richard H. Prevette (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Rock dust*, in bulk, from Peebles, Ohio, to points in Boyd and Greenup Counties, Ky. (except Ashland, Ky.), for 150 days. Supporting shipper: Ashland Asphalt Paving Co., Box 1108, Ashland, Ky., 41101 (William R. Sparks, general manager). Send protests to: W. F. Sibbald, Jr., District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 108 West Wells Street, Room 511, Milwaukee, Wis., 53203.

No. MC 128058 (Sub-No. 2 TA), filed May 19, 1966. Applicant: LAUREL HILL TRUCKING COMPANY, 614 New County Road, Secaucus, N.J., 07094. Applicant's representative: George A. Olsen, 69 Tonnele Avenue, Jersey City, N.J., 07306. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except commodities in bulk), between Dover, Del.; McGuire Air Force Base, N.J.; Albany, N.Y.; Boston, Mass.; Charleston, S.C.; Norfolk, Va.; Washington, D.C.; Kennedy International Airport, N.Y.; La Guardia Airport, N.Y.; Newark Airport, N.J.; Philadelphia International Airport, Pa.; Baltimore, Md.; Dulles Airport, Va., for 150 days. Supporting shipper: Trans World Airlines, Inc., 605 Third Avenue, New York, N.Y., 10016. Send protests to: Walter J. Grossman, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 1060 Broad Street, Room 363, Newark, N.J., 07102.

No. MC 128143 (Sub-No. 1 TA), filed May 19, 1966. Applicant: LOUIS J. VALLAS and ALBERT L. SERAFINO, JR., a partnership, doing business as GEMINI TRANSPORTATION CO., Post Office Box 145, Walnut Creek, Calif., 94597. Applicant's representative: C. R. Nickerson, 9 First Street, San Francisco, Calif. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except commodities of unusual value, classes A and B explosives, household goods as defined by the Commission in 17 M.C.C. 467 commodities in bulk, commodities requiring special equipment and commodities injurious or contaminating to other loading), between San Francisco International Airport, San Francisco, Calif., on the one hand, and points located in Contra Costa County, Calif., on the other, on traffic having a prior or subsequent movement by air carriers, for 150 days. Supporting shippers: Aerojet General, Post Office Box 77, San Ramon, Calif., 94583; Diagnostic Associates, Post Office Box 607, Walnut Creek, Calif., 94597; Eldorado Electronics, 601 Chalomar Road, Concord, Calif., 94520; Vacuum Research Co., 3100 Crow Canyon Road, San Ramon, Calif., 94583. Send protests to: H. O. Gaston, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 450 Golden Gate Avenue, Box 36004, San Francisco, Calif., 94102.

No. MC 128202 TA, filed May 19, 1966. Applicant: HARBOR SEAFOODS COMPANY, INC., Box 191, Wrangell, Alaska, 99929. Applicant's representative: Ben Engdal (same address as above). Authority sought to operate as a *contract carrier*, by motor vehicle, over regular routes, transporting: *General commodities*, between Wrangell, Alaska, and Seattle and Tacoma, Wash., for 90 days. Supporting shipper: City Market, Inc., Post Office Box 140, Wrangell, Alaska, 99929. Send protests to: Hugh H. Chaffee, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, Post Office Box 1532, Anchorage, Alaska, 99501.

No. MC 128203 TA, filed May 19, 1966. Applicant: INLAND TRANSPORTATION CO., INC., 6737 Corson Avenue South, Seattle, Wash., 98108. Applicant's representative: Steve Cole (same address as above). Authority sought to

operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: (1) *Woodpulp*, in bales and rolls, from Cosmopolis, Wash., to Longview, Wash., and (2) *fuel oil*, from Longview, Wash., to Cosmopolis, Wash., for 180 days. Supporting shipper: Weyerhaeuser Co., Traffic Department, Box T, Tacoma, Wash., 98401, Attention: R. V. Caldwell, manager, operations. Send protests to: E. J. Casey, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 6130 Arcade Building, Seattle, Wash., 98101.

No. MC 128204 TA, filed May 19, 1966. Applicant: RICHLAND HARDWOODS, INC., Box 134, Richland Center, Wis., 53581. Applicant's representative: Claude J. Jasper, 111 South Fairchild Street, Madison, Wis., 53703. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Concrete slat feeding floors and concrete beams in connection therewith*, from Hollandale, Minn., to points in Indiana, Illinois, Iowa, Ohio, Nebraska, Michigan, South Dakota, Wisconsin, and Missouri, for 180 days. Supporting shipper: Dwight and Walter Karsjen, doing business as Karsjens Bros., Hollandale, Minn. Send protests to: C. W. Buckner, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 214 North Hamilton Street, Madison, Wis., 53703.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 66-5826; Filed, May 25, 1966; 8:53 a.m.]

---

[Notice 926]

## APPLICATIONS UNDER SECTIONS 5 AND 210a(b)

MAY 23, 1966.

The following applications are governed by the Interstate Commerce Commission's special rules governing notice of filing of applications by motor carriers of property or passengers under sections 5(a) and 210a(b), of the Interstate Commerce Act, and certain other proceedings with respect thereto. (49 CFR 1.240).

MOTOR CARRIER OF PROPERTY

No. MC-F-9430. Authority sought for purchase by WAREHOUSE TRANSPORT, INC., 211 Plainfield Street, Springfield, Mass., of the operating rights and property of EDWARD FUNARO, 1350 Ridge Road, North Haven, Conn., and for acquisition by JOHN J. McCARTHY, also of Springfield, Mass., of control of such rights and property through the purchase. Applicants' attorney and representative: Francis E. Barrett, Jr., Investors Building, 536 Granite Street, Braintree, Mass., 02184, and Robert DeMatteis, 1414 Dixwell Avenue, Hamden, Conn. Operating rights sought to be transferred: *Such merchandise* as is dealt in by wholesale, retail, and chain grocery and food business houses, and in connection therewith, *equipment, materials*, and *supplies*, used in the conduct of such business, as a *contract carrier*, over irregular routes, between certain specified points in Connecticut, Massachusetts, New Hampshire, and Vermont, and between points in the above territory, on the one hand, and, on the other, Boston and Lawrence, Mass., Providence, R.I., and New York and Albany, N.Y. Vendee holds no authority from this Commission. However, its controlling stockholder also controls McCARTHY TRANSPORT, INC., Post Office Box 1658, Portland, Maine, which is authorized to operate as a *contract carrier* in Maine, Vermont, and New Hampshire. Application has been filed for temporary authority under section 210a(b).

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 66-5827; Filed, May 25, 1966; 8:53 a.m.]

# DEPARTMENT OF COMMERCE

### Maritime Administration

## AMERICAN EXPORT ISBRANDTSEN LINES, INC.

### Notice of Application for Approval of Certain Cruises

Notice is hereby given that American Export Isbrandtsen Lines, Inc., acting pursuant to Public Law 87-45, has applied to the Maritime Administration for approval of the following cruises by the SS *Atlantic:*

*1967 cruise dates and itinerary*

January 4-7—New York, Freeport (Bahamas), Port Everglades.
January 8-13—Port Everglades, Kingston, Nassau, Port Everglades.
January 13-20—Port Everglades, St. Thomas, San Juan, Port Everglades.
January 20-27—Port Everglades, St. Thomas, San Juan, Port Everglades.
January 27-February 2—Port Everglades, Port-au-Prince, Kingston, Nassau, Port Everglades.
February 3-10—Port Everglades, St. Thomas, San Juan, Port Everglades.
February 10-17—Port Everglades, St. Thomas, San Juan, Port Everglades.
February 17-24—Port Everglades, St. Thomas, San Juan, Port Everglades.
February 24-March 3—Port Everglades, St. Thomas, San Juan, Port Everglades.
March 3-10—Port Everglades, St. Thomas, San Juan, Port Everglades.
March 10-17—Port Everglades, St. Thomas, San Juan, Port Everglades.
March 17-20—Port Everglades, Freeport (Bahamas), New York.

Any person, firm or corporation having any interest, within the meaning of Public Law 87-45, in the foregoing who desires to offer data, views and arguments should submit the same in writing, in triplicate, to the Secretary, Maritime Subsidy Board, Washington, D.C., 20235, by the close of business on June 10, 1966. In the event an opportunity to present oral argument is also desired, specific reason for such request should also be included. The Maritime Subsidy Board will consider these comments and views and take such action with respect thereto as in its discretion it deems warranted.

By order of the Maritime Subsidy Board.

JAMES S. DAWSON, Jr., *Secretary.*

MAY 23, 1966.

[F.R. Doc. 66-5792; Filed, May 25, 1966; 8:49 a.m.]

# DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

### Food and Drug Administration

## CONTINENTAL CHEMICAL CO.

### Notice of Filing of Petition for Food Additives

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409(b)(5), 72 Stat. 1786; 21 U.S.C. 348(b)(5)), notice is given that a petition (FAP 2A0544) has been filed by Continental Chemical Co., 2175 Acoma Street, North Sacramento, Calif., 95815, proposing an amendment to § 121.1091 *Chemicals used in washing fruits and vegetables* to provide for the safe use of sodium mono- and dimethyl naphthalene sulfonates (mol. wt. 245-260) in the washing or to assist in the lye peeling of fruits and vegetables at a level not to exceed 0.2 percent in the wash water.

Dated: May 18, 1966.

J. K. KIRK, *Assistant Commissioner for Operations.*

[F.R. Doc. 66-5813; Filed, May 25, 1966; 8:51 a.m.]

---

## FMC CORP.

### Notice of Filing of Petitions for Pesticide and Food Additive Binapacryl

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (secs. 408(d)(1), 409(b)(5), 68 Stat. 512, 72 Stat. 1786; 21 U.S.C. 346a(d)(1), 348(b)(5)), notice is given that a petition (PP 6F0487) has been filed by FMC Corp., 100 Niagara Street, Middleport, N.Y., 14105, proposing the establishment of a pesticide tolerance of 1.5 parts per million for residues of the insecticide and fungicide binapacryl (2-*sec*-butyl-4,6-dinitrophenyl 3-methyl-2-butenoate) in or on the raw agricultural commodities apples, cucumbers, grapes, melons, nectarines, peaches, pears, plums (fresh prunes), strawberries, summer squash, and winter squash.

Notice is also given that FMC Corp. has filed a related petition (FAP 6H2021) proposing the establishment of a food additive tolerance of 3 parts per million for residues of binapacryl in dried peaches. These residues result from carryover and concentration of residues after application of binapacryl to growing peaches.

The analytical method proposed in these petitions for determining residues of binapacryl is extraction with benzene or chloroform and evaporation to dryness, followed by dissolving the residues in aqueous pyridine and measuring the optical density at 430 millimicrons.

Dated: May 18, 1966.

J. K. KIRK,
*Assistant Commissioner for Operations.*

[F.R. Doc. 66-5814; Filed, May 25, 1966; 8:51 a.m.]

## Office of Education

## NATIONAL TECHNICAL INSTITUTE FOR THE DEAF

### Determination of Nationally Recognized Accrediting Agencies or Associations

In accordance with section 3(b)(6), Public Law 89-36, 79 Stat. 125 (National Technical Institute for the Deaf Act), the following nationally recognized accrediting agencies or associations have been determined by the Commissioner to be reliable authority as to the quality of training offered by institutions of higher education:

I. REGIONAL

Middle States Association of Colleges and Secondary Schools, 225 Broadway, New York, N.Y., 10007.
New England Association of Colleges and Secondary Schools, 50 Beacon Street, Boston, Mass., 02108.
North Central Association of Colleges and Secondary Schools, 5454 South Shore Drive, Chicago, Ill., 60615.
Northwest Association of Secondary and Higher Schools, M 302 Miller Hall, University of Washington, Seattle, Wash., 98105.
Southern Association of Colleges and Schools, 795 Peachtree Street NE., Room 592, Atlanta, Ga., 30308.
Western Association of Schools and Colleges, Mills College, Oakland, Calif., 94613.

II. PROFESSIONAL

American Association of Nurse Anesthetists, Suite 3010, Prudential Plaza, Chicago, Ill., 60601.
National Architectural Accrediting Board, 521 18th Street NW., Washington, D.C., 20006.
Accrediting Association of Bible Colleges, Box 543, Wheaton, Ill., 60187.
Accrediting Commission for Business Schools, Schools Center Building, Room 1404, 5057 Woodward Avenue, Detroit, Mich., 48202.
The American Association of Collegiate Schools of Business, 101 North Skinker Boulevard, Station 24, St. Louis, Mo., 63130.
American Chemical Society, Committee on Professional Training, 343 State Street, Rochester, N.Y., 14604.
American Dental Association, Council on Dental Education, 222 East Superior Street, Chicago, Ill., 60611.
Engineers' Council for Professional Development, 345 East 47th Street, New York, N.Y., 10017.
Society of American Foresters, 1010 16th Street NW., Washington, D.C., 20036.
American Council on Education for Journalism, Indiana University, Department of Journalism, Ernie Pyle Hall, Bloomington, Ind., 47405.
American Bar Association, Section of Legal Education and Admissions to the Bar, 513 Liberty Bank Building, Oklahoma City, Okla., 73100.
American Library Association, Committee on Accreditation, 50 East Huron Street, Chicago, Ill., 60611.
*Liaison Committee on Medical Education, 2530 Ridge Avenue, Evanston, Ill., 60201.
**Liaison Committee on Medical Education, 535 North Dearborn Street, Chicago, Ill., 60610.
Council on Medical Education of the American Medical Association, 535 North Dearborn Street, Chicago, Ill., 60610.
National Association of Schools of Music, Room 305, 1501 New Hampshire Avenue, NW., Washington, D.C., 20036.
National League for Nursing, Inc., 10 Columbus Circle, New York, N.Y., 10019.
American Optometric Association, Council on Optometric Education, 7000 Chippewa Street, St. Louis, Mo., 63119.
American Osteopathic Association, 212 East Ohio Street, Chicago, Ill., 60611.
American Council on Pharmaceutical Education, 77 West Washington Street, Chicago, Ill., 60602.
American Podiatry Association, Council on Education, 3301 16th Street NW., Washington, D.C., 20010.
The American Public Health Association, Inc., 1790 Broadway, New York, N.Y., 10019.
Council on Social Work Education, 345 East 46th Street, New York, N.Y., 10017.
National Council for Accreditation of Teacher Education, Mills Building, 1750 Pennsylvania Avenue NW., Washington, D.C., 20006.
The American Association of Theological Schools, 934 Third National Building, Dayton, Ohio, 45402.
American Veterinary Medical Association, Council on Education, 600 South Michigan Avenue, Chicago, Ill., 60605.

III. OTHER

New York Board of Regents (for higher institutions within New York State), The University of the State of New York, The State Education Department, Albany, N.Y., 12201.

HAROLD HOWE, II,
*U.S. Commissioner of Education.*

MAY 20, 1966.

[F.R. Doc. 66-5828; Filed, May 25, 1966; 8:53 a.m.]

# DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT

## Office of the Secretary

## ACTING REGIONAL ADMINISTRATOR, REGION I (NEW YORK)

### Designation

Melvin Stein, Regional Counsel, Region I (New York), is hereby designated to serve as Acting Regional Administrator, Region I (New York), during the present vacancy in the position of Regional Administrator, Region I, with all the power and authority of the Regional Administrator.

In the absence of Melvin Stein, the officers appointed to the following positions are hereby designated to serve as Acting Regional Administrator, Region I, with all the power and authority of the Regional Administrator, Region I, provided that no officer is authorized to serve as Acting Regional Administrator unless all other officers whose titles precede his in this designation are unable to act by reason of absence:

1. Regional Director of Urban Renewal.
2. Deputy Regional Director of Community Facilities.
3. Deputy Regional Director of Urban Renewal.

(79 Stat. 670, 5 U.S.C. 624d(d))

*Effective date.* This designation shall be effective as of May 21, 1966.

ROBERT C. WEAVER,
*Secretary of Housing and Urban Development.*

[F.R. Doc. 66-5815; Filed, May 25, 1966; 8:52 a.m.]

*Even years.
**Odd years.

# CIVIL AERONAUTICS BOARD

## DRAKE MOTOR LINES, INC., AND SHULMAN, INC.

### Application for Approval of Certain Control Relationships

Notice is hereby given, pursuant to the statutory requirements of section 408 (b) of the Federal Aviation Act of 1958, as amended, that the undersigned intends to issue the attached order under delegated authority. Interested persons are hereby afforded a period of 15 days from the date of service within which to file comments or request a hearing with respect to the action proposed in the order.

Dated at Washington, D.C., on May 20, 1966.

J. W. ROSENTHAL,
*Director,*
*Bureau of Operating Rights.*

ORDER APPROVING CONTROL RELATIONSHIPS

Issued under delegated authority.

Application of Drake Motor Lines, Inc. and Shulman, Inc., Docket 17246; for approval of certain control relationships under section 408 of the Federal Aviation Act of 1958, as amended.

By order E-20793, May 6, 1964, in Dockets 14515 and 14799 the Board, acting pursuant to section 408 of the Federal Aviation Act of 1958, as amended (the Act) approved, among other things, the control by Harry Shulman, Martin Shulman, Anna Shulman, and the Estate of Benjamin Shulman of Drake Motor Lines, Inc. (Drake), a common carrier by motor vehicle, and certain other companies. Specifically, Drake controlled (1) Orient-American Forwarding Co., a Japanese corporation engaged in forwarding shipments inbound to the United States, and (2) Shulman, Inc. of Massachusetts, a common carrier by motor vehicle (Shulman, (Mass.)) which, in turn, controlled Shulman, Inc. of Delaware, a domestic and international air freight forwarder (Shulman, (Del.)).

Thereafter, by Order E-22705 of September 29, 1965, the Board approved, in Docket 16327, pursuant to section 408, the ownership by Martin and Harry Shulman of all the outstanding stock of Orient-American Forwarding Co. (HK) Ltd. (Orient), a Hong Kong corporation, while they control

Shulman (Del.), i.e., through Drake and Shulman (Mass.); and the transfer of such stock interest in Orient to Drake. In both proceedings certain interlocking relationships involving various individuals were also approved under section 409 of the Act.

By application filed April 20, 1966, Drake and Shulman (Del.) request that the Board determine that it has no jurisdiction or, in the alternative, if the Board determines that it has jurisdiction, that it enter an order approving the acquisition by Drake of that portion of the operating authority contained in certificate of public convenience and necessity No. MC–1980 issued by the Interstate Commerce Commission to Long Island Delivery Co., Inc. (Long Island), which authorizes the transportation of general commodities between New York, N.Y., on the one hand, and points in Bergen, Hudson, Essex, and parts of Passaic and Union Counties, N.J., on the other.[1] The applicants state that Drake is not purchasing any other properties of Long Island and Long Island will continue to operate as a separate and distinct independent motor carrier.

The Interstate Commerce Commission (ICC), on April 11, 1966, approved the acquisition by Drake of Long Island's operating authorization identified as No. MC–1980. Such authorization permits motor common carriage of general commodities, except class A and B explosives, dangerous chemicals, livestock, household goods, as defined by ICC, commodities in bulk, and those requiring special equipment, over irregular routes within the area briefly defined above.

The applicants submit that section 408 does not require approval of the Board in order to acquire the Long Island certificate; that the transaction does not involve the merger or consolidation of two air carriers or a case where an air carrier seeks to acquire control of another air carrier or of a person engaged in any other phase of aeronautics or of an instance of an air carrier acquiring control of another carrier; and that the Board therefore should determine that it has no jurisdiction and enter an order dismissing the application. If, on the other hand, the Board determines that it has jurisdiction over the transaction, the applicants submit that under section 101(3) of the Act the Board may exempt the applicants from the hearing and other requirements of section 408 upon a finding that such relief is in the public interest.

As to the public interest, the applicants submit that no other air carrier will be adversely affected by the transaction; that the public will be benefited from the expanded and improved service which Drake will be able to offer the public in connection with air freight forwarder service provided by Shulman (Del.); and that with the use of the Long Island certificate Drake will be able to pick up and deliver local surface traffic for its own account, as well as surface and air freight forwarder traffic handled by Shulman (Del.).

No adverse comments or requests for a hearing have been received.

Notice of intent to dispose of the application without a hearing has been published in the FEDERAL REGISTER, and a copy of such notice has been furnished by the Board to the Attorney General not later than the day following the date of such publication, both in accordance with the requirements of section 408 of the Act.

Upon consideration of the application, it is concluded that the transaction proposed herein involves the acquisition by a person (Drake) controlling an air carrier (Shulman (Del.)) of a part of the operating rights of a common carrier (Long Island) within the meaning of section 408 of the Act, and that Board approval of the transaction may be required.[2] Since under section 101(3) of the Act the Board may relieve only indirect air carriers from the provisions of the Act, we have concluded that it is appropriate to deny the applicants' request for an exemption. It has been further concluded that such relationships do not affect the control of an air carrier directly engaged in the operation of aircraft in air transportation, do not result in creating a monopoly and do not restrain competition or jeopardize another air carrier not a party to the acquisition of control. Furthermore, no person disclosing a substantial interest in this proceeding is currently requesting a hearing, and it is found that the public interest does not require a hearing. In this instance it appears that the ICC operating authorization issued to Long Island is within the acceptable pickup and delivery zone surrounding New York City and that because of its limited operating authorization, it does not appear that conflicts of interest would arise between air and surface operations which would result in diversion of traffic from air to surface transportation and deprive the air freight forwarder of sufficient incentive to conscientiously promote and develop the movement of air freight.[3] However, should services under the Long Island certificate to be acquired by Drake be expanded, new issues would be raised which could only be resolved upon the filing of a further application for prior approval by the Board. In this posture it appears that approval of the control relationships, to the extent that such approval is necessary pursuant to section 408, would not be inconsistent with the public interest provided that such approval is made effective only so long as the operation of motor vehicles by Drake pursuant to the Long Island certificate is limited to the area defined in ICC Operating Authorization No. MC–1980 as in effect on the date hereof.

Pursuant to authority duly delegated by the Board in the Board's Regulations 14 CFR 385.13, it is found that the foregoing control relationships should be approved under section 408(b) of the Act, without a hearing.

*Accordingly, it is ordered:*

1. That the proposed acquisition of Long Island by Drake, which controls Shulman (Del.), be and it hereby is approved;

2. That the approval herein shall be effective only so long as the operation of motor vehicles by Drake pursuant to the Long Island operating authorization is confined to the area defined in ICC Operating Authorization No. MC–1980 as in effect on the date hereof; and

3. That, to the extent not granted herein, the application in Docket 17246 be and it hereby is denied.

Persons entitled to petition the Board for review of this order pursuant to the Board's Regulations, 14 CFR 385.50, may file such petitions within five days after the date of service of this order.

This order shall be effective and become the action of the Civil Aeronautics Board upon expiration of the above period unless within such period a petition for review thereof is filed, or the Board gives notice that it will review this order on its own motion.

BY: J. W. ROSENTHAL,
*Director, Bureau of Operating Rights.*

[SEAL] HAROLD R. SANDERSON,
*Secretary.*

[F.R. Doc. 66–5802; Filed, May 25, 1966; 8:50 a.m.]

[1] These points are within a radius of approximately 35 miles from New York City.

[2] Cf. Air Freight Forwarder Case, 9 CAB 473, pp. 504–505.

[3] Cf. Telstar Air Freight, Inc., Order E–22479, July 27, 1965.

[Docket 16765]

## HAWAIIAN AIRLINES, INC. AND SKYWAY AIR CARGO, INC.

### Notice of Postponement of Hearing

Notice is hereby given, pursuant to the provisions of the Federal Aviation Act of 1958, as amended, that hearing in the above-entitled proceeding now assigned to be held June 1, 1966, is postponed to June 16, 1966, at 10 a.m., e.d.s.t., in Room 213, Universal Building, 1825 Connecticut Avenue NW., Washington, D.C.

Dated at Washington, D.C., May 23, 1966.

[SEAL] BARRON FREDRICKS,
*Hearing Examiner.*

[F.R. Doc. 66–5803; Filed, May 25, 1966; 8:50 a.m.]

# FEDERAL AVIATION AGENCY

## REGIONAL OFFICE, CENTRAL REGION, KANSAS CITY, MO.

### Notice of Change of Address

Notice is hereby given that on June 3, 1966, the Regional Office, Central Region, at Kansas City, Mo., will move from 4825 Troost Avenue to the Federal Building, 601 East 12th Street. Central Region serves the aviation public in 12 states: Illinois, Indiana, Iowa, Kansas, Michigan, Minnesota, Missouri, Montana, Nebraska, North Dakota, South Dakota, and Wisconsin.

(Sec. 313(a), 72 Stat. 752, 49 U.S.C. 1354)

EDWARD C. MARSH,
*Director, Central Region.*

[F.R. Doc. 66–5754; Filed, May 25, 1966; 8:46 a.m.]

# FEDERAL COMMUNICATIONS COMMISSION

[Docket Nos. 14755–14757; FCC 66M–715]

## JUPITER ASSOCIATES, INC., ET AL.

### Order Continuing Hearing

In re applications of Jupiter Associates, Inc., Matawan, N.J., Docket No. 14755, File No. BP–14178; William S. Halpern and Louis N. Seltzer doing business as Somerset County Broadcasting Co., Somerville, N.J., Docket No. 14756, File No. BP–14234; Radio Elizabeth, Inc., Elizabeth, N.J., Docket No. 14757, File No. BP–14812; for construction permits.

For reasons stated on the record at a hearing conference of this date: *It is ordered,* This 20th day of May 1966, that the petition for leave to amend its application filed April 1, 1966, on behalf of Jupiter Associates, Inc., and supplemental thereto filed May 3, 1966, be and the same is hereby denied and the tendered amendment is rejected:

*It is further ordered,* That the hearing now scheduled for June 1, be and

the same is hereby rescheduled for July 6, 1966, 10 a.m., in the Commission's Offices, Washington, D.C.

Released: May 23, 1966.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
*Secretary.*

[F.R. Doc. 66-5821; Filed, May 25, 1966; 8:52 a.m.]

[Docket No. 15658; FCC 66M-713]

## NAUGATUCK VALLEY SERVICE, INC. (WOWW)

### Order Scheduling Prehearing Conference

In re application of Naugatuck Valley Service, Inc. (WOWW), Naugatuck, Conn., Docket No. 15658, File No. BP-14829; for construction permit.

More hearing in this proceeding seems inevitable. The Review Board has denied applicant's petition for reconsideration of its order directing that the above-entitled application be heard for a second time on a new set of issues, see Memorandum Opinion and Order of the Review Board, released May 6, 1966 (FCC 66R-176).

*Accordingly, it is ordered,* This 20th day of May 1966, that a prehearing conference will be held at 9 a.m., May 26, 1966, at the offices of the Commission in Washington, D.C., to discuss ways and means of proceeding to hearing on the issues specified in the document referred to above.

Released: May 23, 1966.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
*Secretary.*

[F.R. Doc. 66-5822; Filed, May 25, 1966; 8:52 a.m.]

[Docket Nos. 16388, 16389; FCC 66M-714]

## D. H. OVERMYER COMMUNICATIONS CO., AND MAXWELL ELECTRONICS CORP.

### Order Rescheduling Hearing

In re applications of D. H. Overmyer Communications Co., Dallas, Tex., Docket No. 16388, File No. BPCT-3463; Maxwell Electronics Corp., Dallas, Tex., Docket No. 16389, File No. BPCT-3489; for construction permits.

Because of a conflict in the hearing schedule: *It is ordered,* This 20th day of May 1966, that the hearing conference now scheduled for July 6, 1966, be and the same is hereby rescheduled for July 5, 1966, 2 p.m., in the Commission's Offices, Washington, D.C.

Released: May 23, 1966.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
*Secretary.*

[F.R. Doc. 66-5823; Filed, May 25, 1966; 8:52 a.m.]

# FEDERAL MARITIME COMMISSION

[No. 66-2]

## INDEPENDENT OCEAN FREIGHT FORWARDERS, OCEAN FREIGHT BROKERS, AND OCEANGOING COMMON CARRIERS

### Notice of Oral Argument Regarding Practices

MAY 20, 1966.

Oral argument in this proceeding will be heard on June 15, 1966, beginning at 9:30 a.m., in Room 114, 1321 H Street, NW., Washington, D.C.

Interested persons are requested to notify the Secretary on or before June 3, 1966, as to the amount of time desired.

FRANCIS C. HURNEY,
*Special Assistant to the Secretary.*

[F.R. Doc. 66-5795; Filed, May 25, 1966; 8:50 a.m.]

[Docket No. 66-21]

## CONTINENTAL NORTH ATLANTIC WESTBOUND FREIGHT CONFERENCE

### Admission, Withdrawal and Expulsion, Self-Policing Reports, Shippers' Requests and Complaints; Notice of Postponement of Dates

Respondent Continental North Atlantic Westbound Freight Conference has requested a postponement of the date for filing affidavits of fact and memoranda of law specified in the order to show cause, served April 14, 1966. Good cause appearing, the following revisions to that order are made:

(1) Respondents shall file affidavits of fact and memoranda of law no later than close of business June 20, 1966.

(2) Hearing Counsel and intervenors, if any, shall file replies to respondent's affidavits of fact and memoranda of law no later than close of business July 5, 1966.

(3) Oral argument will be heard at a date and time to be announced later.

By the Commission.

[SEAL] FRANCIS C. HURNEY,
*Special Assistant to the Secretary.*

[F.R. Doc. 66-5796; Filed, May 25, 1966; 8:50 a.m.]

[No. 66-20]

## VESSEL OPERATING COMMON CARRIERS IN THE DOMESTIC OFFSHORE TRADE

### Reports of Rate Base and Income Account; Enlargement of Time for Filing Comments

MAY 20, 1966.

At the request of Lykes Bros. Steamship Co., and good cause appearing, time for filing written statements, data, views, or comments in this proceeding is enlarged to and including May 27, 1966.

FRANCIS C. HURNEY,
*Special Assistant to the Secretary.*

[F.R. Doc. 66-5797; Filed, May 25, 1966; 8:50 a.m.]

# FEDERAL POWER COMMISSION

[Project No. 2574]

## MILSTAR MANUFACTURING CORP.

### Notice of Application for License for Constructed Project

MAY 19, 1966.

Public notice is hereby given that application has been filed under the Federal Power Act (16 U.S.C. 791a-825r) by Milstar Manufacturing Corp. (correspondence to: Minot K. Milliken, Vice President, Milstar Manufacturing Corp., 1045 Sixth Avenue, New York, N.Y., 10018) for a license for constructed Project No. 2574, known as the Lockwood project, located on the Kennebec River in the city of Waterville and town of Winslow, in Kennebec County, Maine.

The existing project consists of: (1) A concrete gravity-type dam about 20 feet high and 1,010 feet long in three sections, two spillway sections: One about 225 feet long with a log-way, crest elevation 50.9 feet topped with flashboards 1.25 feet high, and one about 625 feet long, and, a gated section about 160 feet long; (2) a reservoir at elevation 52.16 feet, U.S.G.S., about 1.2 miles long with an area of about 82 acres and negligible storage; (3) a concrete gravity-type canal wall forming a forebay about 450 feet long; (4) a brick powerhouse with six generating units each rated at 800 kw totaling 4,800 kw; and appurtenant facilities.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C., 20426, in accordance with the rules of practice and procedure of the Commission (18 CFR 1.8 or 1.10). The last day upon which protests or petitions may be filed is July 13, 1966. The application is on file with the Commission for public inspection.

GORDON M. GRANT,
*Acting Secretary.*

[F.R. Doc. 66-5755; Filed, May 25, 1966; 8:46 a.m.]

[Docket No. CP66-358]

## PANHANDLE EASTERN PIPE LINE CO.

### Notice of Application

MAY 19, 1966.

Take notice that on May 9, 1966, Panhandle Eastern Pipe Line Co. (Applicant), 3444 Broadway, Kansas City, Mo., 64111, filed in Docket No. CP66-358 an application pursuant to section 7(b) of the Natural Gas Act for permission and approval to abandon and sell to the Louisburg Gas Co. three short segments of terminal lateral pipelines of Applicant's Louisburg lateral system, all as

more fully set forth in the application which is on file with the Commission and open to public inspection.

Specifically, Applicant seeks authority to abandon and sell the following lateral pipeline facilities to the Louisburg Gas Co.:

(1) That portion of the lateral pipeline facility located to the south and on the downstream side of the existing Louisburg town border station, consisting of approximately 3,146 feet of 4-inch pipeline, together with drips, anodes, valves and miscellaneous fittings appurtenant thereto;

(2) That portion of the lateral pipeline facility located to the west of the existing Louisburg town border station, consisting of approximately 562 feet of 6-inch pipeline, together with drips, anodes, valves, and miscellaneous fittings appurtenant thereto, and together with the five existing farm taps;

(3) That portion of the lateral pipeline facility located to the north and on the downstream side of the existing pressure regulator located just east of the existing Louisburg town border station, consisting of approximately 2,085 feet of 2-inch pipeline, together with drips, anodes, valves, and miscellaneous fittings appurtenant thereto, and together with the three farm taps which serve four customers.

Applicant states that the sale of the above described facilities will result in a more economical operation for each company and that the expense of the physical changeover of the facilities if any will be negligible. Applicant further states that the granting of the requested authorization will involve no changes in gas deliveries or rates.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C., 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before June 13, 1966.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing will be held without further notice before the Commission on this application if no protest or petition to intervene is filed within the time required herein, if the Commission on its own review of the matter finds that a grant of permission and approval for the proposed abandonment are required by the public convenience and necessity. If a protest or petition for leave to intervene is timely filed, or if the Commission on its own motion believes that a formal hearing is required, further notice of such hearing will be duly given.

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

GORDON M. GRANT,
*Acting Secretary.*

[F.R. Doc. 66-5756; Filed, May 25, 1966; 8:46 a.m.]

[Docket No. CP66-359]

## PANHANDLE EASTERN PIPE LINE CO.

### Notice of Application

MAY 19, 1966.

Take notice that on May 9, 1966, Panhandle Eastern Pipe Line Co. (Applicant), 3444 Broadway, Kansas City, Mo., 64111, filed in Docket No. CP66-359 an application pursuant to section 7(c) of the Natural Gas Act for a certificate of public convenience and necessity authorizing the construction of a measuring and regulating station and the delivery and sale to Northern Illinois Gas Co. (Northern Illinois) of certain volumes of natural gas for resale to municipalities and communities located in the counties of Pike, Adams, Hancock, and Henderson, Ill., all as more fully set forth in the application which is on file with the Commission and open to public inspection.

The application states that Applicant and Northern Illinois have entered into a gas sales contract dated April 15, 1966, whereby Applicant agrees to sell and Northern Illinois agrees to purchase certain volumes of gas under Applicant's proposed LS-2 rate schedule. Applicant further states that in order to make deliveries of the required volumes of gas to be purchased by Northern Illinois, Applicant proposes to construct measuring and regulating facilities and provide a mainline tap near its Pleasant Hill Compressor Station, Pike County, Ill.

The total estimated volumes of natural gas involved to meet Northern Illinois' annual and peak day requirements for the initial 3-year period of proposed operations are stated to be:

| | First year | Second year | Third year |
|---|---|---|---|
| Annual (Mcf) | 157,000 | 165,000 | 170,000 |
| Peak day (Mcf) | 500 | 500 | 500 |

The total estimated cost of Applicant's proposed construction is $38,000, which will be financed from funds on hand.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C., 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (157.10) on or before June 13, 1966.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing will be held without further notice before the Commission on this application if no protest or petition to intervene is filed within the time required herein, if the Commission on its own review of the matter finds that a grant of the certificate is required by the public convenience and necessity. If a protest or petition for leave to intervene is timely filed, or if the Commission on its own motion believes that a formal hearing is required, further notice of such hearing will be duly given.

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

GORDON M. GRANT,
*Acting Secretary.*

[F.R. Doc. 66-5757; Filed, May 25, 1966; 8:46 a.m.]

[Project No. 2310]

## PACIFIC GAS AND ELECTRIC CO.

### Notice of Supplement to Application for Amendment of License for Constructed Project

MAY 19, 1966.

Public notice is hereby given that a supplement has been filed under the Federal Power Act (16 U.S.C. 791a-825r) by Pacific Gas and Electric Co. (correspondence to: E. J. Lage, Vice President—Rates and Valuation, Pacific Gas & Electric Co., 245 Market Street, San Francisco, Calif. 94106), to a pending application for amendment of license for constructed Project No. 2310, located on South Yuba and Bear River and tributaries, in Nevada and Placer Counties, Calif., near the cities of Auburn, Colfax, Grass Valley, and Nevada City.

The supplement seeks to include under the license for the project additional constructed facilities and supplements PG&E's application for amendment of license filed October 31, 1963, and PG&E's application for Commission approval of revised project exhibits filed May 4, 1965, which are pending in the Commission. The additional constructed facilities covered by the subject supplement are described as follows: Reservoirs: White Rock Lake—an earth-fill dam and concrete spillway on North White Rock Creek, a reservoir with an area of about 90 acres and storage capacity of about 570 acre-feet, and a controlled outlet through the bottom of the dam; Lake Valley—an earth-fill main dam on the North Fork of the North Fork American River and an earth-fill spillway dam; a spillway through the rock of the left abutment of the spillway dam, a reservoir with an area of about 298 acres and storage capacity of about 7,964 acre-feet, and a controlled outlet through the left abutment; Alta Forebay—an earth-fill dam and spillway at the lower end of Towle Canal, a reservoir with an area of about 5 acres and storage capacity of 37.5 acre-feet; Lake Alta—an earth-fill dam and an earth-fill and rock wall dam, a reservoir with an area of about 25 acres and storage capacity of about 263 acre-feet, a spillway, and a discharge pipe to Cedar Creek; Lake Theodore—an earth-fill dam and spillway on Dry Creek, a reservoir with an area of about 21 acres and storage capacity of about 284 acre-feet, and a discharge pipe to lower Boardman Canal; Lake Arthur—an earth-fill dam and spillway on South Fork of Dry Creek, a reservoir with an area of about 7.1 acres and a storage capacity of about 111 acre-feet; Halsey Forebay—two earth-fill dams and spillway at the down-

stream ends of the Bear River Canal and the Upper Bowman Canal, a reservoir with an area of about 17 acres and a storage capacity of approximately 243 acre-feet; Halsey Afterbay—a rock-fill and concrete dam and spillway on the South Fork of Dry Creek, a reservoir with an area of about 9 acres and a storage capacity of about 106 acre-feet, and a discharge pipe to Wise Canal; Rock Creek Reservoir—a multiple arch concrete dam, two auxiliary earth-fill dams and spillway on Rock Creek, a reservoir with an area of about 55 acres and a storage capacity of about 550 acre-feet, and a controlled outlet through the dam; Wise Forebay—an earth-fill dam and spillway at the downstream ends of Wise Canal and Middle Fiddled Green Canal, a reservoir with an area of about 4.5 acres and a storage capacity of about 32 acre-feet; Canals and Penstocks—Lake Valley Canal—a canal about 2.37 miles long; Diversion from Drum Forebay—a 0.3-mile diversion from Drum Forebay to Canyon Creek; Upper Boardman Canal—a canal about 7.12 miles long from Bear River to Canyon Creek; Towle Canal—a 4-mile canal from Canyon Creek to Alta Forebay; Alta Penstock—a 5,383-foot long welded steel pipe from Alta Forebay to Alta Power Plant; Pulp Mill Canal—a canal 1.12 miles long from Canyon Creek to Lake Alta; Lower Boardman Canal (Alta Tailrace—Lake Alta section)—a canal about 1.6 miles long from Alta powerplant tailrace to Lake Alta; Cedar Creek Canal—a canal about 2.72 miles long from Lake Alta to the Cedar Creek Canal—Lake Arthur section of lower Boardman Canal; Lower Boardman Canal (Cedar Creek Canal—Lake Arthur section)—a canal 29.6 miles long from Cedar Creek to Lake Theodore to Lake Arthur; Bowman Feeder Canal—a canal about 1.90 miles long from the Lower Boardman Canal to the Ragsdale Tunnel Canal; Ragsdale Tunnel and Random Canal—a canal about 1.16 miles long from Bear River Canal and Bowman Feeder Canal to Lower Boardman Canal; Upper Bowman Canal—a canal about 1.93 miles long from Ragsdale Random Canal to Halsey Forebay; Halsey Penstock and Tunnels No. 5 and 6—1,566 feet of woodstave pipe, two tunnels 2,615 feet long and 1,207 feet of steel pipe; Wise Canal—a canal about 5.93 miles long from Halsey Afterbay to Rock Creek Reservoir to Wise Forebay; Rock Creek Diversion Canal—a canal about 0.67 mile long from Wise Canal to Middle Fiddler Green Canal; Middle Fiddler Green Canal—a canal about 2.57 miles long from Rock Creek Diversion Canal to Wise Forebay; Lower Fiddler Green (upper section)—a canal about 2.09 miles long from Wise Forebay to Lower Fiddler Green Canal—South Canal bypass; lower Fiddler Green Canal—South Canal Bypass—a canal about 0.4 mile long from Lower Fiddler Green Canal to Wise Tailrace; Wise Penstock and Tunnel No. 10—1,272 feet of woodstave pipe, 436 feet of tunnel, and 6,842 feet of steel pipe; South Canal—a canal about 7.14 miles long, from Wise Tailrace to various water supply facilities and to North Fork American River; Powerhouses and Transmission Facilities: Alta Power Plant—a powerhouse located on Little Bear River housing two 1,500 hp turbines, each connected to a 1,000 kw generator, a step-up transformer, and switching facilities connected directly to a nonproject transmission system; Halsey Power Plant—a powerhouse located on South Fork Dry Creek housing an 18,000 hp turbine connected to a 15,000 kva generator, and step-up transformers and circuit breakers; Wise Power Plant—a powerhouse located on Auburn Ravine housing an 18,700 hp turbine connected to a 15,000 kva generator, step-up transformers and circuit breakers; Halsey 60 Kv and 115 Kv Tap Lines—two 60 kv tap lines, 0.3 of a mile long from Halsey powerhouse to the licensee's transmission system, two 115 kv tap lines to licensee's nonproject 115 kv transmission lines passing through the plant yard; Wise 60 Kv Tap Lines—two 60 kv tap lines, 0.1 mile long from Wise powerhouse to the licensee's transmission system.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C., 20426, in accordance with the rules of practice and procedure of the Commission (18 CFR 1.8 or 1.10). The last day upon which protests or petitions may be filed is July 11, 1966. The application is on file with the Commission for public inspection.

GORDON M. GRANT,
*Acting Secretary.*

[F.R. Doc 66-5758; Filed, May 25, 1966; 8:46 a.m.]

---

[Project No. 2582]

## ROCHESTER GAS & ELECTRIC CORP.

### Notice of Application for License for Constructed Project

MAY 19, 1966.

Public notice is hereby given that application has been filed under the Federal Power Act (16 U.S.C. 791a–825r) by Rochester Gas & Electric Corp. (correspondence to: Francis E. Drake, Jr., Executive Vice President, Rochester Gas & Electric Corp., 89 East Avenue, Rochester, N.Y., 14604), for license for constructed Project No. 2582, known as Station 2, located on the Genessee River, in the city of Rochester, in Monroe County, N.Y.

The existing project consists of: (1) A canal, known as Brown's Race, approximately 50 feet wide and 4 feet deep, receiving water downstream from the city of Rochester's Central Avenue Dam (located at the Upper Falls), and upstream from a wooden collapsible 32-foot long, 11-foot high dam; (2) an intake structure with seven wooden gates, each 5 feet by 6 feet; (3) a forebay at elevation 480 feet; (4) an automatic syphon spillway; (5) a metal clad intake rack house with wooden shutoff gate; (6) an 11-foot steel penstock about 235 feet long; (7) a powerhouse containing a single 10,000 hp vertical turbine and a 6,500 kw generating unit; (8) two underground 11 kv cables, about 4,000 feet long, to Station 6; and (9) appurtenant facilities.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C., 20426, in accordance with the rules of practice and procedure of the Commission (18 CFR 1.8 or 1.10). The last day upon which protests or petitions may be filed is July 13, 1966. The application is on file with the Commission for public inspection.

GORDON M. GRANT,
*Acting Secretary.*

[F.R. Doc. 66-5759; Filed, May 25, 1966; 8:46 a.m.]

---

[Project No. 2583]

## ROCHESTER GAS & ELECTRIC CORP.

### Notice of Application for License for Constructed Project

MAY 19, 1966.

Public notice is hereby given that application has been filed under the Federal Power Act (16 U.S.C. 791a–825r) by Rochester Gas & Electric Corp. (correspondence to: Francis E. Drake, Jr., executive vice president, Rochester Gas & Electric Corp., 89 East Avenue, Rochester, N.Y., 14604), for license for constructed Project No. 2583, known as Station No. 5, located on the Middle and Lower Falls of Genessee River, in the city of Rochester, in Monroe County, N.Y.

The existing project consists of: (1) A dam about 400 feet long at Middle Falls, containing four 16-foot by 50-foot taintor gates and 16-foot by 100-foot sector gates; (2) a reservoir of about 325 acre-feet capacity at elevation 391.0 feet; (3) an intake in the center of the river, with 16 gated openings each 10 feet wide and 12 feet high; (4) a 20-foot tunnel about 1,400 feet long, from the intake at the Middle Falls Dam to a surge tank; (5) a surge tank; (6) three 13-foot steel penstocks; (7) a powerhouse at Lower Falls, containing two 16,000 hp turbines and one 22,000 hp turbine connected to two 11,250 kw generators and one 15,750 kw generator, respectively; and (8) appurtenant facilities.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C., 20426, in accordance with the rules of practice and procedure of the Commission (18 CFR 1.8 or 1.10). The last day upon which protests or petitions may be filed is July 13, 1966. The application is on file with the Commission for public inspection.

GORDON M. GRANT,
*Acting Secretary.*

[F.R. Doc. 66-5760; Filed, May 25, 1966; 8:46 a.m.]

# FEDERAL RESERVE SYSTEM

## BAYSTATE CORP.

### Order Approving Application Under Bank Holding Company Act

In the matter of the application of Baystate Corp., Boston, Mass., for ap-

proval of the acquisition of voting shares of Lynn Safe Deposit & Trust Co., Lynn, Mass.

There has come before the Board of Governors, pursuant to section 3(a)(2) of the Bank Holding Company Act of 1956 (12 U.S.C. 1842(a)(2)) and § 222.4-(a)(2) of Federal Reserve Regulation Y (12 CFR 222.4(a)(2)), an application by Baystate Corp., Boston, Mass., a registered bank holding company, for the Board's prior approval of the acquisition of up to 100 percent of the outstanding voting shares of Lynn Safe Deposit & Trust Co., Lynn, Mass.

As required by section 3(b) of the Act, notice of receipt of the application was given to, and views and recommendation requested of, the Commissioner of Banks for the State of Massachusetts. The Commissioner advised the Board that, pursuant to State law, a petition had been filed by Applicant with the Massachusetts Board of Bank Incorporation for prior approval of the proposed acquisition, and a hearing would be held thereon. The Massachusetts Board subsequently approved the acquisition, and the Board of Governors was so notified.

Notice of receipt of the application was published in the FEDERAL REGISTER on January 28, 1966 (31 F.R. 1167), providing an oportunity for interested persons to submit comments and views with respect to the proposed acquisition. The time for filing such comments and views has expired, and all those received have been considered by the Board.

*It is hereby ordered,* For the reasons set forth in the Board's statement [1] of this date, that said application be and hereby is approved, provided that the acquisition so approved shall not be consummated (a) within seven calendar days after the date of this order or (b) later than 3 months after said date.

Dated at Washington, D.C., this 19th day of May 1966.

By order of the Board of Governors.[2]

[SEAL] MERRITT SHERMAN, *Secretary.*

[F.R. Doc. 66-5761; Filed, May 25, 1966; 8:47 a.m.]

## CITIZENS BANK & TRUST CO.

### Order Approving Consolidation of Banks

In the matter of the application of Citizens Bank & Trust Co. for approval of consolidation with The State Bank of Coleman.

There has come before the Board of Governors, pursuant to the Bank Merger Act, as amended (12 U.S.C. 1828(c), Public Law 89-356), an application by Citizens Bank & Trust Co., Clare, Mich., a State member bank of the Federal Reserve System, for the Board's prior approval of the consolidation of that bank with The State Bank of Coleman, Coleman, Mich., under the charter and title of Citizens Bank & Trust Co. As an incident to the consolidation, the sole office of The State Bank of Coleman would become a branch of the resulting bank. Notice of the proposed consolidation, in form approved by the Board, has been published pursuant to said Act.

Upon consideration of all relevant material in the light of the factors set forth in said Act, including reports furnished by the Comptroller of the Currency, the Federal Deposit Insurance Corporation, and the Attorney General on the competitive factors involved in the proposed consolidation:

*It is hereby ordered,* for the reasons set forth in the Board's statement [1] of this date, that said application be and hereby is approved, provided that said consolidation shall not be consummated (a) before the thirtieth calendar day following the date of this order or (b) later than 3 months after said date.

Dated at Washington, D.C., this 17th day of May 1966.

By order of the Board of Governors.[2]

[SEAL] MERRITT SHERMAN, *Secretary.*

[F.R. Doc. 66-5762; Filed, May 25, 1966; 8:47 a.m.]

## DENVER U.S. BANCORPORATION, INC.

### Order Approving Application Under Bank Holding Company Act

In the matter of the application of Denver U.S. Bancorporation, Inc., Denver, Colo., for approval of the acquisition of voting shares of The Mercantile Bank & Trust Co., Boulder, Colo. (Docket No. BHC-73).

There has come before the Board of Governors, pursuant to section 3(a)(2) of the Bank Holding Company Act of 1956 (12 U.S.C. 1842(a)(2)) and § 222.4 (a)(2) of Federal Reserve Regulation Y (12 CFR 222.4(a)(2)), an application by Denver U.S. Bancorporation, Inc., Denver, Colo., a registered bank holding company, for the Board's prior approval of the acquisition of 50 percent or more of the outstanding voting shares of The Mercantile Bank & Trust Co., Boulder, Colo.

In accordance with section 3(b) of the Act, the Board gave written notice to the State Bank Commissioner of Colorado of receipt of the application and requested his views and recommendation thereon. The Comptroller of the Currency and the Antitrust Division of the Department of Justice were notified of receipt of the application. None of the aforementioned governmental authorities disapproved the application in writing within 30 days of notice of the application. At a later date, however, the State Bank Commissioner, on behalf of himself and the Colorado State Banking Board, opposed the application. The notice of the filing of the application, published in the FEDERAL REGISTER of July 22, 1965 (30 F.R. 9189), included a statement that comments and views regarding the proposed acquisition could be filed with the Board within 30 days thereafter. By letter dated August 17, 1965, the president of The First National Bank of Denver commented adversely on the proposal. By letter dated August 18, 1965, The Central Bank & Trust Co., Denver, Colo., submitted to the Board an opposition to the proposal and requested an opportunity to participate in a hearing on the matter. On September 9, 1965, at the discretion of the Board and in accordance with the provisions of § 222.7 (a) of the Board's Regulation Y (12 CFR 222.7(a)), the Board ordered a public hearing in connection with the application. Said Order was published in the FEDERAL REGISTER on September 16, 1965 (30 F.R. 11887). A public hearing was held in Denver, Colo., on October 19-22, 1965, before a duly selected Hearing Examiner. Appearances at the hearing were made on behalf of Applicant proponent; The Central Bank & Trust Co. and the Colorado State Banking Board and Bank Commissioner as opponents; and counsel for the Board of Governors in a nonadversary capacity. After the hearing, proposed findings of fact, conclusions of law, and briefs were submitted by the aforesaid adversary parties. On March 4, 1966, the Hearing Examiner filed with the Board a Report and Recommended Decision, recommending approval of the application. The opposing bank filed exceptions to the Hearing Examiner's Report and Recommended Decision, together with a supporting brief and a request for oral argument before the Board. Applicant responded with a brief in opposition to the opposing bank's exceptions and request for oral argument. The Colorado State Banking Board and Commissioner filed no exceptions but requested that their abstention be construed, not as agreement with the Hearing Examiner's conclusions, but rather as a reliance upon the record itself. All of the aforementioned documents were received as part of the record and have been considered by the Board.

*It is hereby ordered,* For the reasons set forth in the Board's Statement [1] of this date, that the request for oral argument be and hereby is denied; and that said application for acquisition be and hereby is approved, provided that the ac-

[1] Filed as part of the original document. Copies available upon request to the Board of Governors of the Federal Reserve System, Washington, D.C., 20551, or to the Federal Reserve Bank of Boston.

[2] Voting for this action: Chairman Martin, and Governors Shepardson, Mitchell, Daane, Maisel, and Brimmer. Absent and not voting: Governor Robertson.

[1] Filed as part of the original document. Copies available upon request to the Board of Governors of the Federal Reserve System, Washington, D.C., 20551, or to the Federal Reserve Bank of Chicago.

[2] Voting for this action: Chairman Martin, and Governors Robertson, Shepardson, Mitchell, Daane, Maisel, and Brimmer.

[1] Filed as part of the original document. Copies available upon request to the Board of Governors of the Federal Reserve System, Washington, D.C., 20551, or to the Federal Reserve Bank of Kansas City. Dissenting statement of Governor Robertson also filed as part of the original document and available upon request.

quisition so approved shall not be consummated (a) within 7 calendar days after the date of this order or (b) later than 3 months after said date.

Dated at Washington, D.C., this 16th day of May 1966.

By order of the Board of Governors.[2]

[SEAL] MERRITT SHERMAN, *Secretary.*

[F.R. Doc. 66-5763; Filed, May 25, 1966; 8:47 a.m.]

# SECURITIES AND EXCHANGE COMMISSION

[File No. 1-3421]

## CONTINENTAL VENDING MACHINE CORP.

### Order Suspending Trading

MAY 20, 1966.

The common stock, 10 cents par value, of Continental Vending Machine Corp., being listed and registered on the American Stock Exchange and having unlisted trading privileges on the Philadelphia-Baltimore-Washington Stock Exchange, and the 6 percent convertible subordinated debentures due September 1, 1976, being listed and registered on the American Stock Exchange, pursuant to provisions of the Securities Exchange Act of 1934; and

It appearing to the Securities and Exchange Commission that the summary suspension of trading in such securities on such Exchanges and otherwise than on a national securities exchange is required in the public interest and for the protection of investors:

*It is ordered,* Pursuant to sections 15(c)(5) and 19(a)(4) of the Securities Exchange Act of 1934, that trading in such securities on the American Stock Exchange, the Philadelphia-Baltimore-Washington Stock Exchange and otherwise than on a national securities exchange be summarily suspended, this order to be effective for the period May 22, 1966, through May 31, 1966, both dates inclusive.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 66-5775; Filed, May 25, 1966; 8:48 a.m.]

---

[File No. 70-4373]

## PENNZOIL CO., ET AL.

### Notice of Proposed Issuance of Securities and Acquisition of Nonutility Assets by Holding Company and Its Nonutility Subsidiary Companies Relating to Their Oil, Gas, and Mining Businesses

MAY 19, 1966.

In the matter of Pennzoil Co., 900 Southwest Tower, Houston, Tex., 77002; and Wolf's Head Oil Refining Co., Inc., Elk Refining Co., Triad Oil Co., South Penn Oil Co., Pennzoil del Caribe, S.A., Pennzoil de Quebec Limitée, United Gas Pipe Line Co., Union Producing Co., and Duval Corp.

Notice is hereby given that a joint application-declaration has been filed with this Commission pursuant to the Public Utility Holding Company Act of 1935 ("Act") by Pennzoil Co. ("Pennzoil"), a registered holding company, and by its above-named nonutility subsidiary companies, the first six so named being direct subsidiary companies of Pennzoil, and the last three being subsidiary companies of United Gas Corp. ("United"), a gas utility subsidiary company of Pennzoil. The joint application-declaration designates sections 6, 7, 9, 10, and 12 of the Act and Rules 43 and 49 (a), (b), and (d) thereunder as applicable to the proposed transactions. All interested persons are referred to said application-declaration, which is summarized below, for a complete description of the proposed transactions.

The applicants-declarants are variously engaged in nonutility businesses, including the production, transportation, and refining of crude oil; the production, gathering, transportation, processing, and sale of natural gas; the mining, milling, and marketing of copper, sulphur, and other minerals; and the manufacture and marketing of agricultural chemicals.

The filing states that, in accordance with the custom of petroleum and certain mining companies, applicants-declarants propose, in the ordinary course of their business, (i) to enter into various transactions and agreements, described in detail in the application-declaration, in connection with the acquisition or disposition of petroleum, natural gas, and mining properties or leases or interests therein, and (ii) to enter into agreements for the joint ownership and operation of plants for the processing and extraction of liquid hydrocarbons and minerals. It is further stated that the proposed transactions and related agreements frequently involve the sale or acquisition of royalties, participations, and working or other interests that may constitute securities as defined in the Act, or the acquisition of assets or other interests subject to the Act.

Applicants-declarants state that the order of the Commission with respect to the proposed transactions and agreements shall not be deemed to permit the issuance by applicants-declarants of shares of their capital stock or any instruments evidencing indebtedness for borrowed money, and agree that the order may be made subject to the following conditions:

(a) The order shall not apply to any single transaction involving the acquisition or disposition by an applicant-declarant of properties or other interests having a book value in excess of $5,000,000.

(b) The order shall not apply to any transaction with any person affiliated directly or indirectly with any company in the Pennzoil holding-company system.

(c) Applicants-declarants shall file with the Commission, semiannually on the first day of August and February for the periods terminating the preceding 30th day of June and 31st day of December, respectively, a brief description of each transaction effected pursuant to the order.

It is stated that no State commission and no Federal commission, other than this Commission, has jurisdiction over the proposed transactions and that no fees, commissions or expenses will be incurred in connection with this application-declaration.

In a separate proceeding (Holding Company Act Release No. 15475 (May 16, 1966)), Pennzoil and United have filed a Plan under section 11(e) of the Act proposing the sale by United of its gas utility properties, and the consolidation of Pennzoil and United into a single company which neither directly, nor through subsidiary companies, will engage in the business of a public-utility company as defined in the Act. Upon consummation of the Plan, Pennzoil will file an application for an order declaring it has ceased to be a holding company and terminating its registration under the Act.

Notice is further given that any interested person may, not later than June 9, 1966, request in writing that a hearing be held on such matter, stating the nature of his interest, the reasons for such request, and the issues of fact or law raised by said joint application-declaration which he desires to controvert; or he may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, Washington, D.C., 20549. A copy of such request should be served personally or by mail (airmail if the person being served is located more than 500 miles from the point of mailing) upon Pennzoil Co. at the above-stated address, and proof of service (by affidavit or, in case of an attorney at law, by certificate) should be filed contemporaneously with the request. At any time after said date, the joint application-declaration may be granted and permitted to become effective as provided in Rule 23 of the general rules and regulations promulgated under the Act, or the Commission may grant exemption from such rules as provided in Rules 20(a) and 100 thereof or take such other action as it may deem appropriate.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 66-5776; Filed, May 25, 1966; 8:48 a.m.]

---

[File No. 7-2564]

## ATLANTIC RICHFIELD CO.

### Notice of Application for Unlisted Trading Privileges and of Opportunity for Hearing

MAY 20, 1966.

In the matter of application of the Philadelphia-Baltimore-Washington

[2] Voting for this action: Governors Shepardson, Mitchell, Daane, and Maisel. Voting against this action: Governor Robertson. Absent and not voting: Chairman Martin and Governor Brimmer.

Stock Exchange for unlisted trading privileges in a certain security.

The above-named national securities exchange has filed an application with the Securities and Exchange Commission pursuant to section 12(f)(1)(B) of the Securities Exchange Act of 1934 and Rule 12f-1 thereunder, for unlisted trading privileges in the common stock of the following company, which security is listed and registered on one or more other national securities exchanges:

Atlantic Richfield Co., File 7-2564.

Upon receipt of a request, on or before June 5, 1966, from any interested person, the Commission will determine whether the application shall be set down for hearing. Any such request should state briefly the nature of the interest of the person making the request and the position he proposes to take at the hearing, if ordered. In addition, any interested person may submit his views or any additional facts bearing on the said application by means of a letter addressed to the Secretary, Securities and Exchange Commission, Washington 25, D.C., not later than the date specified. If no one requests a hearing, this application will be determined by order of the Commission on the basis of the facts stated therein and other information contained in the official files of the Commission pertaining thereto.

For the Commission (pursuant to delegated authority).

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 66-5777; Filed, May 25, 1966; 8:48 a.m.]

[File No. 7-2567]

## McCORD CORP.

### Notice of Application for Unlisted Trading Privileges and of Opportunity for Hearing

MAY 20, 1966.

In the matter of application of the Philadelphia - Baltimore - Washington Stock Exchange for unlisted trading privileges in a certain security.

The above-named national securities exchange has filed an application with the Securities and Exchange Commission pursuant to section 12(f)(1)(B) of the Securities Exchange Act of 1934 and Rule 12f-1 thereunder, for unlisted trading privileges in the common stock of the following company, which security is listed and registered on one or more other national securities exchanges:

McCord Corp., File 7-2567.

Upon receipt of a request, on or before June 5, 1966, from any interested person, the Commission will determine whether the application shall be set down for hearing. Any such request should state briefly the nature of the interest of the person making the request and the position he proposes to take at the hearing, if ordered. In addition, any interested person may submit his views or any additional facts bearing on the said application by means of a letter addressed to the Secretary, Securities and Exchange Commission, Washington 25, D.C., not later than the date specified. If no one requests a hearing, this application will be determined by order of the Commission on the basis of the facts stated therein and other information contained in the official files of the Commission pertaining thereto.

For the Commission (pursuant to delegated authority).

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 66-5778; Filed, May 25, 1966; 8:48 a.m.]

---

## UNITED SECURITY LIFE INSURANCE CO.

### Order Suspending Trading

MAY 20, 1966.

It appearing to the Securities and Exchange Commission that the summary suspension of trading in the common stock, $1 par value, of United Security Life Insurance Co., Birmingham, Ala., otherwise than on a national securities exchange is required in the public interest and for the protection of investors:

*It is ordered,* Pursuant to section 15(c)(5) of the Securities Exchange Act of 1934, that trading in such securities otherwise than on a national securities exchange be summarily suspended, this order to be effective for the period May 23, 1966, through June 1, 1966, both dates inclusive.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 66-5779; Filed, May 25, 1966; 8:48 a.m.]

# CUMULATIVE LIST OF PARTS AFFECTED—MAY

**The following numerical guide is a list of the parts of each title of the Code of Federal Regulations affected by documents published to date during May.**

## 3 CFR

Page

PROCLAMATION:
3718 6567
3719 6607
3720 6679
3721 6817
3722 6855
3723 6945
3724 7027
3725 7107
3726 7551

EXECUTIVE ORDER:
July 2, 1910 (revoked in part by PLO 4003) 7351
8111 (revoked by PLO 4017) 7567
8389 (see EO 11281) 7215
9989 (superseded by EO 11281) 7215
10348 (superseded by EO 11281) 7215
10644 (amended by EO 11281) 7215
11917 (superseded by EO 11278) 6681
11069 (superseded by EO 11278) 6681
11218 (superseded by EO 11278) 6681
11277 6609
11278 6681
11279 6947
11280 7167
11281 7215

PRESIDENTIAL DOCUMENTS OTHER THAN PROCLAMATIONS AND EXECUTIVE ORDERS:
Reorganization Plan No. 2 of 1966 6857

## 5 CFR

630 7279, 7380
213 6769, 6859, 6903, 6949, 7169, 7351, 7379, 7380.
772 6569, 6949

## 6 CFR

70 7029

## 7 CFR

7 6569
50 6570
51 7169
68 6629
81 7553
401 7553
406 7553
409 7554
410 7554
701 6957, 7169, 7513
718 6859, 7393
719 7030
722 6573, 6580, 6859, 7472, 7554
724 6819
729 6581, 6957
730 7472
780 7393
813 6819
815 6860
905 6958
908 6825, 7030, 7109, 7394, 7513
909 6825, 7109
910 6826, 7110, 7394, 7473
915 7394
916 7474, 7475, 7554, 7555
917 7241, 7242, 7348, 7476
918 6958, 7555
944 6959, 7514
959 6860
965 7243
980 6629
1098 6581
1099 6861, 7110, 7477
1421 6904, 7243, 7477
1427 6861, 7110
1434 6582
1481 7396
1488 7515
1490 6862, 7556

PROPOSED RULES:
52 6871, 7185
58 6715
330 7479
905 7286, 7287
906 7480
911 7482
916 6871, 7482
965 6592
991 7397
1001 7520
1015 7520
1032 6631
1038 7061
1039 7061
1041 7483
1050 6631
1065 6873
1068 7129
1098 7524
1099 7129
1125 7062
1126 6631
1133 6986

## 8 CFR

204 7217
214 6611, 7170
511 7348

## 9 CFR

76 7029

## 12 CFR

1 6826, 6905
10 6949
11 6950
12 6952
13 6953
14 6954
15 6955
16 6955
208 7224
220 7169
522 6905
524 6905
545 7508

## 12 CFR—Continued

Page

PROPOSED RULES:
523 7354, 7483
525 7483
545 7355
561 7356
563 7356, 7484

## 13 CFR

105 7375
121 7375

## 14 CFR

39 6582, 6685, 6790, 6959, 7031, 7111, 7170, 7279, 7351.
65 7455
71 6582, 6584, 6791, 6826, 6827, 6864, 6959, 6960, 7031, 7112, 7171, 7172, 7217, 7279, 7351, 7352, 7456, 7507, 7556, 7559–7561.
73 6893, 7032, 7112, 7217
75 7280, 7561
95 7112
97 6612, 6685, 6828, 6894, 7218, 7385
137 6685
151 6686
208 6620
223 6584
225 7508
320 6585
378 6621

PROPOSED RULES:
37 7084
39 7148, 7354, 7483
71 6716, 6717, 6837, 6838, 6873, 6908, 6987, 7149, 7187, 7527, 7528, 7573, 7575
75 7085
105 6988
121 6592
246 6986

## 15 CFR

30 6587
369 7037
372 7038
373 6707, 7038
374 6707
377 6707
379 6709
381 7509
382 6707, 6709, 7038, 7509
384 6709, 6864
385 6709
399 6707, 6709, 6829, 6866, 7038, 7380

## 16 CFR

13 7056–7059, 7511
15 6866, 6906, 7225, 7281, 7349
59 6960

## 17 CFR

200 6588
240 6705, 6706

PROPOSED RULES:
240 7289, 7484
249 7289

**18 CFR**

| | Page |
|---|---|
| 260 | 7226 |
| 601 | 7114 |
| 606 | 7127 |
| PROPOSED RULES: | |
| 141 | 7287 |

**19 CFR**

| | |
|---|---|
| 1 | 6611 |
| 4 | 7512 |
| 10 | 6769 |
| PROPOSED RULES: | |
| 1 | 6871 |
| 20 | 6908 |

**20 CFR**

| | Page |
|---|---|
| 404 | 6611 |
| PROPOSED RULES: | |
| 405 | 7131, 7143 |

**21 CFR**

| | Page |
|---|---|
| 8 | 7172, 7227 |
| 10 | 7227 |
| 16 | 7562 |
| 17 | 7562 |
| 42 | 7562 |
| 45 | 7375 |
| 120 | 7172, 7376 |
| 121 | 6830, 7173, 7227, 7228, 7281, 7282, 7512, 7562, 7563. |
| 131 | 6705, 6906 |
| 146c | 6830 |
| 146e | 7228 |
| 148 | 7173 |
| 166 | 7174 |
| 191 | 6622 |
| PROPOSED RULES: | |
| 17 | 7412 |
| 19 | 7572 |
| 51 | 6792 |
| 121 | 7245 |
| 133 | 7185, 7354 |
| 166 | 7245, 7573 |

**24 CFR**

| | |
|---|---|
| 5 | 7563 |
| 200 | 6866, 7565 |
| 221 | 7565 |

**25 CFR**

| | |
|---|---|
| 221 | 7283 |
| PROPOSED RULES: | |
| 131 | 7353 |

**26 CFR**

| | |
|---|---|
| 1 | 6589, 6966 |
| 31 | 6589, 7183 |
| PROPOSED RULES: | |
| 1 | 6966, 7571 |

**28 CFR**

| | |
|---|---|
| 0 | 6867 |

**29 CFR**

| | |
|---|---|
| 548 | 6769 |
| 800 | 6770 |
| 1504 | 7430 |

**30 CFR**

| | |
|---|---|
| 51 | 7456 |

**31 CFR**

| | |
|---|---|
| 90 | 6960 |
| 202 | 6590 |
| 316 | 6831 |
| 332 | 6686, 6831 |
| 520 | 7333 |

**32 CFR**

| | |
|---|---|
| 43 | 7228 |
| 300 | 6831 |

**32 CFR—Continued**

| | Page |
|---|---|
| 706 | 6962 |
| 872 | 7459 |
| 1472 | 6906 |
| 1810 | 6962, 7175 |

**32A CFR**

| | |
|---|---|
| BDSA (Ch. VI): | |
| BDSA Reg. 2 | 6590 |
| M–11A | 7036 |

**33 CFR**

| | |
|---|---|
| 202 | 7284 |
| 203 | 6907, 7175, 7284, 7350 |
| 207 | 6590, 6622, 6867, 7566 |
| 208 | 6707 |
| PROPOSED RULES: | |
| 402 | 7356 |

**35 CFR**

| | |
|---|---|
| 4 | 7566 |
| 255 | 6831 |

**36 CFR**

| | |
|---|---|
| 3 | 7566 |

**37 CFR**

| | |
|---|---|
| 1 | 7284, 7391 |
| 2 | 7284 |

**38 CFR**

| | |
|---|---|
| 2 | 6770 |
| 9 | 7175 |
| 21 | 6771 |

**39 CFR**

| | |
|---|---|
| 17 | 7391 |
| PROPOSED RULES: | |
| 21 | 6715 |
| 24 | 6715 |

**41 CFR**

| | |
|---|---|
| 5–2 | 7391 |
| 6–1 | 6622 |
| 6–2 | 6623 |
| 6–3 | 6623 |
| 6–5 | 6624 |
| 6–7 | 6624 |
| 6–11 | 6624 |
| 6–30 | 6624 |
| 6–60 | 6625 |
| 8–7 | 7178, 7350 |
| 8–12 | 7179, 7350 |
| 9–12 | 6907 |
| 22–60 | 6625 |
| 101–19 | 7234 |
| 101–26 | 6963, 7234 |
| 101–45 | 6831 |

**42 CFR**

| | |
|---|---|
| 55 | 7128 |
| 57 | 7376, 7378 |
| 81 | 7128 |

**43 CFR**

| | |
|---|---|
| PUBLIC LAND ORDERS: | |
| 5 (revoked in part by PLO 4005) | 7462 |
| 843 (revoked in part by PLO 4009) | 7512 |
| 1177 (revoked in part by PLO 4016) | 7567 |
| 2133 (see PLO 4006) | 7462 |
| 3977 (amended by PLO 4000) | 6868 |
| 3999 | 6907 |
| 4000 | 6868 |
| 4001 | 7350 |
| 4002 | 7350 |
| 4003 | 7351 |
| 4004 | 7462 |
| 4005 | 7462 |
| 4006 | 7462 |
| 4007 | 7463 |

**43 CFR—Continued**

| | Page |
|---|---|
| PUBLIC LAND ORDERS—Continued | |
| 4008 | 7463 |
| 4009 | 7512 |
| 4010 | 7512 |
| 4011 | 7513 |
| 4012 | 7513 |
| 4013 | 7513 |
| 4014 | 7566 |
| 4015 | 7567 |
| 4016 | 7567 |
| 4017 | 7567 |
| 4018 | 7567 |
| 4019 | 7568 |
| 4020 | 7568 |
| 4021 | 7568 |
| PROPOSED RULES: | |
| 1727 | 6984 |
| 2221 | 6985 |
| 3130 | 6834 |
| 3160 | 6836 |

**45 CFR**

| | |
|---|---|
| 90 | 7128 |
| 144 | 7463 |
| 171 | 7128 |
| 177 | 6591 |
| 801 | 6591 |

**46 CFR**

| | |
|---|---|
| 309 | 6891 |
| 500 | 7180 |
| 527 | 7392 |
| PROPOSED RULES: | |
| 290 | 7131 |
| 510 | 6792, 7248 |
| 512 | 6838 |
| 513 | 6838 |

**47 CFR**

| | |
|---|---|
| 0 | 6627, 6831 |
| 1 | 6831, 6868 |
| 2 | 7235 |
| 15 | 7469 |
| 73 | 6627, 6628, 6868, 7238, 7469 |
| 91 | 7235 |
| 95 | 7235 |
| PROPOSED RULES: | |
| 2 | 6909, 7086 |
| 73 | 6637, 6638, 6792, 6838, 6874, 7086, 7246, 7576. |
| 87 | 6909, 7086 |

**48 CFR**

| | |
|---|---|
| 16 | 7032 |
| 17 | 7033 |
| 18 | 7034 |
| 19 | 7034 |

**49 CFR**

| | |
|---|---|
| 71–79 | 6591 |
| 95 | 6832, 7468, 7469 |
| 142 | 6964 |
| 170 | 7392 |
| 188 | 6964 |
| PROPOSED RULES: | |
| 178 | 7287, 7288 |

**50 CFR**

| | |
|---|---|
| 32 | 7569 |
| 33 | 6629, 6832, 6869, 6893, 6964, 7225, 7226, 7285, 7569, 7570. |
| 60 | 6833 |
| PROPOSED RULES: | |
| 10 | 7479 |
| 32 | 7061 |
| 34 | 7286 |
| 271 | 7244 |
| 280 | 7516 |
| 281 | 7516 |

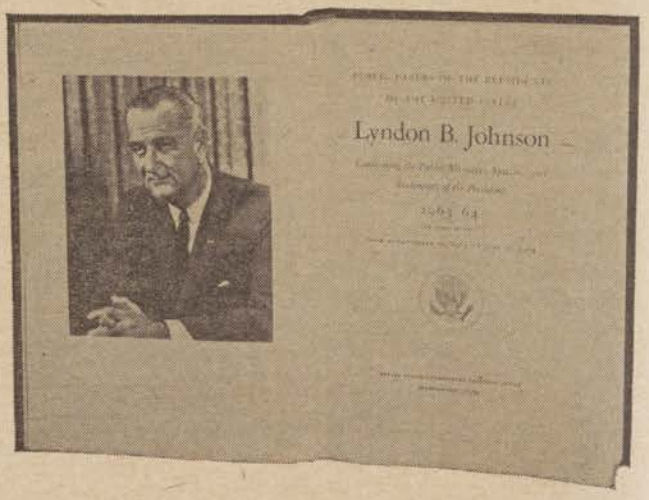
**PUBLIC PAPERS OF THE PRESIDENTS OF THE UNITED STATES**

*Now available*

# Lyndon B. Johnson
## 1963-64

**Book I** (November 22, 1963 to June 30, 1964)
**Price $6.75**

**Book II** (July 1, 1964 to December 31, 1964)
**Price $7.00**




***Contents***

- Messages to the Congress
- Public speeches and letters
- The President's news conferences
- Radio and television reports to the American people
- Remarks to informal groups

***Published by***

Office of the Federal Register
National Archives and Records Service
General Services Administration

***Order from***

Superintendent of Documents
U.S. Government Printing Office
Washington, D.C. 20402

***Prior volumes***

Prior volumes covering most of the Truman administration and all of the Eisenhower and Kennedy years are available at comparable prices from the Superintendent of Documents, Government Printing Office, Washington, D.C. 20402.